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Loudoun County Board of Supervisors, Business Meeting, Tuesday, June 2, 2026

Date Tuesday, June 2, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 7h 13m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8191>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8191>

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[00:07:35] you. Let's roll. Well, good evening, Supervisors. Good evening, Loudon, and good evening, staff. I'd like to call to order the June 2nd, 2026 Loudon County Board of Supervisors Business Meeting. This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecall mode. If you need a headset, we have those available as well. Please see the clerk to request one. I'm going to go on and ask Ms. Umstead would she like to do any words of wisdom or prayer before she leads it to the Pledge

[00:08:08] of Allegiance. Thank you, Madam Chair. I would just like to mention a very lovely lady that I got to sit next to for a while at the Juneteenth celebration. She had been through a terrible series of calamities, and somehow she had a smile on her face and was thankful for everything she

[00:08:39] had in life so my prayer to god is that all of us be given that level of grace amen if we could all rise and say the pledge of allegiance i pledge allegiance to the flag of the united states of america and to the republic for which it stands one nation under god indivisible with liberty and

[00:09:08] justice for all. Okay. Pursuant to Code Section 2.2-3708.3 and the Board of Supervisors Rules of Order. Supervisor Sains requested to participate in this meeting by electronic communication.

[00:09:27] A physical quorum of the board is present in the boardroom and the board has made arrangements for the Board of Supervisors Sains to be heard by all persons in the boardroom. He has made this request within the required time frame and the county attorney determined the request meets the qualifications to participate remotely, the board will record in a remote location in Loudoun County due to personal reasons.

[00:09:52] Although what I think is happening today is he's going to get on the call with us, get in the meeting with us virtually, and then has to jump off, and then we'll jump back on and then come into the room later on. That's my understanding. So having said that, is he on right now?

[00:10:08] He's not on yet. Okay. So he's going to kind of, he's trying to work it out to get to the room, and at some point he will be back in the room. But just so that's where we are right now. I will right now ask for additions or deletions to the agenda. Mr. Crony, I do believe you have an addition to the agenda.

[00:10:24] Yes, Chair Randall. I'll be adding an item for the Western Loudon Rural Uses and Standards CPAM 2024-002 and ZOAM 2024-002.

[00:10:41] All right, I will accept that on the agenda, and I will put that at the end of the agenda, so it will be the last thing that we do on the agenda tonight. I will read the proposed consent agenda. Supervisors, I'm going to read the proposed consent agenda. I'm going to include item 5 in the proposed consent agenda with the letter from Mr. Crony and I guess it was Mr. Crony and Mr., gosh, where is it at, Mr. Crony?

[00:11:13] I've now lost it. Oh, no, it's right here. Just changed the color of paper. And Mr. Letourneau. Item R1, proclamation to recognize June 2026 is Pride Month. That is for approval only.

[00:11:30] It will be presented at the Pride event on Saturday. Supervisor, speaking of the Pride event, without objection, I am going to ask, based on some things that happened this week, that I am allowed to have a security with me at the Pride event unless there's objection, and if so, we can have that discussion.

[00:11:54] But without objection, I'm going to ask for that right now. Do you have objection? Is that where your light's on, Ms. Umstead? Oh, okay. R2, resolution to recognize the Rockridge High School Debate Team 2026 as state championships.

[00:12:11] That is for approval only, and I think that's where Mr. Sains is going tonight. I-3, Proclamation to Recognize June 5th, 2026 as National Gun Violence Awareness Day. As for approval and presentation, Ms. Bricksman will join me down front for that. As will Ms. Glass, and I think Mr. Crony, is that right, Mr. Crony?

[00:12:31] Is that one for you as well? Item R-4, Resolution to Recognize the Loudoun Youth Port Laureate Program. That is for approval and presentation. And Mr. Crony, you will be down front with me for that. And item R5, resolution to commemorate the 75th anniversary of the Junior Women's Club of Loudoun.

[00:12:52] Mr. Crony, if you're already down front with me for the other proclamation, I want you to just hang out down there with me for that one as well. Item R6, proclamation to recognize June 22nd through 28th as Pollinator Week. That one's for approval only.

[00:13:09] Item 2A, appointments and confirmations. Item 3, Administrative Items Report of June 2nd, 2026. Item 4, Request to Terminate Supplementary Declaration of Covenants and Restrictions Library for the Ashburn Library property.

[00:13:26] Now, this one is the one I'm putting out. Item 5, it's the High Voltage Direct Current Transmission Infrastructure Study Proposal with the addition of asking staff to prepare and transmit a letter to Dominion Energy. Virginia requesting additional background and information regarding the rationale and justification for selecting the Mosby substation as the terminal substation for the proposed heritage to Mosley high density direct current project detail plans and detail plans where I could be extended to data center alley and connected to the rest of the grid upon receipt of the minions response.

[00:14:05] that response would be distributed to the entire board. Item 7, ZOAM 2026-0003, Chapter 10, Procedures and Placards. Item 9, Response to Board Member Initiative under Unison Historic Design Guidelines.

[00:14:23] Item 11, Board Member Initiative, Requests for Use of Space and Free Waiver within a Loudoun County Community Center by a Specialty Adaptive Resource Club, are also called SPARC. That is the consent agenda. I will make a motion to approve the consent agenda.

[00:14:39] Is there a second? Motion made and seconded by Vice Chair Turner. Discussing the consent agenda, first of all, I do want to say that I'm not quite sure what happened with SPARC this year. In the past, when they have applied for the competitive grant process, they've reached 75% threshold and higher and have usually been funded almost to the amount that they requested.

[00:15:07] I don't know what happened this year. So what's happening right now is they're moving back to where they were before, and they're requesting a free waiver, which is, I don't remember the amount, but it's a fairly small amount to move back. SPARC actually is the nonprofit that addresses the needs of people with disabilities, but usually fairly severe disabilities after that person reaches adulthood.

[00:15:37] We don't have that many, almost no resources in the county for people who are past age 22. So SPARC addresses those needs. When we get next year to the discussion on grants, I may actually ask staff to look at SPARC as a core grant opportunity because as far as I know, there's no other nonprofits that do what SPARC does.

[00:16:04] And so I might ask that at that time. I also want to say, item number nine, thank you for everyone who worked on the Unison Historic District. Thank you. Heidi Sievertritt does a lot of work without getting a lot of praise.

[00:16:23] And so I just want to say that to her and to everyone who worked on that item this week. Thank you so much. Other discussion on the consent agenda. Mr. Crony. Thank you, Chair Randall. So I wanted to speak about item number five. So this is about an 185-mile underground, 525-kilowatt HVDC transmission link.

[00:16:48] So, again, it's underground. It's going to Mosby, the Mosby substation in my district down near the Bull Run. And the plan is to then convert it to AC and bring it overhead. And this letter would ask for information about why the line is ending at Mosby substation and not ending at Data Center Alley, where the final termination point is, where the power is needed.

[00:17:19] There are no data centers down near the Mosby substation. In fact, that's the transition policy area. So I think the county needs more information, and this will be an opportunity to work with Dominion on getting this information. And hopefully there will be a willingness to discuss keeping it underground and then doing a transition station somewhere in Data Center Alley where it's industrial and commercial.

[00:17:51] So I look forward to getting Dominion's response. And then I did want to quickly mention number nine, the Unison Historic District Design Guidelines. So that was a request from Jennifer Dahn, the president of the Unison Preservation Society and members of the Village of Unison.

[00:18:12] And I look forward to implementing the provision of the proposed overlay district. So this is the approval of the design guidelines, and I look forward to getting a historic overlay district to preserve and protect the historic character of the beautiful village of Unison.

[00:18:33] Thank you, Chair Randall. Thank you. Nobody else. Mr. Crony, as I close, in my closing, I do have—so we talked about this last night, and I am so happy you're doing this. Thank you. I just want to be real clear, because I thought you said something last night that, and maybe I was mistaken.

[00:18:52] So is your goal, you're going to get the letter, of course, and I think we should get that information back from Dominion, absolutely. Are you asking Dominion why can't they continue the undergrounding all the way through? Or are you saying why does this power line have to go, why isn't it going all the way to data center alley?

[00:19:14] What are you actually asking? I'm asking why it can't be extended to underground, to data center alley. No, we know the line is needed. So why can't it be extended underground to data center alley? Okay, I just wanted to make sure everyone had that part straight. Okay, wonderful, wonderful.

[00:19:31] Anybody else? All right, on fail, please say aye. Aye. Any opposed? That motion will pass 603. Mr. Sains, we've talked about him already, Mr. Kirshner and Mr. Letourneau. are both working their way here.

[00:19:47] Mr. Letourneau, I think, is coming from D.C. Mr. Kirshner is, I think, coming from Fairfax. And I talked to both of them today, and they should be here. At this time, I'm going to allow a colleague the opportunity to make a statement, which will not count against their time later in the meeting when they are providing board comments and regional updates and disclosures.

[00:20:07] So if I have a colleague who might to make a statement right now, this is the time to do that. All right, seeing none or hearing none, I'm going to go on.

[00:20:23] If a colleague would like to make that statement, a statement, during their board comment time, they can feel free to do that, but it will be in the time of board comments. My voice for a cause is running late today. My voice for a cause is Equality Loudon.

[00:20:38] They're trying to get here as fast as possible, so we're going to do voice for a cause when we do that here. Supervisors, what I might probably do is take us into a closed session because just to get us into 5.30, I'll probably take us to closed session.

[00:20:54] And when we come out of closed session, as soon as we come out, I'll do my voice for a cause then. In the meantime, I am going to do my regional updates. On Tuesday, May 22nd, I attended and spoke at a COG forum on data centers. The topic was land use and siting.

[00:21:11] I discussed the long history of Loudoun, how we became the county and the country and maybe even the world still with the more state of centers and how long that took to happen and some of the zoning decisions that were made back in 2003 that led us to where we are today.

[00:21:30] It was a good and involved conversation of what I say, what I always say, which is for the decisions that were made almost, gosh, over 25 years ago, There were some things that in hindsight

probably should have been done different, but hindsight's always 20-20.

[00:21:49] I will also remind everybody and invite everybody if they'd like to come to my town hall on July 6th, which will be a town hall on specifically the item of data centers. This was not a regional event, but I did want to mention it.

[00:22:06] On May 27th, I attended the swearing-in ceremony for the new Percival Police Chief, Sarah Lombrana. She has been acting police chief for about a year. I think we all know some of the—a little bit of excitement that led to her being here right now, but we are very happy that she is the police chief.

[00:22:30] And I was surprised and heartened about how many law enforcement from all around the Commonwealth, I mean like Chesapeake and Richmond and everywhere, came up for Chief Lombrana a swearing in.

[00:22:45] It was really quite something to have a room full of law enforcement. It spoke to her and how valued she is. And so I was able to attend that. Yesterday in Alexandria, there was a memorial held for the 67 passengers that perished in the mid-air collision of American Airlines Flight 5342.

[00:23:14] Now, we all remember that tragedy. I wasn't quite sure why this memorial was being done. Well, it wasn't just a memorial. It is a memorial space for remembrance. It's a memorial space for reflection.

[00:23:30] I wasn't quite sure why it was being done in Alexandria and why it was being done at this time of the year because it's not the anniversary of the tragic accident. So I called and I talked to the mayor of Alexandria, my friend, Aaliyah Gaskins, and what she said to me was that the families of the flight did not want to have the memorial right near where the accident happened, which was, of course, Washington National Airport.

[00:23:59] They wanted it near water, and they wanted it along the flight route, but not at the scene. And although we had, for our area, we were very unfortunate to have the most people perish on that flight who lived in Loudoun County, the families didn't want to have a memorial that they passed every single day.

[00:24:20] They wanted to have something that they traveled to that was a little farther away that they could feel just very, very connected to their family member when they went. And so Don Beyer led that effort, and the city of Alexandria did that.

[00:24:36] And I was very, very, very touched by the fact that they decided to do that for— and it wasn't just for the people who perished who lived in Virginia. It was for all of the passengers. And they also had quite a few of the, no kidding, I guess close to 200 first responders who responded that day to do what they could.

[00:25:02] And so it was also an honorary moment for them as well. So, again, I'll do my voice for a call when we come back from closed session. And at this time, I'll go to Mr. Hemstreet. Thank you, Madam Chair. I've got three comments for this evening. The first is that I'm pleased to announce that Loudoun County has been recognized by the Virginia Transit Association for our transit travel training program.

[00:25:25] Loudoun received the group's Outstanding Community Program Award for the training, which provides residents with the skills and knowledge to navigate the county's transit services safely and independently. The Loudoun Transit team is available for individual and group trainings. Requests can be submitted online at [loudoun.gov slash transit training](https://loudoun.gov/slash/transit/training).

[00:25:44] Second, the county's inventory of stormwater structures is set to begin later this month. Residents are likely to see crews working near storm drains and drainage easements as part of this survey. This effort will improve the county's ability to accurately assess flood risk, support advanced modeling, and inform future land use and stormwater management decisions.

[00:26:06] The project is expected to take about three years to complete. Details are online at [loudon.gov slash stormwater inventory](https://loudon.gov/stormwater-inventory). And then finally, registration is open for the Loudoun County Public Library's Summer Reading Program, which begins June 16th and will offer nine weeks of free, family-friendly activities and entertainment, as well as grand prize drawings for those who complete all 10 challenges in their age group.

[00:26:31] The program is open to all ages and reading levels. More information, including a link to register, can be found at [library.loudoun.gov slash SRP](https://library.loudoun.gov/srp). Those are my comments this evening, Madam Chair. Thank you, Mr. Simpson. If you really want to do four comments, we're fine with that. You can go back to four if you really want to.

[00:26:49] Okay, supervisors, we're going to do this now. We're going to read in the closed session number two because we think we can do that pretty quickly. When we come back out of closed session, if my voice for a cause is here, and I think that they will be, we'll go on and do a voice for a cause. If we're still not at 530, then I will take up item number, the Juneteenth item, because we don't have any speakers on that, and I have not heard any.

[00:27:12] I have not heard any pushback or opposition to that. And then we will do comments, we will do proclamations and comments. I will say, supervisors, we're going to do the VCC item after we get public comments because at the last meeting, which was so full, when I called Mr. Kuhn and asked him could we hold the VCC item to this meeting only because the agenda was so packed,

[00:27:42] He was kind enough to say yes on that, and so I told him if we let us hold it, then we would move that agenda item to the top of the action items for this time. And so we'll make sure Mr. Kirshner's here because it is his district, but we'll move the VCC item up just because I'm just going to keep my word because he was gracious enough to let me pull off the agenda last time.

[00:28:09] Having said that, Mr. Turner, would you like me to be in closed session? I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to Section 2.23711 of the Code of Virginia to consider the disposition of a parcel of property for public use in the Sterling Election District.

[00:28:27] The motion was made so taken by Ms. Glass. The only discussion I have on that is we do have three colleagues off today is if those colleagues arrive and they come into closed session, I will note what time they come into closed session.

[00:28:42] I'll report that back out when I come back out here. And when they affirm, they're going to affirm to what they heard from the time they stepped into closed session. So all the people say aye. Aye. Any opposed?

[00:28:55] That motion will pass 6-0-3, we're in closed session.

[00:59:00] We are back. Mr. Turner, would you please read us out of closed session? I move the closed session be adjourned, that the Board of Supervisors reconvene to its public meetings. The minutes of the

public meeting should reflect that no formal action was taken in the closed session and further move that the resolution certifying closed session be adopted and reflected in the minutes of the public meeting.

[00:59:18] Motion made and seconded. Discussion on the motion. I will say that Mr. Sayings joined us by phone at 5:30 during the meeting. He will – I'm sorry, 4:30, thank you, during the meeting. He will affirm when he comes into the room that no other action or no other statements were taken while we were in the meeting. So all in favor, say aye. Aye. Any opposed? That motion will pass 603. And would everyone please affirm? Affirm. Affirm. Affirm. Affirm. Affirm. And I

[00:59:54] affirm as well. Thank you, everyone. As I said, we're going to go to my voice for a cause this evening. And the voice for a cause this evening is Equality Loudon. Founded in 2003, Equality Loudon is a non-profit organization that builds community, promotes inclusion, and provides education to support the LGBT+ equality in Loudoun County.

[01:00:15] Equality Loudoun envisions an inclusive community where LGBT+ people and other marginalized groups are fully embraced by active allies that can live safely and openly. Maria Garnello, there we go, you joined us this evening.

[01:00:35] Thank you for coming in. I have a couple questions for you. What do you all have planned for Pride Month this year? So I was just saying it's day two of Pride Month, and I'm already exhausted, which is a good sign. It means we've got a ton going on. We've already started this weekend celebrating, and this coming weekend, as probably you all know, is the Pride Festival that Loudoun Pride is putting on.

[01:00:58] we will be there with bells on. And thank you all for those of you who are going to join us as well. We have this Friday. So I have a little gift bag for folks. It includes a little calendar of some of what's going on. It's already out of date because more events have been added. But we have Leesburg's flag raising on Friday. We have also on Friday, we're doing an education session with Ashby Ponds. Uh, we have, we serve, uh, they have their, they have a whole pride parade. It's beautiful. They, they have a wonderful event, um, that we'll be at, uh, later in the month,

[01:01:34] we do a shop with pride event with women giving back for young people to find affirming clothing. So pride knows no age, pride knows no district, pride knows no end, uh, things continue beyond the end of the month as well. So, um, would love for you all to grab that calendar and join us for anything you would love to partake in and joy and find joy in. Uh, we do have a calendar on our website, eqloco.org slash calendar, and you can find our events as well as some of our amazing partners events as well. We're going to update your calendar because I've shared it before and I'll share it again once you update it. How's that? Absolutely. Um, what kind of, what type

[01:02:12] of different programs, um, does the quality allowed and offer to county residents? And one of the reasons I'm asking that is because later on the day I will talk about PTSD, but in getting my comments together for PTSD, I did look up the fact that 35% of LGBT plus youth consider suicide.

[01:02:36] 10 to 15% attempt suicide. Those numbers are stunning and tragic and outrageous, and we have to fix this. We have to work on this. So what kind of programs do you all offer? So it's wonderful that you make that point about young people in particular and how much support they need.

[01:02:57] We're actually in the midst, through a grant from Changing Our Tomorrows, of updating our policies and procedures so that we can provide more youth support and more opportunities for youth. I'm going to mix and match some of my thoughts because one of the things that I'm particularly passionate

about, and I know our organization is, is the fact that social isolation is driving a lot of that. Certainly there's the fact that LGBTQ plus folks are marginalized and stigmatized. So there's that piece that feeds into trauma and PTSD related issues, suicide.

[01:03:31] But there's also just the fact that I spoke at another pride flag raising earlier this week. And one of the things I made a point about is that we don't know our neighbors. We spend our evenings doom scrolling, even more so with the kiddos. They're seeing other people's wonderful, perfect lives that are filtered through the social media portals. And we don't have those relationships, and that leads to a lack of coping that we really need. And so our organization, the very first pillar of our organization is community building and creating spaces. Some of

[01:04:08] those spaces may be digital. Many of them are in person. Some of them are big, like joining us at a festival, and some of them are intimate. On our fourth Fridays, we have game and crafting nights that are just small opportunities. We join our partners to do drag brunches, and we join our partners to have small celebrations. And then we also, in November, we have a recognition of Transgender Day of Remembrance and the people that we've lost.

[01:04:36] So pride is about celebration. It's also about acknowledgement. And so that's really where we're coming from is about creating spaces for people to gather, to connect. If there's any way that I would speak for myself, I think I speak for many on the board also who, when you see numbers like that, that 35% of people are considered committing suicide, I don't think there's anyone who believes that number is sustainable or should sustain.

[01:05:07] In 2026, what do you see as the biggest issue facing the LGBT plus community? So I think there's no elephant in the room of national politics and the challenges that folks face. The climate is one that generates fear, and that ties right back into that social isolation.

[01:05:27] If you're afraid to go out, you're afraid to connect, you're going to have more mental health. and substance use risks. So I think that's all interconnected as a society. We all need to know each other and do better. And I think a huge part of that is visibility, is this opportunity that you've all kindly offered me, that the posts that you all make during Pride Month and otherwise, that the more folks see that it's normal, it's welcome, it's belonging. And a lot of our programs are about inclusion and belonging. We do a lot with the chamber and with the businesses and faith

[01:06:03] entities and mental health entities in the county to make them more inclusive, to give them education and training they need to upskill themselves around the needs of LGBTQ folks. And we actually maintain, we call it our Equality Allies Program, which is a vetted list of partners in the county who have made that effort to create inclusive environments.

[01:06:28] So if you're little, you know, you've got a kiddo who you want to get their haircut and you want to do it in an affirming place, you can search our website and find salons that are welcoming. That's great. And then the last question is, what is the best way to get involved? So there's lots of ways to get involved.

[01:06:44] We would love bring your skills, bring your passion, bring your visibility and your allyship. So we always have opportunities to host trainings, to host celebrations. We want to share the joy. We want to suck your joy and share our joy with everybody.

[01:07:03] We love volunteers to help us do the work, education, inclusion. We have spots on our board, so we'd love to send that message out into the world as well. And I can't say everything right now, but we

anticipate making an exciting announcement later this week about those gathering spaces that we might be able to make available.

[01:07:26] That's wonderful. So we're looking forward to that. And then there will be lots more opportunities. Well, first of all, you are, thank you. You gave so much information in a short period of time, which is really what A Voice for a Cause is all about, is giving that information. And you are working with, you know, a population that doesn't always feel seen, doesn't always feel heard, and that doesn't, more and very importantly, always feel safe, either emotionally safe or spiritually safe or physically safe.

[01:07:53] So I don't allow clapping in the boardroom very, very often, but I certainly do right now. So thank you very much for what you're doing. Thank you so much. Thank you. Okay, supervisors. So we are going to go on and do a couple of action items because we can, because we are a little bit early.

[01:08:13] We're doing great as far as our time. And so let's go on. We'll go on and do the, if you don't mind, the Juneteenth item right now. I know we don't have anybody on the speakers list that was going to speak on it. We had one person who was going to come in and watch the item, but there's no one who was going to speak on the item.

[01:08:30] I will let that one person who was going to speak on the item know that um it's already been done if you grab uh one of the red sheets of paper uh you got the motion today i'm going to read the motion and then we'll go through it just a little bit okay it's on the red sheet of paper um one of the red sheets of paper i move the board supervisors direct staff to grant an allocation of twenty thousand dollars from existing fiscal year 2026 appropriations to the loudon freedom center for 2026 juneteenth celebration i further move the board direct staff to request that the Freedom Center provide a complete report on the use of those funds.

[01:09:08] I further move the Board to send to the Finance, Government Operations and Economic Development Committee a discussion about creating a policy on contributions to homeowners associations, community organizations, and nonprofits for countywide activities. I further move the Board direct visit Loudoun to inquire with, I'm sorry, direct staff to inquire a visit Loudoun on the process for allocating funds for countywide events, festivals, cultural events and celebrations. Motion made and seconded by Supervisor Glass. So, oh, they are right on time. Ms. Bishop, I'm sorry, Thomas, you're not going to be able to speak on this issue because

[01:09:47] the speaking slot's filled up, but we're having this discussion right now, so have a seat. And here's the discussion. You walked in right on time. So, Supervisors, when we did the \$80,000 to Brambleton. What I said at that time was other organizations are going to come to us, other HOAs are going to come to us, and that is exactly what happened. Now, I voted against that \$80,000, and I stand by that vote, but I also said that if I ever get a phone call for this item right here, I was going to bring it to the board, and so I am. I do think that, especially

[01:10:22] if it's a county-wide activity and we plan on giving money, because one of my issues with the Brambleton HOA is I realize that more than people from just Brambleton came, but it was mostly one area of the county, whereas Juneteenth is a county-wide event. So I do believe that if, you know, I don't know that I want to get into doing this, to be honest. I don't know that I do.

[01:10:50] But if we do, we have to have a policy for it. And I think that policy has to go to the Finance Operations Committee to discuss what that policy might be and what that policy might look like. Just to

give a little bit of background, Juneteenth was being held at Clotmore.

[01:11:10] It wasn't being attended very well. And so it's been moved to Leesburg. And so all the Juneteenth activities right now are in Leesburg, which makes it hard because it's not sitting in the county. Juneteenth, for me, it is no less nor no more important than Fourth of July.

[01:11:28] And as we gave \$80,000 for a Fourth of July event, I don't think this is, I think this is an appropriate use. But I also wanted to put some guidelines around it.

[01:11:45] Finally, I will say that Ms. Erickson, Visit Loudon, they do do grants for these type of events. They didn't do one this year. Ms. Erickson said that they didn't apply, and she's not quite sure why.

[01:12:03] And so I want to bring her in, have that discussion with her about how her application process looks, how her grant process looks, to make sure everyone always knows how to apply for those grants, what it looks like, and everyone gets the same help that they do in our competitive grant program.

[01:12:21] So that's why this motion reads like this, because my goal is to put some stipulations, because I think that after what we did in Brambleton, we're going to get more organizations coming to us. And so we can either say no, or we can say how we're going to do it.

[01:12:40] And I just have a feeling we're probably not going to say, we may say no, but if not, we're going to say how we're going to do it. And so I think we have to make some decisions on how this is going to look. That's this motion. Ms. Bricksman? Thank you, Madam Chair.

[01:12:56] I'm going to support the motion today. I just have a couple of questions, perhaps for you or for staff. Is the \$80,000 that went to Brambleton that we approved last year, is that ongoing? part of our budget or was that just once that's ongoing part of our budget miss yeah can i can i do a clarification through you sure so it didn't go to brambleton it went to parks and rec so we moved so brambleton used to do i just want to know if it's in our base budget or not it is our

[01:13:30] base budget but it's parks and okay thank you um and then visit loud and madam chair had a grant program but they didn't do their grant program this year no they no they have a grant program there wasn't for whatever reason there wasn't a grant application made this year by who by by juneteenth okay um by by the berg family reunion more more precisely oh the berg family reunion did not apply but in the past the berg family reunion has been and received and received and has received

[01:14:07] funding right okay um okay and as far as we know has the freedom center ever applied before the freedom center has been doing this i know how long they've been doing have they ever applied before they have not okay um i agree that we should have we should have some kind of a process because um you know we for kind of this very reason we did the competitive grant process application for our non-profits and i do agree that we should look at doing something like that or Or partnering with Visit Loudoun somehow to do something like that.

[01:14:41] I'm not too familiar with their program. I know it exists. And happy to have it come to Finance Committee whenever staff thinks it's appropriate to come to Finance Committee. So, okay, thank you.

[01:14:59] I'm happy to support. Thank you. Thank you. Mr. Crony. Thank you, Chair Randall. And I'm happy to support the Freedom Center on their Juneteenth celebration. So I do want to make it clear that it didn't go directly to Brambleton.

[01:15:14] Brambleton used to fund the Hanson Park fireworks, and they had bands and, you know, different vendors and food trucks. But they asked for the county to step in and take it over because it became a county-wide event with lots—I mean, it was jam-packed.

[01:15:39] I went and, you know, people come from all over that area to watch the fireworks at Hanson Park. So the money was to add it to Parks and Rec to their schedule of July 4th celebrations. So it didn't go directly to Brambleton.

[01:15:58] My only hesitation, Chair Randall, with this would be homeowners associations because they're not nonprofit organizations. I think, you know, the Loudoun Freedom Center is a nonprofit. I know that. But I question whether we should be funding homeowners associations because everybody does a different celebration.

[01:16:20] So I just have a question about that. This doesn't say we would fund them. This would say we go to the finance so we can have the discussion of what should be and what shouldn't be. That's what this motion is. That part of the motion is sent to the finance committee to have a discussion. Have the discussion. Okay, that's my only hesitation is the homeowner associations because there are so many homeowners associations.

[01:16:37] Yes. Go ahead. Do you have something, Mr. Hemstreet, through the chair? Yes, Mr. Hemstreet. I'm sorry. I was just muttering out loud. But the board can only provide funding to nonprofits, so you would not be able to provide funding directly to an HOA.

[01:16:53] Okay. Then I'll take that. I'll remove HOA from the discussion. Then I'm happy to support. Ms. Umstead. Thank you, Madam Chair. I think one of the important lessons well known to a number of the members of the board about Juneteenth is that it completes Independence Day celebrations in the country.

[01:17:23] And I view it as very similar to the 4th of July parade in Leesburg or any other 4th of July celebrations around the county. And as we have supported a 4th of July celebration through Parks and Rec in Brambleton, I think that it's right that we support a Juneteenth celebration that is countywide.

[01:17:52] So I will support. Thank you. Mr. Turner. Thank you, Madam Chair. I just echo a lot of the comments we've heard so far. I can support a general fund to Parks and Rec to support Independence Day celebrations for the county, which would include a Juneteenth celebration. I completely agree with that. I'm going to vote for this because I voted for the Brambleton money, and Chair Randall rightly warned this is coming back. I don't like that we are essentially setting up a shadow

[01:18:27] structure parallel to the nonprofit grant process. And I think this motion will effectively ask staff let's nail this process down and let's codify this process better than what it is right now. I'm very antsy about individual nonprofits coming to us outside the system to ask for contributions. But fair is fair, and I'm happy to support this. But I also am supporting the motion because it's specifically asking staff to come up with a process, and I support that. Thank you.

[01:18:56] Thank you, Mr. Turner. And that is why I'm doing it exactly like this, because that's my concern, too. We got away from doing nonprofits like that, and we should stay away from that. And yes, it was through Parks and Rec, but it was still put forward or brought to us initially by an HOA, and it went to Parks and Rec, but it was bought by an HOA and was \$80,000.

[01:19:18] And I was told that it was mostly for a band. And that was, I still think it was an outrageous vote. And I warned you all then that we're going to have other people come to us. And however way they get to it, it's going to happen. This is not going to be the last one. It's going to happen.

[01:19:36] And Parks and Rec doesn't even have this much bandwidth to be able to do all this themselves about what could hit. So I thought it was a bad idea then. I didn't vote for it. And I told you all I was going to come back with this. And so, you know what, here we are. But I do think that we need to discuss how we're going to do these.

[01:19:52] And I think that if we do them, they need to be countywide activities. Juneteenth is a countywide activity. Yes, it's just right now, which is located in Leesburg. My heartburn all the time is that there are not more people who attend the Juneteenth activity who don't look like me because Juneteenth is supposed to be something for everyone to attend.

[01:20:18] And so hopefully that will happen. So that's why this is one time when then let's go to finance, let's work this out, let's see how we're going to do this, let's talk it through. And again, whether it go, I hear that it can't go to an HOA, But this stuff will come through HOA just like Brambleton did.

[01:20:38] It came through an HOA. And so that, to me, there's some semantics there. And I don't particularly like the semantics games that we're playing. And yes, other people in Brambleton that don't just live in Brambleton go to that event. But everyone goes to the Juneteenth event throughout the entire county, throughout the entire county.

[01:20:59] So I think we have to figure this out. I also will say that, you know, for years and years and years and years and years, this county gave money to Loudon Museum, right? I don't quite know, you know, I don't know how we've decided over the past years.

[01:21:21] Or maybe I do know who gets money and who doesn't. But I do know that I don't believe it's always been, I don't believe every voice has been heard in how we distribute county money in this county. And I think that maybe a discussion in finance will help us understand how we hear all the voices in the county.

[01:21:41] I'll say it like that. All right, so I made the motion. Thank you for seconding the motion. All in favor, please say aye. Aye. Any opposed? That motion will pass 603. Thank you very much. It is not yet 530, so we still cannot do comments yet.

[01:22:05] So let me see what else we can do real quick here before we get anywhere else. We can't do proclamations. That's 530. Madam Chair, I think maybe the gun violence awareness folks are all here. Everyone?

[01:22:21] Is everyone here that needs to be here? Is nobody else is coming? You're all here? Yes. Okay. Well, then let's grab the groundless proclamation. By the time we get that, we'll probably be able to do all the other ones, too. Because you're going to go down for me for the last two anyway.

[01:22:39] Everyone who is here for the Moms Demand Action Gun Violence Prevention Proclamation,

[01:23:25] we often say gun violence proclamation, like no, gun violence prevention proclamation, come on down. The prevention board is really important at that moment. I don't know who has the proclamations. Let's actually find the proclamation.

[01:23:43] Come on on both sides. Thank you for everything. Yeah, I think you're on it. I don't know. I don't know who's on it. Hi, how are you?

[01:23:58] Of course, of course, so long. Oh, this isn't going to dance.

[01:24:18] Okay. I think, of course, did the mom look at it.

[01:24:40] Jason, are you acting? Yes, sorry. Okay, all right, which one? I'm acting in orange. He's like, yeah, I'm going to force these colors of an eye, right? That's very true, there are quite a few different ones I have on right now, that's so funny.

[01:25:00] All right, well, as always, thank you everyone for coming this evening, we appreciate it, hoping that we have a day when we don't need to be here, hoping we have a day where we don't have a mass shooting like we had yesterday, seven passed away in a murder-suicide, hoping there's a day that I don't have to read the gun violence archive statistics from the dais, but here we are, and we will continue to fight, right? Okay, I will read the proclamation.

[01:25:34] Whereas annually more than 44,000 deaths occur due to gun violence, nearly every day 130 people in the U.S. are killed with guns, and more than 200 are shot and wounded. And whereas globally the U.S. ranks in the 93rd percentile for overall firearm mortality, lending to the tragic fact that firearms are the leading cause of death for children in the U.S., and that people in the U.S.

[01:25:57] are 26 times more likely to die by gun homicide than people in other high-income countries. And whereas Virginia has the 33rd highest rate of gun deaths in the U.S., with 1,226 gun deaths occurring every year, that's a rate of 13.9 deaths per 100,000 people, a crisis that cost the state \$14.2 billion annually, of which \$288.3 million is paid by taxpayers.

[01:26:25] And whereas counties across the nation, including Loudoun, are working to end senseless gun violence and protect public safety with evidence-based solutions in partnership with violence intervention activists and law enforcement. And whereas June 5, 2026, on June 5, 2026, people across the country will honor the lives of gun violence victims and survivors by wearing orange in tribute to the gun violence awareness campaign commemorating the life of Hydea Pendleton, who was tragically shot and killed at the age of 15 in January 2013.

[01:26:58] Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim June 5th, 2026's National Gun Violence Awareness Day in Loudoun and affirms its commitment to reduce gun violence and pledges to continue encouraging responsible gun ownership to keep our families and communities safe. So, thank you. Ms. Umstead, you're the only, come down.

[01:27:29] Um, and I will turn it over to my good friend Carrie, if she would, uh, Kidwell, who is the Loudoun lead for Moms Demand Action, who I am incredibly proud of for all of her work and activism in the community, since I've known you for nearly two decades now, and I've watched you grow into these roles and I'm extremely proud of you. So some comments? Such a good cheerleader. Thank you. Then thanks for having the proclamation and having everyone here. We usually would be seen in red. We have our Moms Demand Action shirts. This is special for Wear Orange as she mentioned this time of year. We'll

[01:28:07] be at Pride on Saturday where we do for our Pride weekend to support the community. We do a big disarm hate commitment. A lot of our work we do if if you're ever interested in joining us, we have mothers and others, as you can see.

[01:28:23] It's not just for moms. Everyone's welcome to work on this issue together. We do a lot of secure storage, trying to make sure the guns are out of the hands of children, as Julie mentioned, firearms are the leading cause of death of children in America.

[01:28:38] So a lot of that is making sure that they are locked up and unavailable. And we also do a lot of education about the red flag laws in Virginia, which means that firearms can be temporarily and legally removed from someone who might be a harm to themselves or others, and another way of reducing risk of suicide and other incidents.

[01:29:01] So that's something we can do education about. So if you're interested in any of that, on MomsDemandAction.com, we have events, and you can find us locally, and we would love to have you join us. And thank you. Very briefly.

[01:29:28] I wrote a paper in my sophomore year in college asking for much more aggressive gun control legislation in this country. That was 1972. We are now 54 years down the path, and the carnage is demonstrably and significantly worse than it was 54 years ago.

[01:29:44] We have to do something about this. Thank you. I would also remind everyone, and I know you've said this and all you have said this, Moms and Men Action is not a partisan organization at all. You're a completely nonpartisan, not even bipartisan, you're a completely nonpartisan organization.

[01:30:03] And so much of what you do is, as you said, prevention and education. And I can't imagine anyone who doesn't believe or wouldn't believe that more prevention and education to reduce gun deaths wouldn't be appropriate. All right, take a picture.

[01:30:21] She's going to do the proclamation for our youth poet laureates, if they would come down, please.

[01:31:47] So Connie has made this one of her annual proclamations that she does, and I love it. And I will be happy to hand these out to people while you... Okay, read it, yeah. And Matt can come too. Matt, do you want to come? Percy taking pictures.

[01:32:03] Okay, he's great. Okay. Okay, great. This is a proclamation for the Loudoun Youth Poet Laureate Program.

[01:32:20] The Loudoun Youth Poet Laureate Program serves as an inspiration for the youth to use their voice as a means for change while teaching beauty within poetry. And whereas the Loudoun Community Press sponsors the program, which is open to ages 13 to 19 in Loudoun County and surrounding counties, and whereas the Loudoun Youth Poet Laureate program had their annual ceremony on April 18 2026 with Jasmine Arson Arson Arson did I get right

[01:32:53] Arson perfect winning first place for her work of without a first place for work a thousand dollar scholarship and her poem being published with the national youth poet laureate program And whereas Amanda Pearl Omegi, Gia Metna, Gia, Gia, that's Gia, Meta, right?

[01:33:22] Okay. Rebecca King, Pranavi Chalyukuri, Nisant Varala, is that you or no? Okay. and T. Visha Shiam, being named Loudoun Youth Poet Ambassadors.

[01:33:45] And I apologize about the names. I'm doing the best I can. And whereas the Loudoun Youth Poet Laureate Program teaches the younger generations to speak out, not only themselves but others, so they can learn the true power of their voice and the impact they can make when speaking out.

[01:34:03] Now, therefore, be it resolved that the Loudoun County Board of Supervisors hereby recognizes that Jasmine, Arasandi, and the Youth Poet Laureate Program for their exemplary contributions to their commitment to poetry and the younger generations.

[01:34:23] So I want to go right to Jasmine, who's going to give us her poem. So whatever poem you want to read, Jasmine, congratulations for being our Youth Poet Laureate. And I want to give a call out for Jessica Monti who puts this together every year. You are the leader of making this happen. You know, we have a comprehensive arts plan now, so Jessica is really leading the way on bringing literary arts to our community.

[01:34:56] So Jasmine, here you go. Hi, just to introduce myself again, my name is Jasmine Arisandi. I'm currently a junior at Briarwoods High School. I just came straight from there, so apologies if I may look a little disheveled. But with the end of the school year, I think it brings about a lot of feelings of nostalgia and sentimental emotions, so I just wanted today to share just a small poem that sort of reminisces on, you know, that fleeting childhood nostalgia through one of the most sentimental senses. So it's called Sweet Hauntings.

[01:35:31] Fragrance, like desire, is an act of inquiry. Both linger in the space between presence and absence. It seizes me, a philosopher's hand at my throat, and begs the question, what remains when all else fades?

[01:35:47] My mother's chidings were citrus rinds, I tasted sunbursts in her arms. My innocence was weaved into whipped cashmere, stitched into dresses I never wore, too light to keep, too heavy to let go. My father's laughter lingers on my skin like cherry vanilla.

[01:36:04] Fragrance, like desire, is an act of return. Both circle back unbidden to places once buried and reminds me what remains when all else fades.

[01:36:24] - Anybody else wanna read a poem, no? - Hi there, my name is Gia Mehta, and I'm a junior at Thomas Jefferson High School for Science and Technology.

[01:36:42] And should I say a poem? Okay. With the end of junior year and the beginning of senior year coming up pretty soon, I'm reminded of how initially was coming into my freshman year of high school and this is a poem that I wrote from around that time it's titled failure a thousand colors yet none of them are captured by my brush a million words yet none of them flow just quite right under my pen paint splatters and watercolors bleed while words mix match and mash into soup I don't quite know how to make things work

[01:37:20] or how to fix my mistakes from stew but my mom says to cook with my heart and to leave precise measurements at school. Mistakes in food are not mistakes when the final dish still tastes good. Would you like to say anything?

[01:37:42] Just thank you to all the students that participated in the program this year. And we will have workshops this fall with two Virginia poets who will be mentoring our youth poets. And those will be free and open to the public and offered at the public library.

[01:38:01] So, again, thank you to all the young people who participated in the program. Thank you to you. Well, the work you do, not just for this, but like through the year, but especially with young ladies, it's just phenomenal. We've all watched it.

[01:38:16] We've all seen it. We all know it. And we appreciate you and all that you're doing. So, yeah.

[01:38:24] Everyone here, you're staying with me, for the 75th anniversary of the Junior Women's Club of Loudoun.

[01:39:47] Please come down. How y'all doing? Very good. It's like this night of powerful women. It is. A couple of you can come on this side.

[01:40:05] So we've done, my office spent the day doing some research about you all. It was very, very, very impressive. And wow, you guys have done so much for a long period of time. And so I'm going to read this and if you want to like the comment, you can, okay?

[01:40:20] The 75th anniversary of the Junior Women's Club of Loudoun. The Junior Women's Club of Loudoun, or JWCL, was founded in April of 1951 and has served the Loudoun County community and residents with distinction for 75 years. And whereas the JWCL has demonstrated unwavering commitment to improving the lives of county residents through volunteer services focused on awareness and prevention of domestic violence and sexual violence, children's advocacy, arts and culture and health, wellness, environmental stewardship, and civic engagement.

[01:40:55] And whereas JWCL has consistently supported vital community organizations, including Keep Loud and Beautiful, Mobile Hope, Loud and Hunger Relief, the Ally Advocacy Center, Upside Down Moments, Laws, Veterans Moving Forward, Loud and Literacy Council, Backpack Buddies, and numerous other nonprofits, and whereas in 2025, JWCL members contributed 591 volunteer hours, 40 projects,

[01:41:27] and donated \$53,471 in goods and services towards several nonprofits and public projects and volunteer initiatives throughout the year. Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby commemorate the 75th anniversary of the Junior Women's Club of Loudoun.

[01:41:50] We have so many organizations in Loudoun County doing such good work. But I will say the span of time and the span of work you all do, and I got to tell you, you all are not choosing easy things to do.

[01:42:06] I mean, some of these things that you're working with domestic violence victims, working with Mobile Hope, so for unhoused youth, you're working with advocacy and being an ally. These are hard things you guys have chosen. You're not choosing the easy life here to help. And so it's amazing.

[01:42:23] We appreciate you. I say that all the time that our nonprofits are our force multiplier because you all do things and the county government really just cannot do. So thank you. And who would like to speak? Hi everyone, my name is Rachel. I'm the president of the Junior Women's Club of Loudoun or JWCL. It's a little acronym that we go by. So she explained us perfectly. We do community service throughout Loudoun County and we kind of just go where we're needed. If anyone needs our help, they'll come to us and they'll say, hey, can you help us with this?

[01:42:59] And all of our members are so enthusiastic and so passionate, which it makes me so proud to be part of this organization. I'm sorry. So 75 years is just amazing for women just making an impact in our communities.

[01:43:22] And I'm so proud to be a leader of this organization. So thank you so much. Thank you so much. Thank you so much. Anybody else? Oh, you guys scared to cry too, which is fine if you do. There's no problem at all because you guys are doing some powerful work. Yes?

[01:43:37] Okay. Sure. Thank you, Rachel. We are very proud to have her as our president. My name is Trina Bebahani. I'm a former president, two times over, of JWCL over my almost 18 years in the club, so not a long tenure of 75 years. But we're very thankful to the Women's Club of Loudoun who helped to found us in 1951.

[01:43:56] So we are not the only organization here. We're also part of the General Federation of Women's Clubs, which is one of the oldest and largest all-women volunteer organizations. So we are but one group that is doing amazing work across the country and really across the globe. So it's really, as Rachel said, empowering to be part of such a large group of people and a group of women who are doing amazing work across the country and across the world to make lives better for everyone.

[01:44:22] So thank you for recognizing us, and thank you for letting us be part of this community. Thank you. And, my gosh, women. Yes. All right. Let's take a picture.

[01:44:33] We're not going to take a 15-minute break.

[01:46:16] I understand what you're asking me now. I had just said that we haven't had a break, and we were going to take one before public comments, but we're not going to take a break for 15 minutes. And so, we might as well do the second closed session, which is in whose district before we do this again?

[01:46:31] Yeah, we've done the second one. one. Number three, so it is, just a second. Yeah, it doesn't say which district it is, Mr. Reggie. Yeah, but we may not need number four. Number three is Algonquian. Number three is Algonquian. We may not need number four. Okay, so let's read into number, how long

[01:47:10] Mr. Rogers and Mr. Rogers speak, how long might this take? This will be, we should be done in 15 minutes. Okay. Mr. Turner, will you read us into closed session number three, please. Yes, ma'am. I move the Board of Supervisors recess this public meeting and enter into closed session pursuant to Section 2.23711A7 and 8 of the Code of Virginia to consult with legal counsel pertaining to the specific legal matter to remove the structure and actual or probable litigation regarding the code enforcement matter requiring the legal advice of counsel. Motion made and seconded. And I will say again that if any of our colleagues join us, joins us while we are in

[01:47:48] closed session. I will note the time that they come in and when we walk out and affirm, they will only affirm for the time that they were in closed session. Supervisors, we are in closed session. I'm sorry. I'm able to say aye. Any opposed? We are in closed session of 6-3. When we come out, we'll do public comments and then we'll do VCC in that order.

[01:59:53] Hey everyone, we're going to read out of closed session.

[02:11:46] We have not had a break because you cannot take a break when you go to closed session. So we're going to read out of closed session and then take a 10-minute break and then come back, do public comments, and then do VCC right after public comments. But we have to take a break because we're not going to be able to sit here for the next two hours without a break at all. At least I'm not. So we're going to do that right now.

[02:12:09] So we're going to read out and then take a break because we were not on break before we were in closed session. All right. Is everybody back? Okay. Mr. Turner, will you Please read us out of closed session. I move the closed session be adjourned, that the Board of Supervisors reconvenes this public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the

closed session, and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting.

[02:12:35] Motions made and seconded. Who seconded the motion? By Ms. Bricksman. Discussion on the motion. Seeing none, long-fail, please say aye. Aye. Any opposed? Would everyone please affirm, Ms. Bricksman? Affirm. Affirm. And Madam Chair, I affirm I wasn't here when we went, but just for clarity of the record.

[02:12:54] You were there when we started. I was arriving when we were reading the closed session, so I was there for the whole meeting. You were in the whole closed session. You did not read in the closed session, but you were there for the whole closed session. I affirm. Okay, wonderful. Thank you. I affirm. And I affirm as well that vote will pass 6—I'm sorry, 7-0-2.

[02:13:10] Mr.—what are these two people's names? Mr. Letourneau and Mr. Sainz should be here soon. See, this is why I need a break, should be here very soon. All right, we are going to take 10 minutes.

[02:23:13] Okay, okay, I think we are good.

[02:23:23] Supervisors, if you can make your way back to the dais, if you're not up here, if you can make your way back to the dais, I'd appreciate that. Okay, we are back, and I need all the supervisors to make their way back to the dais. Please, thank you.

[02:23:41] Hello, everyone. Okay, we're going to start public comment, and I would just really quickly go over the rules of the room. the rules of the board, and I will respectfully ask everyone to adhere to the rules. You will have three minutes to speak. You can go to either podium. Either podium is fine. You can see the timer on the podium. When your time is up, I'm going to ask that you yield the podium to the next speaker. We don't allow clapping or jeering. I don't allow clapping because if I allow clapping, then I have to allow jeering. And so we don't do clapping or jeering.

[02:24:14] But you do because you can do like jazz hands if you want to show that you're positive about something or negative about something. Well not negative just you agree or you don't agree. That sounds better. I'm going to ask that as you're speaking that everyone does face forward so because when you're speaking your comments should be directed to the board and to me. So I ask that no one turns around to the audience or addresses anyone in the audience when they when they are speaking. Donnie you can stay in the room if you want to. I don't care at all about him crying. It's fine with me. But I'm going to ask that everyone face for it when you're when you are speaking it is my practice to

[02:24:52] call elected officials first just out of professional courtesy so I will do that it's also my practice to make sure that everyone who speaks first has items on the agenda and I'm going to say that's my practice and then break it right away because our first speaker who is mr. Gary Clemons the clerk of the court item is not on the agenda I'm not even sure what this item is but mr. Clemons is asked to speaking so we're going to let that happen first and I'm going to call your names like three names in advance so that you know you're coming up next okay so our first speaker is Mr. Gary Clemons

[02:25:23] Ms. Clemons are you here he's not here okay well he's on the hall no he's not here okay well he will be followed by Mayor Christopher Burtell and Councilmember Caleb Stout and Councilmember Susan Khalil in that order. Good evening, Mayor. How are you? Good evening. I'm well, thank you. Good evening, Madam Chair and Board of Supervisors. My name is Christopher Berteau, and I'm the mayor of Percival. I spoke on the topic of the zoning map amendment for the Valley

[02:26:02] Commerce Center at the public hearing on April 15th. Since then, I've heard from numerous residents of Percival and the communities surrounding this town. Every email and letter directly opposed this project and these are the people who will be most directly affected if you approve this project.

[02:26:18] I will not take your time with a comprehensive restatement of the points I made in April, but here are some of the highlights. It's impossible to reconcile approval of this project with the county's general general plan and the town's comprehensive plan for the area adjacent to the town, which calls for less intensive uses that complement the rural character of the area surrounding the town. Recent survey of residents in the surrounding areas showed 93 percent are opposed to this project. A sextuple increase in the flex industrial space over that provided inside the town of Percival is simply not needed and will lead to a hollowing out of the commercial areas of this of

[02:26:57] the town. Valley Commerce Center is itself a highly concentrated intensive use that will more than double traffic on the narrow roads adjoining the development which serve more than 600 homes in the immediate vicinity and are along the commute path for thousands of elementary and high school students, their parents, teachers, and others.

[02:27:16] The applicant has understated the potential impacts from the projected water use as these were modeled after only a 72-hour test. The timer's not running. What about the long-term impacts of the sustained water use project in this application?

[02:27:31] Also, please note that under an alternate scenario with 39 homes, the water use has been, I believe, quite overstated. Nobody fills their pool from their own well. They contract their service to a company that brings the water in with tanker trucks. Your approval would irreparably alter the rural character of western Loudoun County.

[02:27:50] An approval by this board would alter the zoning put in place to protect the residents and replace it on the request of a well-heeled and powerful applicant. I respectfully ask that you follow the recommendations made by the county's outstanding planning staff and deny the applications for the Valley Commerce Center here before you today.

[02:28:09] Thank you. Mayor, one quick second. At one point, you said something about in the town. I just want to make sure that this application is outside the town, correct? It's outside the town limits. I don't believe that I said that. Did I misunderstand you? Okay, then if I did, I apologize. Okay, thank you.

[02:28:26] Thank you. Councilmember K. of Stout and Councilmember Susan Khalil. Good evening, sir. Good evening, Madam Chair. How are you? Good, thanks. Chair Randall, Vice Chair Turner, members of the Board of Supervisors.

[02:28:45] I'd like to start tonight with a bit of nuance in our discussion about this application. Two things can be true at once. The first is that we are in need of this type of space in Loudoun County. At the same time, it is also true that this particular parcel of land is not a suitable location for this type of project.

[02:29:03] I'd like you to take that nuance into consideration before your vote this evening. The second point I would like to make tonight is about the 7690 interchange. This interchange is being built to address a traffic problem that exists today on Hearst Road and Percival Road and throughout Western Loudoun County. Today, Hearst Road is a traffic nightmare with congestion that can stretch nearly a mile during rush hour from Hatcher Avenue to Maple Avenue. The 7690 interchange, which I have long supported, is

being constructed to address problems on Hearst Road and Main Street, and I thank you, Board of Supervisors, for building this

[02:29:39] long-needed, much-needed project. However, the 7690 interchange should not be used as a justification to build the Valley Commerce Center. The 7690 interchange is addressing a problem that exists today. If you build the 7690 interchange and approve the Valley Commerce Center, you are simply trading one traffic problem for another. Residents who have long waited for relief from traffic congestion due to the planned construction of the 7690 interchange will receive relief just in time to receive a new traffic congestion problem on Hearst Road. The traffic proffers associated with this project do not adequately address the traffic concerns of the surrounding

[02:30:18] communities. In fact, the most significant traffic improvement to traffic signals will cause traffic on Percival Road to stop at a light directly under old rotting trees. This picture was taken a few short weeks ago when wind and rain caused this tree to fall across Percival Road. If cars had been stopped at a light when this happened, they would have been sitting ducks. For the safety of everyone who drives on Hearst Road and Percival Road, I respectfully ask that you deny this application. Thank you, Council Member Stout. Susan Khalil, followed by Paul McCullough. Good evening. Good evening, Chair Randall, supervisors. As a member of the Percival Town Council and a

[02:30:58] representative of our residents, I once again urge you to deny the rezoning application for the Valley Commerce Center. This project is clearly inconsistent with both the county and Percival's comprehensive plans. Extensive evidence has been submitted showing why this proposal is inappropriate for this area, while very little credible support has been offered in its favor.

[02:31:22] The developers' materials failed to make a convincing case, and residents of Western Loudoun recognized that reality. Those who choose to approve this application should understand that the public will see that decision for what it is. I urge you to deny this application and vote with integrity and honesty.

[02:31:42] Doing so would uphold the comprehensive plans created by the community for the community. Approving this application would disregard the residents who are the foundation of our town. the risks are straightforward. Approving this application could endanger a large portion of the county by placing additional strain on the water supply and increasing traffic in an area that already poses safety concerns. Any decision to move this project forward would carry serious

[02:32:15] consequences for the community. The blood of the first teen driver killed as a result of the traffic generated by this project will be on the hands of those that chose to ignore those consequences. Thank you. Ms. Khalil, I'm going to push back on that statement. The tragic death of that young woman is tragic for all of us and her blood will not be in our hands and that's a really intensive statement to make. Thank you very much. Our next speaker is Paul McCullough followed by Jamie Emery. Good evening. Good evening. Thank you, Chair Randall and the rest of

[02:32:54] the board for the opportunity to speak. I'm Paul McCullough. I've been a resident of Percival for the last 10 years, and I've worked in Loudoun County for the last 33 years. And I'm here in favor of Valley Commerce Center, and there's a couple of good reasons for that.

[02:33:11] Just quoting Loudoun County Chamber of Commerce on their website, small businesses are experiencing a wave of concern in Loudoun County. An increasing number of independent owners are

citing rising commercial rents, labor costs, and regional economic anxieties as reasons to either close, relocate, or put their businesses up for sale. This is a direct side effect of our success.

[02:33:36] We've done great building the data center infrastructure and economy in Loudoun, but that has put pressure on light industrial. And a lot of businesses in and around data center alley can't afford to rent there any longer. So I think Valley Commerce Center really supports, uh, filling that gap. We need to take that balanced approach. Um, and then why Valley Commerce? Uh, you know, really it not only provides the right light industrial, um, it conforms to the light industrial use that is adjacent, uh, to that parcel, uh, from a design perspective, the

[02:34:15] concessions and proffers that have been made by the developer, uh, are very, make it very suitable, whether it's the well mitigation, whether it's the height of the buildings, the design, the noise, and the light abatement.

[02:34:33] I think all those factors rolled together make it an attractive piece to develop. So I would ask you to vote yes on the application. Thank you, sir. Thank you. Jamie Emery, followed by Casey Chapman. Good evening, sir.

[02:34:49] Good evening, Madam Chair and the board. My name is James Emery, and I'm a professional hydrogeologist and been president of Emery and Garrett Groundwater for more than 35 years. I served for more than 20 consecutive years on the Loudoun County Technical Advisory Committee appointed by the Board of Supervisors.

[02:35:05] I've studied groundwater resources in Loudoun County for more than 40 years and was personally involved in the development of groundwater resources for nearly all of the towns dependent on groundwater in Loudoun County, including Round Hill, Hamilton, Lovettsville, Hillsborough, and Percival. I've also developed all the groundwater resources serving Loudoun Waters community systems that include Elysian Heights, Selma, Raspberry Falls, Creighton Farms, and Beacon Hill.

[02:35:29] All of these groundwater supplies have been sustainable, and none have caused adverse impacts to off-site groundwater users. I've been investigating the groundwater resources of Valley Commerce for the past four years. The applicant has far exceeded the requirements set forth by both the county and the state to construct a well, test it, and report on it.

[02:35:49] In fact, there has been a much more rigorous review, inspection, and critique of this proposed supply than for any of the much higher-yielding wells developed for the towns and the communities cited above. It's my professional opinion that the use of groundwater at Valley Commerce can be done in a safe and sustainable manner.

[02:36:07] A couple of notes. Groundwater withdrawals from Valley Commerce will be controlled and regulated by VDH. Daily groundwater withdrawals from 39 residential homes will not. Valley Commerce will not use any irrigation water. Residential community will.

[02:36:22] Valley Commerce has offered to monitor 13 off-site and on-site residential wells for five years. No off-site monitoring will take place with the residential wells subdivision. Valley Commerce monitored the town of Percival's production wells as part of their hydrogeologic study.

[02:36:38] The town's own professional hydrogeologist concluded that the pumping of Valley Commerce well had no impact on their production wells. There's no requirement to monitor off-site wells from the

residential subdivision. Lastly, the amount of groundwater recharge calculated to be available on-site is two to four times the amount that is going to be withdrawn from the project site.

[02:36:58] Thank you, sir. Thank you. Thank you. Casey Chapman, you will be followed by Kathleen Staken-Schwab. Good evening, sir. Good evening, Madam Chair, board. Thank you. I'd like to speak in support of Valley Commerce.

[02:37:16] I've operated a business out of Purcell for the last 15 years. I grew up in Western Loudoun County. You know, as I've been driving around Western Loudoun, I see a lot of great things going on. We have a new fire station being built in Round Hill. That's amazing. Outside of Philmont, also another one. Lovitzville, new fire station.

[02:37:31] So Western Loudoun is starting to get, you know, some of the much-needed improvements that we've been waiting on. And as I've been in Purcell, I've been waiting on the town to take action for improvements for the citizens in and around that town. and they have failed to do so. They haven't adequately addressed zoning. In fact, they've down-zoned pretty much the entire town. They haven't brought in new infrastructure or improved traffic themselves. They've looked to other outs and fear-mongered, as you've heard tonight, in their rationing. They always go back to, this isn't the right spot. It should be somewhere else.

[02:38:06] Well, it's time to choose. The JLMA was always meant to be a transitional area to work with town and county together. If the town isn't willing to work with it, then the county has an obligation, a duty to the residents to provide something there that's a net benefit. I know that my business has doubled year over year for the last several years. We're looking to expand space.

[02:38:25] There's nowhere to expand. The facilities that would be drained within the town limits isn't true. The facilities that could be built have more square footage and meet modern standards, so that way they can actually have tenants that will utilize the space effectively and efficiently.

[02:38:42] I'm here not just as a business owner, but as a resident, and as someone that sees the need for this. Someone that has heard TJT Corporation down the street saying they saw the need for it, so they built their own. All my business colleagues, everyone around me, come to me and say, why can't we get something done in Western Loudoun County?

[02:39:00] And the question's at your feet. I think this is the time that we prove that we can't get something done, and Percival doesn't control the West. Thank you. Thank you, thank you. Kathleen Steakum-Schwab. Hello, Kathleen. Good to see you. You'll be followed by David Cox. Good evening.

[02:39:16] Good evening. My name is Kathleen Stakem-Schwab. I live in Kincaid Forest across Crosschale from the proposed Aspen substation site. I want to acknowledge that since May 19th, when we were last here, Dominion has updated the application with some additional plantings and some wall color options. I think that's progress, and I'll take it as a sign that Dominion can do better when they are required to.

[02:39:36] But the problem is that the community has not had a real opportunity to review this, discuss it, or weigh in as to whether we feel it's sufficient, and that alone is a reason to defer. When the previous substation was built next door, our neighborhood endured literally months of overnight construction, jackhammering, heavy equipment throughout the night. The police were called on several occasions, but they couldn't do anything because Dominion had obtained a noise ordinance exemption by classifying self-imposed contractual deadlines as an emergency.

[02:40:05] After receiving many, many complaints, Dominion finally promised not to do loud overnight construction. But to no surprise, it was unenforceable and they often did not hold up their end of that promise. We need to be a partner in setting the construction conditions you approve and not leave this to a future meeting where there's no incentive for Dominion to be the good neighbor that they say they will be. Dominion can do significantly better than the concessions that they have made at the last minute. We've seen what better looks like in other parts of Northern Virginia, and the question is why is Loudoun being held to a lower standard, and why is Dominion only giving us better when we push them to? We deserve a county or community-sponsored

[02:40:41] forum, not a Dominion presentation, not a brief public comment period where residents can review the proposed plans and ask real questions. It could be done in the next few weeks. I've asked the board to defer this application, not to deny it, to defer so that the full community can be heard, the updated materials can be reviewed, and proper public process can take place before the board makes a final decision. Thank you. Thank you. Thank you very much. David Cox, followed by Chad Marston. Good evening, sir. Good evening. Chair Randall and members of the Board of Supervisors, thank you for the opportunity to speak to you this evening. My name is David Cox. I'm the

[02:41:18] president of JK Moving Services, a company that employs about 1,300 people in eastern Loudoun County. JK has called Loudoun County home since 1992 when we relocated from Fairfax County to Sterling. That move became necessary because of the lack of suitable affordable space in Fairfax County for a growing company like ours. There just was not viable facilities options for a growing business in Fairfax County. We moved to a warehouse in Sterling, Virginia and have prospered along with the county for the last 34 years providing steady jobs to our 1300 team members while

[02:41:58] proudly serving Loudoun County residents and businesses. Today we see the proposed Valley Commerce Center development as a crossroads for our business as we struggle with the same challenges that caused our move from Fairfax County in 1992. Our sincere desire is to remain in Loudoun County and to continue employing our workers here and serving the wider community.

[02:42:21] If Valley Commerce Center is not an option for us, the other remaining growth options we are exploring are currently outside of Loudoun County. We sincerely hope this proposal advances and we can continue to be a positive contributor in Loudoun County, serving our employees, our customers, and the wider Loudoun County communities.

[02:42:40] Thank you for your time. Thank you, sir. Chad Marston, you will be followed by Woody Turner. Good evening, sir. Good evening. How are you? I'm well, thank you. Good evening, Chair Randall and members of the board. Thank you for the opportunity to speak and for your service to Loudoun County.

[02:43:00] My name is Chad Marston. My family and I moved back to Virginia after about 30 years of living in other places. I was born and raised south of Richmond. The opportunities for us were full here. We currently live just west of Percival, and there's so much we enjoy and love about western Loudoun County.

[02:43:19] The sense of community, the lifestyle, the chance to support the local businesses are a big part of what means so much to us about where we live. It's also what we care about and what we care about the future of Loudoun County. The chance for us to invest in that is prevalent for my wife and I.

[02:43:38] We've lived in a number of places on the outskirts of Phoenix, Denver, San Francisco, New York, where we saw firsthand that the investments for small business opportunities were pulled back and it became harder for the communities to grow in a balanced way. That is why I support the Valley Commerce proposal.

[02:43:58] Policies can restrict future opportunities. They help business growth and gradually change the character of the community when small businesses do not have the room to expand. My wife and I have passed the site many times, and we believe it offers a thoughtful and well-planned solution to the shortage of light industrial space within Western Loudoun County and Loudoun as a total.

[02:44:19] I appreciate the chance to speak this evening. I hope you will support the Valley Commerce Center proposal who invest in the future of Western Northern County and the small businesses in the area. Thank you. Thank you. Woody Turner, followed by Brian Turner. Mr. Turner, it's good to see you.

[02:44:37] Good to see you, Madam Chairman, members of the Board of Supervisors. I'm Woody Turner. I'm speaking on behalf of the Aspen substation, but I note that there are a lot of speakers and that you've got a long agenda. So as a courtesy to you, I'm going to relinquish back most of my time and conclude by just saying two things to you.

[02:44:56] First of all, I agree with whatever the next speaker says about the Aspen substation. And I remind you that you are the governing body of the data center capital of the world and the governing body of one of the finest counties in the United States of America.

[02:45:18] And it's your time to take the stand and make sure that it stays that way. Thank you very much. Thank you, Mr. Turner. Mr. Turner, I'm not sure how you're going to follow that, really. But good luck with you. and you'll be followed by Guy Frankenfield.

[02:45:33] I'm just thankful that I am following him because I hopefully have some good things to say here. Good evening, Chair Randall, members of the board. I'm Brian Turner, General Counsel of the Lowen Coalition of HOAs and Condominium Associations. It's now you have or will hear from speakers across Lowen County.

[02:45:50] You will hear HOA community members deliver a unified and consistent message. Defer this application so that a consensual community process can take place before a final decision can be made. The ask is deferral, not denial, not indefinite delay, a brief, purposeful, expedited effort with a county or community-sponsored forum where residents can review the full application, ask real questions, and have their input incorporated. Then a working session to ensure that feedback shapes what gets built. Then a return to this board for a decision the community has been part of making. Looking at the broader

[02:46:28] context, this should happen with all legislative substation applications. Our firm did a quick survey of legislative applications for substations that require special exception approval. Collectively, that number is astounding. Our Alliance of Communities requests the board look at the issue proactively and holistically and not just one application at a time. Data centers need the power to operate. Dominion needs to deliver it to the data centers and the community and county need a quality of life its residents deserve. The time is now to work together to ensure all needs

[02:47:02] are met. Vice Chair Turner said on May 19th, now is the time to make the stand. We agree. Thank you. Thank you, Mr. Turner. Guy Frankenfield, followed by Michael Parrish. Good evening, sir. Good evening, Chair Randall, Board of Supervisors. Thank you. I'm Guy Frankenfield, president of the

Regency at Belmont Homeowners Association. My 55 and older community will be negatively impacted by the 185 foot tall transmission towers that are planned for the installation along Route 7 as part of the Aspen to

[02:47:40] Golden Project. We advocated for an alternative to bury this power line. Regarding Dominion, we noticed a tactic to obtain a predetermined result. Black & Veatch conducted an undergrounding study. Presumably, its findings were not what Dominion wanted to see, so a different firm was engaged to produce another iteration of the study. This gives the appearance that Dominion was trying to produce a report with their desired result. We know that Dominion can do better. One example of this is that Dominion

[02:48:17] is building enclosed, architecturally enhanced substations elsewhere in northern Virginia right now. Same company, same technology, but a different substation design. The question is not whether Dominion can do better. The question is, why don't they? The mitigation updates for the Aspen substation project that recently arrived are not the product of a community process. They are a response to pressure filed at the last moment. Residents have not had an adequate time to assess

[02:48:50] them. However, a county-run community forum with enough time for real feedback is one way the board can ensure that this gets done right. I ask the board to defer this application, not to deny it. To defer so that the full community can be heard, the updated materials can be reviewed, and a proper public process can take place before this board makes a final decision. Thank you.

[02:49:19] Thank you, sir. Thank you. Michael Parrish, followed by Carl Eager. Good evening, sir. Good evening, Madam Chair and members of the board. My name is Michael Parrish, and I live in Percival, Virginia. Thank you again for allowing me to speak. County planning staff continues to recommend denial of the Valley Commerce Center because it is inconsistent with the comprehensive plan and not adequately mitigated given its proximity to existing homes.

[02:49:44] This property is designated a rural neighborhood intended for low-density residential, agricultural, and rural uses, not a nearly 1 million square foot industrial park. This proposal would introduce industrial-scale development directly beside existing homes and rural communities. The comprehensive plan exists to determine where development of this scale is appropriate. The issue tonight before the board is not whether industrial space may be needed somewhere in Loudoun County, but whether this location is appropriate under the comprehensive plan. Residents relied on the comprehensive

[02:50:20] plan to understand how their communities would grow. Water impacts remain unresolved. The county has stated that there is not enough information to fully evaluate water usage and impacts. Residential wells are distributed and intermittent while this project relies on high-capacity wells pumping at sustained rates. That concentrated demand raises serious concerns about nearby residential wells this project would generate over 3 000 daily trips including heavy and extra heavy trucks percival road is a narrow two-lane rural road with no shoulder and not designed for

[02:50:58] sustained industrial traffic approval of this proposal would be difficult to reconcile with both the comprehensive plan and the staff recommendation even after additional analysis and revised proffers staff continues to recommend denial the comprehensive plan remains clear i respectfully ask you to deny this rezoning thank you for your time thank you sir um carl eager followed by kristen uh i think it's george

ellis good evening sir good evening ma'am chair randall uh as you recall last time you were asked me i want to make sure i said the word shady

[02:51:36] instead of some other word i went back and listened to the transcripts i didn't say shady and I didn't say the other word either, okay? So part of levity you don't usually get in the evening. So first off, thank you for a chance to speak again. I hope that 10 seconds didn't count against me, but anyhow, I ask you to defer the Aspen substation session.

[02:51:56] Not to cancel it, but to defer it until we get some more information. I have worked with probably over 80 different contractors in my career overseeing a bunch of \$100 million activities across a bunch of activities.

[02:52:12] And it is interesting, how do you motivate a contractor to do the right thing? By deferring it, you still provide a little bit more motivation, address some questions. So realistically, updating it for just a short period of time gives it more opportunity to reach them, to reach out to the community, explain more things, understand the scope of the project, understand a few things.

[02:52:30] First off, I did a little math when comparing the Dominion Schedule I rates. Although generation has only gone out 25%, 24% in the last six years, The distribution charges for every resident of Leesburg, I don't know about the rest, has gone up 69%.

[02:52:48] Distribution fees that maybe, I can't confirm, we couldn't go through it tonight, I was chatting with Dominion, it may be associated more with the installation of these substations and things than it should be. So why is it that our rates for distribution are going up far faster than the cost of inflation, far faster than the cost of fuel, because generation includes fuel, and the generation of facilities has only gone up 24%.

[02:53:12] But it's more than double that for distribution. So why are the rates going up so much? It's not clear. It would be great to have more understanding of the rate structure that's being imposed upon the residents. It would be great to understand if we're bearing some of the cost of this reliability, which is a well-overused term, to talk about reliability grid.

[02:53:31] Because realistically, most of these substations are being installed for the 2.5 gigawatt increase going forward here for the future increase that they signed into with electric use agreements. So I'd like to see that we can try and understand more of that information and community outrage to the neighboring communities.

[02:53:46] It would be great. I'm sorry. Your time is up, and thank you for going back and checking Shady or the other word. Thank you. The other word. There's another word from what I'm told. I don't know what word that might be, but from what I'm told. Christian Georgilis, if I say your name wrong.

[02:54:07] It's Georgilis. It's Georgilis. You're close. Very good. And you're going to be followed by Ben Keebler. Good evening. Good evening, Chair Randall, members of the Board of Supervisors. I do like to echo that my Dominion bill did go up twice, two times the amount that it was last year at the same rate.

[02:54:23] But I don't know why, but it did, and there was an increased usage. But I'm here to speak about, again, the Aspen substation. I'm here. I'm a Leesburg district resident, and I'm here to talk about what's at stake for everyone in the community in Loudoun, not just the neighborhoods that are closest to the substation.

[02:54:40] Um, I've already, uh, seen, been negatively affected, um, by the trend emissions lines that were placed, are going to be placed across my daughter's school grounds. She goes to Virginia Academy. It's going right across the fields where they play, uh, football and practice in the morning, um, or in the afternoons, excuse me.

[02:54:56] But Dominion builds enclosed architecturally designed substations in other parts of Northern Virginia. Gas-insulated switchgear, reduced footprints, underground connections where they exist in populated areas. That technology is available. Dominion knows how to use it. The renderings proposed by Dominion and Fairfax depict less intrusive substations.

[02:55:16] They've been presented to this board. These are innovative applications that we should be considering. This is technology that's out there. There's no reason why we shouldn't be considering it at this time. The updated application materials that just came in recently. I'm sorry, I'm walking away from the microphone. The applications that came in recently just before this hearing, meaningful community engagement doesn't look like that.

[02:55:37] It looks like a county or community sponsored town hall where residents can see real plans. They can ask real questions. They can have their responses actually shape what gets built. Loudoun's rule and agricultural character is planned communities. It's protected open space. They're irreplaceable. A decision of this permanence deserves a process that matches that permanence.

[02:55:55] And that's what we're here for. I'm here today echoing what a lot of the other speakers are here for today. We're asking the board to defer the application process, not to deny it, but to defer it so that a full community can be heard. The updated materials can be reviewed, and a proper public process can take place before a final decision is made.

[02:56:11] Thank you. Thank you. Can you just give me one sec? Did your bill go up and then come back down and then go up? It went up just twice and just stayed? It went up and has not gone back down. And I haven't hit summer yet, so I don't want to know what that looks like because I'm a little nervous about that.

[02:56:30] But in January, it was doubled from the January before. And where do you live? I live at Meadowbrook Farms. Okay. Thank you. Thank you very much. Thank you. Ben Kiefler, and you, sir, will be followed by Martha Polke. Hello. Thank you. Good evening, supervisors.

[02:56:48] My supervisor. I'm Ben Kiefler, chair of the Loudoun Coalition of Homeowners and Condominium Associations, representing tens of thousands of Loudoun residents. I respectfully ask the board to defer this application for the Aspen Station, not to deny it, so that meaningful public engagement can occur before final action is taken.

[02:57:07] While tonight's discussion centers on the Aspen substation, the implications extend far beyond a single application. This is about how Loudoun manages the cumulative impacts of infrastructure expansion tied to data center growth and whether the public is meaningfully included in those decisions.

[02:57:23] The staff report itself notes that the applicant did not hold community meetings. I want to acknowledge that Dominion's movement toward a GIS or hybrid switchgear design is a positive step, and it demonstrates that community input can improve outcomes. But despite those improvements, the public still lacks renderings and a visualization of what will actually be built and how it will affect Boland Park, the WOND Trail, and the surrounding communities.

[02:57:47] For infrastructure of this scale and permanence, neither this board nor the public should be asked to evaluate it in the abstract. Loudoun residents are increasingly experienced in the industrialization of the county's landscape. Utility infrastructure is reshaping the visual character and quality of life of our communities.

[02:58:04] This issue is not whether infrastructure is needed, it is whether decisions with permanent community impacts are being made through a transparent process. The recent revisions are appreciated, but residents have not had adequate time to review them and provide informed feedback. Thank you.

[02:58:19] Thank you. Thank you, sir. Martha Polky? I didn't see her. I haven't seen her. Martha Polky, Ms. Polky, are you here? Going once, going twice. All right, I'm going to go to Donald Smith and Stephan Vazvik.

[02:58:40] Good evening. Good evening. My name is Donald Smith. My family and I have lived in Loudoun County since 2009. I hold a Virginia Class A contractor's license, and my wife is a registered nurse working for Loudoun County Health Department for over 14 years.

[02:59:01] We are in support of the Valley Commerce Center as proposed. Based on my professional experience and understanding of the project, I am comfortable that this development will generate valuable tax revenue and create new job opportunities. I'm also confident that thorough studies have been conducted regarding its impacts on surrounding communities, resource management, traffic, and water supplies.

[02:59:22] I encourage approval of this project and appreciate your consideration. Thank you very much for your time. Thank you. Thank you very much. Before we go to the next speaker, is Mr. Sainz on the line? Anybody know who's not on the line? Hello. Guys, I need a head nod.

[02:59:42] No, well, he is, but he's supposed to be on the line on his way here because he wanted to hear the public comment. So, okay, I'll just take notes for him now. Hello, sir. After you, we're going to go to the virtual, and it will be Victor Block after you. Hello, good evening. Good evening, good evening, Board of Supervisors.

[02:59:59] My name is Staffan Vassvik, Vice President, Latin Valley Estates. I want, once again, to make sure the independent records are clear because it has not changed since last time, May 19. SEC staff found Dominion's urgency self-created.

[03:00:16] PGM calls this data center alley local solution. JLARC confirmed load gross is flat without data centers. Dominion owns contractor said in April that the Aspen serves load, not yet here. And Dominion also confirmed May 19th that more projects are coming.

[03:00:37] the current plans are not enough. So here's the real question. What happens if we continue to approve these applications one at a time without the shared plan? The answer is, of course, more substations, more transmission lines, more hearings, just like this one, each time on the applicant's timeline without the county and the community or with the county and the community in reactive mode.

[03:01:05] Getting ahead of this may involve some short-term discomfort while negotiation happens, maybe some priority delays, that's real, but approving every substation as they arrives without a plan is how we ensure we keep arriving here over and over again.

[03:01:24] A community-run community forum and a deferral are how we get ahead of this, so I ask the board as others to defer this application, not to deny it, to defer so the full community can be heard and update materials can be reviewed and a proper public process take place before this board makes a final decision. Thank you very much. Thank you. Thank you, sir. Let's go to the line for Victor Block and then we will go from there to Chase Stewart. Hey, Chair Randall, supervisors. Good

[03:02:01] evening. Dominion has a plan. The data centers have a plan. They will not share their plans and that is unacceptable. And as a result, this county is forced to govern in the dark. On May 19th, Dominion confirmed before this board that essentially all load growth driving this infrastructure is data centers and more projects are coming. How many, where, when, and at what scale? He could not or would not say. Filed one at a time, the full picture, what has already been built and what is still coming would not be acceptable to anyone. That is why it's revealed

[03:02:35] this way. Why did it take two years of hearings, FCC proceedings, and significant community digging and pushback to get updated wall colors and a few more plants. They know how to build better infrastructure. They're doing it in other communities right now. The answer is, do what they are required to do, or the answer is, do they do what they're required, they only do what they're required to do and nothing more. Chair Randall, you said it directly, Dominion is not being a good partner and not being a good neighbor. That has to change until the county, the community, Dominion, and the data center industry have produced a plan together. And

[03:03:15] until the community has had a real chance to respond, you are ratifying decisions on someone else's terms. I don't think that is what any of you want. I ask the board, like others before me, to defer this application, not to deny it. Defer so that the full community can be heard, the updated materials can be reviewed, and a proper public process can take place before this board makes a final decision.

[03:03:40] Thank you all. Have a great evening. Thank you, Mr. Block. Chase Stewart, followed by Ben Carpenter. Good evening. Good evening, Chair Randall and members of the board. My name is Chase Stewart. I'm a commercial real estate broker who works throughout Loudoun County and Northern Virginia.

[03:03:59] I'm here tonight in support of Valley Commerce Center. I spend every day working with businesses that are looking to expand, relocate, establish their operations in Loudoun County. and one of the most common challenges we face is a lack of available space for small businesses, service providers, contractors, tradespeople, distributors, and growing local companies, especially in Western Loudoun. Many companies serving Percival, Roundhill, Hamilton, and surrounding communities are forced to operate from Leesburg, Sterling, or even farther east.

[03:04:31] This project helps create employment opportunities and business services closer to Western Loudoun residents. When people hear the term industrial, they often think of large-scale manufacturing or uses that don't fit within the community. In reality, much of today's light industrial and flex space houses businesses that residents interact with people's everyday lives. Landscapers, electricians, HVAC contractors, plumbers, tech companies, medical suppliers, fitness operators, just to name a few. The reality is that there's very little available space for these users today.

[03:05:08] Vacancy rates across Loudoun County are at historic lows, and in some areas, there is virtually no available inventory. As a result, businesses that want to grow here are increasingly forced to look

outside of the county. Valley Commerce Center provides an opportunity to address that shortage while creating quality jobs closer to where people live.

[03:05:27] It will generate employment opportunities across a variety of industries and skill levels while supporting entrepreneurs and small business owners that are the backbone of our local community. As someone who works directly with these businesses that need this type of space on a daily basis, I can say with confidence that Valley Commerce Center fills a real estate need and represents the kind of balanced economic development we need.

[03:05:51] Thank you. Thank you. Ben Carpenter, you will be followed by Greg Perio. Good evening, sir. Good evening. Good evening, Chair Randall, members of the board.

[03:06:07] My name is Ben Carpenter. I'm here tonight to speak in favor of approving the Valley Commerce Center. As a local business person and lifelong Western Loudoun resident, there's great demand for this type of commercial and light industrial space. As Western Loudoun continues to experience growth, driving the need for service-based businesses such as mechanics, landscapers, tradespeople, like myself, the demand for spaces like the Valley Commerce Center will increase.

[03:06:34] These business people desperately seek bases of operation to store equipment, materials, commercial vehicles to service that need. Percival, as I see it, is the hub of Western Loudoun, so it is logical to construct another light industrial space in close proximity to the existing one.

[03:06:51] Planned traffic improvements, in my opinion, will help manage some of the traffic concerns. These small businesses struggle to find commercial space, which can lead to a choice between moving their operation outside of Loudoun or skirting existing requirements by working outside of their homes or inappropriately zoned districts.

[03:07:10] Data backed by low vacancies, surging rents, and high demand push for the need for this space. The proposed Valley Commerce Center will bring opportunity to business owners to invest in Loudoun and Percival, as well as job opportunities to those they employ. To reiterate, I'm in favor of the Valley Commerce Center.

[03:07:27] I recommend you approve this application. Thank you for your time. Thank you. Thank you. Greg Pirio, followed by Monica Von Hildebrandt. Greg Pirio, P-I-R-I-O. are you here or out in the lobby going once going twice monica von hildebrandt followed by christopher hockey good evening good evening members of the board my name is monica von hildebrandt and my husband and i live in the mayfair community in percival we purchased our first home this year because we believed it would be a healthy and stable place to build our future

[03:08:05] and start a family her work in environmental justice and one of the questions we ask when evaluating projects is simple. When the risks are still uncertain, who is asked to live with the consequences? In this case, it is the families living beside this project. Families who may live with unresolved impacts to groundwater, diesel emissions linked to respiratory illness and asthma, industrial noise and light exposure, and the cumulative effects of large-scale industrial activity operating beside a residential community. And by the time those impacts are fully understood,

[03:08:41] the burden has already shifted onto the people living with them. My husband is a psychiatric nurse practitioner serving this region, and one thing we both understand is that health is shaped not only by health care, but by environment. A home should be a place where people recover from stress, not

where new stress is created. When residents begin to worry about their water, their air, their children's health and safety, or what may come next for their community, those concerns become a part of daily life. And once those baseline conditions change, they are not easily reversed. Staff has already recommended denial citing inconsistency with the county's planning framework and insufficient mitigation of

[03:09:20] impacts to nearby residential communities. We understand development may eventually occur on the site but the question before you is not whether something should be built. The question is whether this proposal at this scale and under this level of remaining uncertainty and risk has earned approval. The burden should not fall on residents to prove harm after approval is granted. I respectfully urge you to take the long view and deny the Valley Commerce Center application.

[03:09:49] Thank you so much for your time. Thank you. Christopher Hockey followed by Anthony Howard. Mr. Hockey, are you in the room? Christopher Hockey? And I said Anthony. Am I talking about you Tony. You'll be followed by Jennifer Golar. Almost didn't respond. I was like why is Tony standing up? All right. Good evening Chair Randall and members of the Board of Supervisors. My name

[03:10:28] is Tony Howard. I'm the president of the Loudoun County Chamber of Commerce and I represent more than 1,000 employers here in the Loudoun County community. I'm here tonight to support the proposed Aspen and Golden substations and the related reliability projects that are subject to the board's consideration. Now, the Loudoun Chamber has long and consistently supported investments in infrastructure, particularly energy infrastructure, because reliable power is fundamental to Loudoun County's future. As our community continues to add homes, businesses, data centers, and other investments, electricity demands will only increase. Our infrastructure

[03:11:04] must meet that demand. The Aspen and Golden substations are a vital part of Dominion's Loudoun reliability loop, which will enhance the regional grid, boost reliability, reduce the risk of outages for residents, businesses, and government services throughout Loudoun. A stronger, more resilient grid is essential to Loudoun's economic well-being and our quality of life and ensures the long-term energy stability and the affordability that residents and businesses demand. The chamber also supports Dominion Energy's ongoing efforts to engage property owners, residents, and local officials to develop innovative solutions that reduce the impacts of infrastructure investments on our local communities.

[03:11:44] For these reasons, the Loudoun Chamber asked the board to approve the Aspen and Golden substations. And while I have a couple of seconds left on the clock, I'd like to also reiterate the Chamber's support for the Valley Commerce Center. I was proud to be here in April for the public hearing and talked quite a bit about some of the issues that you've heard tonight. There's a real supply issue here that's causing real severe pain for our economic growth.

[03:12:04] I've heard this board and our economic development department talk a lot about diversifying our economy in here in Loudoun County with our products like the Valley Commerce Center. I don't know how we do that, so I'd like to reiterate that support. I thank you for your consideration on my views, and I thank you all for your leadership in our community. Thank you, Mr. Howard.

[03:12:21] Jennifer Goller, followed by Daniel Carville. Jennifer Goller? Here. Oh, literally right there. I'm sorry. Thank you. You're ready when you are.

[03:12:36] Good evening, Chair and members of the board. My name is Jennifer Goeller. I live in Percival, born and raised in Loudoun. I'm a mom, and like many families in western Loudoun, my days are really

busy. Between work, shuttling, kids to and from, school activities, and everything in between.

[03:12:52] I'm here tonight in support of the Valley Commerce Center. From a family perspective, having access to services close to home matters, and personally, I prefer that they're local. Whether it's a contractor helping with a repair, a small business offering kids activities like sports, training, or classes, or everyday service providers we rely on, these are the types of businesses that make our community function.

[03:13:15] Right now, many of these services are limited or located farther away than they should be. This project helps bring those much-needed services to our community and help prevent them from leaving. As a daughter of a Loudoun County plumber, I've seen firsthand how difficult it can be for small, blue-collar businesses to find the space they need.

[03:13:33] Growing up, my father's garage was his warehouse because there simply wasn't suitable contractor space available. Plumbing supplies, tools, PVC pipe were stacked wherever he could fit them. Years later, I'm seeing my brother Daniel face many of the same challenges as a local plumber himself.

[03:13:49] He currently has to work out of and store materials in his garage because warehouse and contractor space remains limited. These are not large corporations. They're local families and hardworking people who serve our communities every day. Creating places for these businesses to operate and grow is important not only for them, but for the families and customers who depend on them.

[03:14:10] I also think it's important that this type of development be located in the right place. This site is directly across from an existing industrial park where their uses already exist today. Keeping similar uses together just makes sense and helps protect the character of other parts of our community.

[03:14:27] In addition, Percival Road is a road many of us use every day, and we all know improvements are needed. This project brings meaningful transportation upgrades. When I look at this project, I see a project that supports family and local businesses, bringing services closer to home, placing development where it belongs.

[03:14:44] Ma'am, your time is up. Thank you. Thank you. Daniel Carville, followed by Miriam Mueller. Good evening. Good evening, ma'am. First, I want to say I don't think there's a debate that flex industrial is definitely not needed in Loudoun County. I actually work in Ashburn in a flex industrial facility, and I just recently found out that the lease in my building has been sold to a data center, and we're going to have to find a new facility. So I understand it. It's affected me. So I do understand where these people and these business owners are coming from. But the real question here is, ladies and gentlemen, is this

[03:15:20] application the best it can be? During the April 15th meeting, Caleb Kushner basically said, This isn't a great application. It's an okay application. But is there room for improvement? When this was debated during the Percebill Town Council, there was a lot more proffers involved.

[03:15:39] And this application has changed a lot. So the question is, can this footprint be smaller? Can there be additional areas that you can improve on this application? You need to be able to, when you have applications before you like this, they need to be at the platinum standard.

[03:15:56] And this one really does fail it. it's just an okay application. And because you have just an okay application, at this point in time, you are basically pushing off, hey, we have a comprehensive plan, but

we're not going to follow it. Our staff is basically not recommending this, but we're not going to listen to them. These are the kind of questions, can we do better?

[03:16:18] That's the real thing. I'm a pragmatic person. I understand that there are ways to make things work. But right now, this one is not the best that it can be. So, I know you have some supervisors down here that are going to vote with the home district supervisor tonight. You know, are you really going to pass this thing off in saying that our comprehensive plan doesn't mean anything?

[03:16:43] And what does that mean for the next application? I'm asking you to basically, let's put this a little bit more, put some more thought into it. Let's say if we can get something better. Let's take this back to the town where it belongs as a local issue. And it may not work, and the town is difficult to deal with, but there are elections. Elections have consequences. So your time is up.

[03:17:06] Your time is up. Thank you. Oh, gosh. Marianne Mueller, followed by Angela Mendez. Good evening, ma'am. Good evening. I'm Marianne Mueller, a director of the Lansdowne Conservancy.

[03:17:22] I'm here in my personal capacity. Lansdowne was designed as part of Loudoun's Scenic Route 7 gateway. Its utility lines were buried, as then required by the county, and agreed to by developers and homeowners. This gateway corridor is now irrevocably changing.

[03:17:41] An imposing energy infrastructure will now border Lansdowne and other Loudoun communities like Lansdowne. These communities were planned with certain infrastructure expectations. These should not be overridden by immutable infrastructure proposals.

[03:17:59] Three years after Lansdowne first requested alterations to Dominion's Aspen Golden Lines, Dominion is finally offering some mitigation for the Aspen substation. I'm gladdened by this progress, but it should not have taken this much community pressure to get to this point.

[03:18:18] Both in the U.S. and overseas, substations are developed with architectural screening techniques that mesh seamlessly and artistically into their surroundings. In both Arlington and Fairfax, Dominion has proposed innovative designs for its new infrastructure with bold architecture that honors the identities of these communities.

[03:18:39] So why is Dominion consistently offering Loudon something less? Supporting Loudon's energy requirements is difficult and no doubt thankless. But to automatically say no to the Board of Supervisors' requests for something as technically feasible as green screening risks further backlash and delays for Dominion's customers.

[03:19:02] Dominion, what is needed now is a forward-leaning approach, creative collaboration with our county to build a place that truly reflects the data center capital of the world and its residents. Please defer. Thank you, ma'am. Angela Mendez you are going to be followed by one second ma'am Jeffrey Parker good evening good evening members of the board my name is Angela Mendez and I'm a resident of Mayford community I'm here to speak today in opposition to the Valley Commerce Center proposal I spoke at the

[03:19:38] last public hearing and I felt it was important to come back one more time after the last hearing I went home and I reflected on everything I heard. I listened to every speaker, both those in favor of this proposal and those against.

[03:19:54] And I honestly understand why some business owners support it. I understand that there is a need for business to grow. But I do not believe those needs should be met at the expense of the residents

who live closest to this project. I believe there are places where those needs can be fulfilled without placing the burden of negative consequence on surrounding families.

[03:20:14] People chose to live in Percival for a reason. They came to Percival looking for peace, safety, and for a sense of community. We moved to Percival to create a sanctuary for families away from chaos. Every family has a story.

[03:20:29] I shared some of my story at the last public hearing. I remember that father who spoke at the public hearing about creating a safe space for his autistic child. his word they stop with me. Every, every, everyone can agree that we all deserve a safe place to call home and that is why I ask you to think about the negative consequences about proving this proposal.

[03:20:56] The residents closest to this project will leave with the consequences. We will experience the increase in traffic, the water issues, the impact in our lifestyles and many of us fear that roads like Mayfair Crown Drive, where children play, neighborhoods gather, community events take place, will eventually become roads for heavy traffic moving through the neighborhood.

[03:21:18] When you cast your vote, I ask you to think beyond the site plan. Think about the families who live with this decision for years to come. Think about the worst case scenarios and ask yourself, if something goes wrong, who will bear the cost? Please, I humbly ask to vote against this proposal.

[03:21:40] Thank you, ma'am. Thank you. Jeffrey Parker, you're going to be followed by Aaron McCleary. Good evening. Good evening, Chair Randall, members of the board. Thank you for the opportunity to speak tonight.

[03:21:55] Thank you for your service to this county. My name is Jeff Parker. I've been a resident of Percival for the last 26 years. I'm here to support the Valley Commerce Center application. As a resident and consumer of Western Loudon, I make every effort to support local business.

[03:22:11] I look first toward local family-owned business, local contractors. These businesses create jobs and support local families. The challenge today is that many of these businesses, and you've heard some of this tonight, struggle to find suitable space to operate in Western Loudon.

[03:22:28] It's very limited to no inventory available for small commercial industrial uses. There are few opportunities for entrepreneurs who want to start their own business. These businesses are limited, again, as you heard tonight, by the size of their basement or the size of their garage.

[03:22:45] With some of the redevelopment and continued growth in eastern Loudoun, many of these businesses are relocating or closing their doors. They're leaving the county, going to other counties. Simply put, I think we're behind on providing this type of space. The Valley Commerce Center provides an opportunity to address that.

[03:23:04] It creates a place for small business, contractors, service providers, and trades to establish themselves, grow within the county, remain within the county. As far as the location, I travel this intersection frequently, being a resident of the town of Purcellville.

[03:23:21] Three of the four sides of this intersection are commercial. It makes sense to me to keep commercial with commercial and continue to add this space in that location. Most importantly, this development is about opportunity, opportunity for local businesses, opportunity for future entrepreneurs,

opportunity for jobs closer to home, and opportunity to strengthen our tax base in and around Loudoun County.

[03:23:47] For these reasons, I support the Valley Commerce Center application. I support the location that's being proposed, and I support the opportunity that it's going to bring to the county and our area. Thank you. Thank you for your time. Thank you, sir. Thank you. Aaron McCleary, followed by Aaron McCleary, are you here?

[03:24:05] Aaron McCleary, last name M-C-C-L-E-A-R-Y. No? Okay, followed by David Chung, are you here? Mr. Chung, it says you're going to speak on behalf of Jeff Fanning and Terry Hall. You can speak on behalf of one of them because you're not going to speak for two minutes, not for four minutes.

[03:24:25] So you've still got two minutes even if you're speaking on behalf of two people. I'll speak on behalf of Jeff Fanning. Okay. Madam Chair, thank you and members of the board. My name is David Chong. I'm appearing today on behalf of Jeff Fanning, owner of Silverside Farm, a local small business in Percival.

[03:24:47] Mr. Fanning regrets he can't be here in person and has asked me to convey his support for the proposed Valley Commerce Center application. Jeff was born and raised in Loudoun County, attended school here, and has spent his entire life in this community. His support for this application comes not from a desire to see unchecked growth, but from a belief that growth must be managed in a way that preserves what makes Loudoun special, while ensuring that it remains economically sustainable for future generations.

[03:25:16] Silverside Farm is a historic Loudoun County property that has been carefully restored and preserved over many years. Through the work, Jeff has gained firsthand experience with both the importance and the challenges of preserving rural land, historic resources, and agricultural heritage in a rapidly growing county.

[03:25:35] Like many who care deeply about Western Loudoun, Jeff believes preserving rural character is one of the county's most important responsibilities. However, preservation requires more than good intentions. It requires sustainable economic activity that allows property owners and businesses to invest and maintain the land and historic assets that define our community.

[03:25:58] one of the realities loud and faces is that growth will continue the question is not whether growth occurs but how it occurs preserving rural character is not simply about opposing commercial development additional residential growth also changes the landscape increases traffic and places demands on infrastructure more houses alone do not necessarily preserve the qualities that residents value most about western loudon a balanced community requires places to live places to work and a tax base that supports public services without placing an ever-increasing burden on homeowners.

[03:26:31] Too often, communities focus on where people will live without equal attention to where people will work. Long-term sustainability requires both. Sir? I know. Two minutes goes really fast. I'm sorry, but you're talking about that.

[03:26:47] So Jeff encourages the board to approve the VCC application. Thank you for your time and your service. Thank you, sir. We appreciate you. Thank you. Harry Harting, followed by Tia Ehrman. Good evening, sir. Good evening, ma'am. My name is Lloyd Harding, and I live in the Mayfair Community Association of Percival.

[03:27:07] On Thursday, May 21, 2026, I had a traffic study done of the vehicle traffic traveling on Percival Road during the morning rush hour from 6 a.m. to 9 a.m., and during the afternoon rush hour from 3 p.m. to 7 p.m. 2,114 vehicles consisting of cars, trucks, and school buses were counted traveling on Percival Road during those seven hours.

[03:27:30] The total number of vehicles that travel during the entire day is unknown because vehicles were not counted for the full 24-hour period, so that number is actually higher than 2,114 vehicles. Now, the applicant has stated that if the Valley Commerce Center is built, then vehicle traffic traveling to and from the Valley Commerce Center on Percival Road is estimated to result in at least 3,500 vehicles per day.

[03:27:54] Now, if this estimate is accurate, then vehicle traffic on Percival Road will reach at least 5,614 vehicles per day, so that's 3,500 vehicles added to the baseline of 2,114 vehicles is 5,614 vehicle trips. Please remember that Percival Road is a narrow country road, and both lanes are only 7 feet 4 inches wide. However, the average tractor-trailer is 8 feet 6 inches wide, and there are no shoulders on Percival Road. It's physically impossible for two tractor trailers to pass each other going in opposite directions. Also, there are two signs on

[03:28:30] Percival Road which state that through trucks are prohibited on the road. 5,614 vehicles, many of which will be commercial trucks, traveling on Percival Road every day will create massive traffic jams at the intersection of Hearst Road and Percival Road and will also cause traffic backups for local traffic entering or exiting Percival Road at East Nichols Lane, Mayfair Crown Drive, and Chestnut Overlook Trail.

[03:28:55] Give me one second, sir. You may go. Thank you. You may finish. In summary, I again respectfully ask that the Board of Supervisors disapprove the Valley Commerce Center rezoning application so that Percival Road does not become a daily traffic nightmare for the hundreds of nearby homeowners who travel on the road every day.

[03:29:16] Thank you. Thank you, sir. Thank you. Tia Ehrman, followed by David Goodwin. Good evening. Good evening, Supervisors. My name is Tia Ehrman, speaking on behalf of the Piedmont Environmental Council. We've spoken in this application at every opportunity to do so and still agree with county staff. A million square foot industrial building is an inappropriate use in the JMLA rural neighborhood place type. We understand there is a shortage of flex industrial spaces in the county as we speak on this issue often. This is a direct product of over proliferation of data centers and frequency of rezonings approved in eastern Loudoun. But the answer is not to now undermine the integrity of residential communities by

[03:29:54] approving inappropriate rezonings on their doorstep in western Loudoun. This only expands the scope of the negative impacts from the data center industry. We continue to share the neighbor's concerns of traffic. Not only the volume of traffic added, but the nature of the vehicles likely to be included coming and going from an oversized industrial building on narrow country roads that my daughters drive to high school. The proffers are still insufficient to properly mitigate negative impacts to the wells of the surrounding properties. As we began to truly explore the issues connected to our shrinking groundwater supply and just began to analyze the data, we need to be making

[03:30:30] smart decisions to adapt to a more challenging future. One more water is likely to be an absolutely precious resource and no longer a given. Even with all of the rain we've experienced in these last few weeks, as much as five inches in some place, as of this morning, the official DEQ drought watch still lists Loudoun under a drought warning with, notably, our groundwater flagged as an emergency

situation. In Loudoun's unique landscape of zoning districts and policy areas, borders are always the place where we see this kind of speculative development.

[03:31:03] From properties in the TPA approved for suburban sprawl, like the Arcola Farm Subdivision, LEGY 2023, number 34, which quite literally extended Brambleton into the TPA, or the numerous rezonings which left the Hiddenwood neighborhood surrounded by giant industrial buildings.

[03:31:20] We hope you will recognize that residents should be able to depend on the zoning ordinance when purchasing a home and count on the plans for the parcel next door. In this case, a neighborhood filled with kids and families, not an industrial warehouse. Thank you. Thank you. David Goodwin, I'm sorry, David Goodman, followed by Katie Serences.

[03:31:38] David Goodwin. Mr. Goodwin, are you here? Going once, going twice. Katie Serancis, followed by Aiden Serancis. Good evening. My name is Katie Serancis and I am a resident of Kincade Forest, which is directly across from where the new Aspen substation is

[03:32:10] going to be built. I'm here today to ask you to defer and delay this substation being built, excuse me, and let the residents have time to have input on this substation along with the data center that is also proposed to be there.

[03:32:34] We were not given ample time to review the information that was proposed and feel that we need to have a little more time to review it and have more input as to ways that the data center and the substation could be improved maybe more efficiently using alternative methods for the energy and so forth. Let's see, I've lost my place. I'm so sorry. Okay. The impact of the

[03:33:12] substation will have an impact on our residential electricity bills, our home values, environment, and the health and well-being of our families. When the substation was initially built or the first, I guess, phase we'll call of it, was built, like Kathleen Stakem had said, there was a lot of construction noise. There was many issues with construction vehicles going through the neighborhood and lots of noise during the evening, too. The goals for today would be that we get mitigation

[03:33:47] from the meeting, that we get legally binding infrastructure and environmental mitigation contributions, explore advanced composite conductors or upgrade existing substations before expanding, and that we defer this application, giving our community a real seat at the table, requiring a binding agreement before any approval goes forward.

[03:34:09] Thank you. Ma'am, I think this next young man is your son. Is that right? Yes. Wonderful. And he will be followed by John Ellis. Hello, sir. How are you doing? Good. How are you? I'm well. Good evening. My name is Aiden Sorensitz, and I'm a resident of Kincaid Forest.

[03:34:24] I'm taking time out of my day to attend this meeting and speak about the proposed Aspen Power Substation planned for the area off of Cross Trail Boulevard. From my perspective, this project is being built primarily to support Dominion Energy and the growing number of data centers in Loudoun County, while placing the burdens and impacts on the residents who live nearby.

[03:34:42] There are numerous concerns associated with this project. During construction, heavy truck traffic will increase on residential roads such as Kinky Boulevard, where I live. I have personally witnessed construction vehicles driving through the neighborhoods while distracted, creating safety risks for children who walk to school, ride bikes, and play outside.

[03:34:59] Residents should not have to worry about additional hazards being brought directly into their communities. I am also concerned about the potential health impacts associated with locating a substation so close to a neighborhood. While there is ongoing debate regarding long-term health effects, studies have raised concerns about possible links between electromagnetic field exposure and certain childhood illnesses.

[03:35:20] Regards of where one stands on the science placing this type of infrastructure immediately adjacent to my home and schools is a risk many families feels unnecessary when alternative locations may exist. I also experienced the impacts of the previous substation construction firsthand.

[03:35:36] During the first phase, I was awoken numerous times throughout the night by drilling, construction activity, and numerous other stuff. This occurred during the school year when I was expected to be focused on academics and athletics. Lack of sleep affected my ability to perform well in tests, complete schoolwork, and contribute as a member of the Heritage High School football team.

[03:35:55] I know I was not alone in my experience during these disruptions, and after speaking with other kids in the neighborhood, many shared the same experience that they dealt with with sleep disturbances and felt that it negatively impacted their school to perform as well. When a project affects daily lives of children throughout the entire community, the impact should not be dismissed.

[03:36:13] Another concern is Loudoun County being promoted Tree City, USA, and yet projects like this often require removal of significant amounts of mature trees. So I please ask that you defer. Hayden, one of the number one fears of human beings is public speaking. Most people just can't do it. You did a great job. Thank you. You did a great job.

[03:36:36] John Ellis, can you follow that? Yeah, like me. Thank you very much. Good evening supervisors. I'm here, John Ellis, on behalf of Saver O'Loudon, and we, as I said before, are very strongly opposed to the Valley Commerce Center for all the reasons that have been articulated by the residents and by the members of the town council. I'm just going to mention a couple of things. I'm not going to rehearse everything. On water, I would just note that professional hydrogeologists who are not commercially affiliated with the applicant have reached exactly the opposite conclusion of what you heard earlier.

[03:37:15] With respect to job growth and so forth, one thing that's important to realize is that the town of Percival, the town of the workforce, primarily commutes from West Virginia. Most of the larger businesses, their workforce actually does not live in Loudoun County, and they commute on very frustrating, long drives, increasingly dangerous drives every day back and forth from West Virginia.

[03:37:43] This new place would create jobs if it were established. The workforce would have to come to it, and that would also exacerbate the traffic problems. It would not be good for the workers. I was glad to hear Mr. Cox say that they're considering other locations. I'd suggest they find locations that are closer to the actual affordable housing of the workforce.

[03:38:05] So, for all the reasons that have been said before, traffic, water, et cetera, this is just not the right location for flex space, and we would request that you not allow the application. Thank you, Mr. Ellis. Jason Mullins, you're going to be followed by Keith Mainland.

[03:38:25] Good evening, sir. Hello, Chair Randall and board. Thank you. I appreciate the chance to address you tonight as a leader of growth for Loudoun County Small Business Landscaping Company. I see

firsthand the challenges we face in Loudoun County, particularly in western Loudoun, and I fully support the development of the Valley Commerce Center.

[03:38:49] Many small businesses, like our commercial landscaping company, are feeling significant squeeze. The rising costs in eastern Loudoun are making it increasingly difficult for us to operate there. This pressure forces companies further out west to neighboring counties like Clark, Frederick, and Warren.

[03:39:06] And it's not because we want to leave, but because we have very few industrial zoned options. Essentials like yards, storage, facilities for equipment maintenance are crucial to our success. And without them, we can't function effectively.

[03:39:22] When businesses like ours are forced to relocate, it impacts not just our growth, but the local jobs and the services for our community they rely on. Let's think bigger for a moment. Loudoun County's land is incredibly valuable, and it will be developed. This is a reality we must face. The real question is, how do we want the land to be shaped? We can either continue expanding with generic development, or we can take more thoughtful approach, setting aside space specifically designed to uplift small businesses that contribute to our

[03:39:54] community. Thank you so much. Thank you, sir. Keith Mainland, followed by Issam Diab. Good evening. Good evening. Thank you for having me. I run a small landscaping business here in Loudoun County, and I live in Perceville as well.

[03:40:13] And I fully support the development of the Loudoun Valley Commerce Center. We simply need more industrial space in western Loudoun. Right now, small businesses like mine are being pushed out. Eastern Loudoun has become so expensive it is no longer realistic for many of us to operate there.

[03:40:29] We're being pushed further and further out, not because we want to leave the county, but because we don't have the place to function within it. We need yards, shops, storage space, and room to maintain our equipment. Without industrial zoning and available space, we physically can't operate.

[03:40:45] And when businesses like mine leave, it's not just about us. It's about local jobs, local services, and local dollars that disappear with us. The bigger picture is land in Loudoun County. It's valuable, and it's going to be developed one way or the other. Fortunately, we have a choice in what that development looks like.

[03:41:02] We can either continue down the path of building hundreds of cookie-cutter homes, or we can be intentional and carve out space that supports the small businesses that actually serve those communities. Thank you. Thank you, sir. It's Amdiab, followed by Joshua Powers.

[03:41:20] Give me one second, please. Sure. Just been taking notes and I didn't get them down. All right, ready when you are. Thank you. Thank you for your time and thank you for your service to our county.

[03:41:36] I'm not going to go into so much detail. I feel like a lot of folks went into detail about the Aspen substation and why it's a big no-no. But I'm sitting here listening, and I'm connecting some dots. I don't know if anybody else is, but we seem to hear a lot about local businesses, no room in Loudoun County for industrial, for light industrial, whatever the case may be.

[03:41:55] And it seems like what is taking precedence is data centers. A gentleman here said he's being outed from his small industrial zone by a data center. I live in Tuscarora, literally right across from where

these substations will be.

[03:42:11] I know you guys have seen me before. We're used to fighting substations together. And like I said, we keep hearing there's no space. And the problem might actually be the data centers. My understanding is this board is leaning more towards advocating less for data centers.

[03:42:31] And we keep hearing about wanting to draw the line and send a message. I'm going to go maybe a little rogue from everyone and say not deferral. But if you really want to send a message, it seems like we're in a closed loop. We're in a spiral that's closing in on itself, and at the center, there's data centers.

[03:42:47] Everything seems to lead back to our expansion. Around us alone, there's six data centers popping up. That's a bit ridiculous, in my opinion. It's, do we want to be known as the tech capital? We're not. We're the data center hell of the world, is effectively what we're turning into. And I'm going to say, don't defer.

[03:43:05] You want to send a message, and you want to bring Loudoun County out of this chasing our own tail. Deny the Aspen substation. Deny the hell out of it. Send a message. Let's get local businesses space to operate. Data centers employ nobody, and they employ folks from out of town.

[03:43:23] It's not allowed to count as best interest. Yes, they get taxes coming in, but no jobs. There's no real meaningful growth with data centers. Please deny. So I'm going to have a data center town hall on the 6th of July, and I'd like you all to come because so much information that is said It's just, I'd like to be able to clear up some things.

[03:43:44] I also don't know how we deny the hell out of something, but we're going to talk about it. But that's okay. Just do it with authority. Thank you. Thank you very much. Joshua Powers, followed by Shane Crow. Good evening, sir.

[03:44:03] Hey, good evening, Chair Rendell. Thank you for the opportunity to speak. I'll first say I hope you guys approve the hell out of the Valley Commerce Center proposal. My name is Josh Powers. I'm an 11-year Loudoun County resident and live in Percival. Like I said, I'm here in support of the Valley Commerce Center application.

[03:44:22] I believe this project represents the kind of balanced economic development that Loudoun County, specifically Western, Loudoun County needs. As a construction professional, I work closely with many small local businesses and contractors every day. I see firsthand how difficult it can be for contractors, suppliers, service providers, and other locally owned companies to find suitable and affordable space to operate and grow in Loudoun County.

[03:44:49] Projects like the Valley Commerce Center help create opportunities for those businesses to stay local, serve their customers more efficiently, and continue contributing to our community and economy. Valley Commerce Center will create local employment opportunities and allow more residents to work closer to home.

[03:45:05] As our community continues to grow, we need places for businesses to expand and invest locally. Certainly, no project is without impacts, but the question is whether those impacts have been responsibly addressed. Based on extensive studies and mitigation commitments that have been offered by the applicant, I believe that they have.

[03:45:27] I respectfully encourage the board to approve the Valley Commerce Center application. Thank you very much for your time. Thank you. Thank you. Supervisors, we will have time to get through the four people who signed up and were numbers 46, I think, through 49.

[03:45:43] But we will not have time to get to anybody else within the time frame. So if anyone else signed up after that, I'm sorry, we won't be able to get to you. Our next speaker will be Shane Crow, followed by, I think it's Philippe Domeningas. I think that's how that sounds.

[03:45:59] Good evening, Mr. Crow. Good evening, Chair Randall, Supervisor Briskman, members of the Loudoun County Board. As always, my name is Shane, proud Loudner, always speaking in support of Ranked Choice Voting. Unfortunately, I do not have anything to say regarding the Valley Commerce Center, but I am delighted to see members of Percival Town Council.

[03:46:17] If you would like a conversation with Ranked Choice Voting, I'm more than happy to. The board can attest that I don't bite, but I'm always here voicing my support, keeping the rhythm going, and continuing the conversation regarding use of Ranked Choice Voting for our local elections here in Loudoun.

[03:46:34] Now, I know Joe Randall and I had a brief discussion regarding the mayoral primary race for D.C., and we look forward to seeing how their use of ranked-choice voting plays out in their party primary. But personally, I also highly recommend use of ranked-choice voting for all of our local elections, because one of the issues that came up during Arlington's implementation was the metaphor of a light switch, where it seemed like their board turned on ranked-choice voting for the party primary, but then turned it off for the general election, and that rubbed a lot of their residents the wrong way.

[03:47:03] So if we do wish to use ranked choice voting, I highly recommend, like, using it for both party primary and the general election. And, again, I direct the rest of my time to Supervisors Letourneau and Kirshner. I know it can seem at times that it seems as though I'm only doing it in support of Democrats, but, again, my, like, passion for it is personally nonpartisan, as I often say on behalf of Upvote Virginia.

[03:47:26] But to give my other side argument is that it tends to help break down the kind of closed grasp that a lot of the party leadership have over the picking of their nominations. And that's beneficial not just for Democrats and Republicans, but for any political party that wants to participate.

[03:47:45] And the other thing, too, that using range-based voting also allows for is leveling the playing field with those outside of the Democratic and Republican party machines. So, again, I do hope to continue the conversation regarding ranked-choice voting. I hope you all have a great rest of the evening. Thank you, Mr. Crowe. Appreciate you.

[03:48:04] If I'm saying your name wrong, sir, can you say your name for me? And you're going to be followed by Richard Prusina. Good evening, Madam Chair and members of the board. My name is Philippe Dominguez of River Construction, a foundation and site work company serving northern Virginia communities, including Loudoun County government, for 39 years.

[03:48:26] Today, I represent Dulles Trade Center 2 Association and over a dozen properties with over 50 family businesses in the Dulles and Sterling districts. These properties will be directly impacted by Dominion Energy's Golden to Mars proposed transmission line and substations.

[03:48:45] As many of you have mentioned, there is a lack of space for businesses. This impacts much-needed existing business space. We are not here to stop the energy grid from growing. We understand the

need for reliability, but we are asking the board to stand with us and demand that this project does not come at the expense of businesses and the residents and the schools that have invested in, hired in, paid taxes in in this county for years.

[03:49:17] Together, properties and over 50 family businesses will be affected by these routes. that represent real jobs, real tax revenue, and a real economic contribution to Loudoun County and the Commonwealth of Virginia. Studies in this very proceeding have estimated the property devaluation impacts as high as \$180 million. That is not an abstraction. That is our land.

[03:49:43] That is our operations. That is our livelihoods. The undergrounding option is not a luxury. Less than 1% of the \$50 billion data center investment this line is designed to serve is a reasonable ask for undergrounding the lines.

[03:50:00] Loudoun County already recommended undergrounding properties within 500 feet of residences. We ask that commercial properties receive the same protection. The direct beneficiaries of this line are data center corporations. The people bearing the burden are us, residents, small and mid-sized businesses that have been here for a long time.

[03:50:21] Sir, I'm sorry, your time is up. Thank you. Thank you, sir. Richard Prusina, you will be followed by John Brown, and the last speaker will be Sherry Shields. Good evening, sir. Good evening. How is everybody today? Long night, I know.

[03:50:36] My name is Rich Prusina, and I live in the Chestnut Hills neighborhood, which is just north of Mayfair. We have a seven-acre plot that just steps away from VCC. I'm urging the board today to vote no to the VCC application.

[03:50:54] I lived in Loudoun County for 17 years, but my story goes farther away from that. I was born in Czechoslovakia. In 1969, my father brought our family to the United States in search of freedom and a better life. After becoming a naturalized U.S. citizen, I went on to serve the country as a soldier for the United States Army.

[03:51:16] After my service, I chose Percival as the place to build my life because it represented everything that my father, my family, came here for. And that's for peace, community, and an American dream. Today, my wife and I care for three horses and a handful of other animals.

[03:51:36] And water is not just an abstract concept for us. It's a daily necessity. When we face drought conditions, every gallon matters. Every drop matters. And that is why this proposal is alarming. With the VCC, we don't just lose water.

[03:51:54] We lose the very character of Western Loudoun. We lose the country feeling that drew so many of us here. And let's be honest, a commerce center of this scale is no better than a data center. In fact, in many ways, it's worse.

[03:52:09] It's comparably used the same amount of water. It generates noise from air handlers, and there's thousands of vehicles coming in. So I ask everybody in the board, please say no to this application.

[03:52:27] Thank you. Thank you. John Brown and then Sherry Schiltz will be our last speaker. Is John Brown here? John Brown? No? Okay. Ms. Schiltz, you're going to be our last speaker, ma'am. Good evening.

[03:52:46] Good evening. My name is Sherry Shields. I'm the president of the Loudoun County Bed and Breakfast Guild. I'm also the owner of Hidden View Bed and Breakfast, located in Hillsboro, that shares

the same zip code with Percival. The Guild represents nearly 100 independent lodging properties and tourism-related businesses that help drive western Loudoun County's rural economy.

[03:53:07] I'm here tonight to respectfully urge you to deny the Valley Commerce Center application and support your professional planning staff's recommendation for denial. Tonight's decision is not simply about one company or one 117-acre parcel.

[03:53:24] It's about the future of Western Loudoun County. County staff concluded that this proposal is inconsistent with the Loudoun County's adopted general plan. After years of review, staff still recommends Denal based because this type of industrial development simply does not fit the vision established for this area.

[03:53:45] We agree. Percival and Western Loudoun have become successful destinations and desirable places to live because they offer something increasingly rare in Northern Virginia. Authentic small town communities, open spaces, scenic landscapes, working farms, and a strong sense of place.

[03:54:05] Visitors choose Western Loudoun for experiences they cannot find elsewhere, and many residents choose to make it their homes here for the very same reasons. Our guests support local restaurants, shops, events, venues, hundreds of locally owned businesses throughout the region.

[03:54:21] And as a business owner, I can tell you that our rural roads and communities are already heavily impacted by commuter traffic and large trucks. Additional, additional traffic will affect surrounding neighborhoods, schools, business centers, and visitors that support the local economy.

[03:54:38] Western Loudoun's economy is already successful. Once the character of this county is lost, it cannot be replaced. It cannot be replaced. So we respectfully ask you to uphold the county's adopted vision for Western Loudoun, support your professional planning staff's recommendation, and deny this application.

[03:54:58] Thank you. All right, Loudon, what we're going to do now is, so at the last meeting on May 19th, I actually, it was a really, really long meeting. We walked out of here at 1 a.m., so I called Mr. Kuhn and asked him, did he mind if I pushed the Valley Commerce off?

[03:55:14] And I pushed a couple of other things off just to try to not have us here until 5 a.m. He said yes, and I told him if he would do that, I would put VCC at the top of the agenda for the action item for this meeting, which is now. And so we're going to do Valley Commerce next because I made a promise that I would.

[03:55:33] I also have a motion that was sent out, the rough wording was sent out, I think, at 10 this morning. And then I got the supervisors, I got the legal wording about 1 o'clock. And it is about the, this is not right.

[03:55:56] Okay, this is not right. Darn it. Well, it was about Mayfair Crown, and we'll get to that in a second. Darn it. But we'll get to that in a second. It's on the red piece of paper.

[03:56:13] Would the staff please come to the table so we can do Valley Commerce, please? Thank you. And we have not one, not two, but three Valley Commerce items.

[03:56:32] Well, not motions, but presentations because we have an item, we have a supplemental, we have a presentation. So let me ask you, is there anything new that we don't know already that we have this happened in the past couple of weeks about Valley Commerce that would be new to us?

[03:56:50] that would be in a presentation that we haven't seen before? There would just be the updated information that was provided in proffers dated May 28th. Okay, can you offer those then? Because we haven't – well, let me just go ahead. Mr. Kirshner, do you need to see anything else that – because this is your district?

[03:57:08] I don't need to see anything, but if any – Well, I do want to see the updated proffers. Yeah, yeah, of course, but beyond that. Does anyone else need to see anything else besides the updated proffers? Okay, great. We're ready when you are. It's the same as – One second.

[03:57:25] This is my motion. Do you see the colored paper? Yeah, but they printed his on here. Oh, can I see? No, they're identical. They're not identical, Mr. Kirsten. Well, but this is not my, this was not, this is not. Oh, God. Justin, if you can hear me, can you come down here, please?

[03:57:46] Because what happened is this, just so you all know what's happening up here. Mr. Kirsten and I have put two motions forward for the, mine's is for Mayfield Crown. His is for the Northern Collector Road. They accidentally printed the same exact motion.

[03:58:04] So mine's and his, the same. They're different motions. I need my motion, not Mr. Kirshner's motion. And so although the motion went out today to everyone, the one on the dais in front of us is not the correct motion. So, Jason, if you can hear me, come on down so I can get the motion that went out to all my colleagues.

[03:58:24] It has to be the one that's in front of us right now. They printed Mr. Kirshner's twice. Mr. Sainz, when did you send your motion in? Because this is the first time I'm seeing your motion. Okay, Mr. Sainz, with due respect, at some point I really do have to actually draw the line and say that if a motion is impossible for me, I can't speak for our colleagues to take in a motion and fully understand it in the middle of the meeting.

[03:58:57] So I do not believe a motion like this would, if you offer this motion next meeting, it wouldn't matter one way or the other, it's still the same motion. But this motion coming in while we're literally in the meeting is, I'm not going to allow it.

[03:59:16] Did it go out at all before this meeting? No, it went during the meeting. Okay, yeah, so it is just impossible for me to even, and if you did it next week, there's not going to be any push one way or the other, to be quite honest, because it's just one week from now, but I keep saying it, and I keep allowing it, and at some point I have to actually say, you know, I have to actually say no, so with respect, I'm not going to allow your motion this meeting.

[03:59:47] Well, can I ask Ms. James Street, is this, would this? Mr. Sains, I'm not going to allow your motion this evening. So Mr. Hemstreet, with every bit of respect to him, doesn't set the agenda. I do, and I can't ask everyone else to do something and then keep saying, and then keep changing at every meeting.

[04:00:08] I understand that, but this is very important to the item, and I don't think, that's why I was asking if we could ask Mr. Hemstreet, Because say moving the motion to next week, I don't think that tracks with the motion that we're going to be discussing.

[04:00:24] Mr. Sainz, I'm not going to allow this motion this evening. All right. All right. We can do it next meeting. I'm not going to allow this motion this evening. Guys, we can do this later, but I cannot have a

motion walk in the dais during the meeting and then believe that we can all take it in, understand it, know the implications, ask questions, whatever, I can't do it, especially, I mean, literally, we've had two weeks.

[04:01:02] So... Oh, if I could say that. Never mind. All right. So, Mr. Sanchez, I mean, you know, listen, you and I are super, super, super cool and all that stuff, but respectfully, I just can't allow, I can't keep saying yes if I'm going to...

[04:01:18] All right, then I'll do a reconsideration next week. Okay, whatever has to happen then. Okay, I'm sorry. We don't normally do all the dirty laundry right in the day, but we'll have to get that done. All right, can you please give us the proffer updates? The proffer update that came in on Thursday, Friday of last week is off-site well monitoring would be extended to five years, starting between the issuance of certificates of occupancy for at least 300,000 square feet of non-warehousing and storage uses

[04:01:55] and 493,000 square feet of all permitted uses, rather than when the proposed well VCCD begins serving commercial development on the property. Um, there were also, there was also questions asked at the, um, public hearing about industrial development and residential development.

[04:02:22] Do you wish to hear about those? If they're, yes, yes please. And, and I also would like to hear about anything, anything around water that you want to tell us that might be. He came down already.

[04:02:44] First, um, with regard to traffic, and this would be, um, conservative, this is based Based on the 101.2 million square feet of all uses, it has since been reduced to 986,000 square feet.

[04:02:59] But the question was asked about traffic at Hearst Road and Route 690, and in 2030, without Valley Commerce Center, there would be 6,240 vehicles per day, westbound 10,410 northbound and 12,500 southbound with full build-out westbound, it would be 7,330 vehicles per day, 10,630 vehicles per day northbound on Route 690, and 13,400 southbound.

[04:03:37] The differences are 1,090 vehicles per day westbound, 220 more vehicles per day northbound, and 870 vehicles per day more southbound.

[04:03:51] And then it was asked about what residential water uses there would be for the 117 acres if constructed at the density of the Mayfair residential community to the west across Percival Road.

[04:04:21] Mayfair, as built, is at five dwelling units per acre, so for the 117 acres, it would be using 204,000 gallons per day based on Loudon Water standards of 350 gallons per day per dwelling unit.

[04:04:40] And I also provided for the 39 dwelling units by right with JLMA, that would be using 13,650 gallons per day. Also, I provided some information on the rest of the Percival Joint Land Management Area, which has JLMA 1 and JLMA 2 zoning districts.

[04:05:04] And if constructed at one dwelling unit per acre, the average gallons per day would be 40,950 gallons per day. And with two dwelling units per acre, 81,900 gallons per day.

[04:05:23] It was also asked about industrial development north of Route 7. The Mayfair and East Nichols Road, East Nichols Lane industrial area contains currently 246,000 square feet of industrial development, and the St. Francis Court industrial area to the east adjoining Wright Farm has approximately 12,000 square feet of industrial development.

[04:05:53] Okay. And, again, there's the proffer commitments to offer off-site wells monitoring for up to five years with on-site and off-site mitigation if negative effects are detected.

[04:06:21] And that's all the updates that I have for you now. Thank you. Supervisors, how about we go in and ask questions to staff that we may have, and then we will go to Mr. Kershner's district. So the practice is to go to the district supervisor for a motion.

[04:06:38] So I will keep that same practice and do that today. But let's do questions first. If anyone has any questions, please put your light on. Mr. Kirshner. Thank you, Madam Chair, and thank you, staff, for your hard work on this.

[04:06:54] So I just want to make sure I understand this. I've talked to a number of individuals with the Planning Commission, and my understanding that both Wrights Farm, which is one of the adjoining neighborhoods, and Mayfair were long-planned commercial industrial uses in Percival, but then Mayfair - the Mayfair was built along with the commercial site next to it as part of a lawsuit. Is that -- is staff aware of that? Is that correct?

[04:07:22] Yes. Okay. And -- Mayfair goes back to Autumn Hill that was approved by the Board of Supervisors in 1989. Yes. And then the commercial was also part of that application as well. Is that correct? Okay. And when, I think it was on the previous one, this was passed by the Planning Commission 7-2, is that right?

[04:07:45] 6-2-1. 6-2-1, okay. What I appreciate and thank you very much for the square footage that you put up there on the other commercial, both I think, which would, one is kitty corner to this application and the other one is just behind this application next to Wright Farm.

[04:08:03] My understanding, and I looked at this today, and I don't know if you can confirm it or not on the fly, and if you can't, that's fine, But my understanding, the commercial property that exists kitty corner to this application, I think you had up here 4,000 or 3,000 square feet. It's literally, it's a significantly higher FAR because this one is on 117 acres.

[04:08:24] That's on a much smaller parcel. So that one is actually far more dense than this property. Is that correct in terms of square footage? Offhand, I don't have that information. I'm pretty sure it is, but if -- I just wanted to know if staff was able to confirm that or not, but I'm almost -- I'm actually 99.9% sure I'm correct on that.

[04:08:49] The applicant started off at 1.2 and came down below a million square feet. Is that correct? And as original part of the process and the Planning Commission approved this? They're at 986,000 square feet by now. Okay. So they -- but they started higher, came down as a proffer.

[04:09:05] And I know a lot of folks are concerned about the road and the traffic. My understanding, there is a proffered money to go to both to an interchange at Hearst and Percival, as well as Hillsborough and Hearst, as well as a turn lane into Mayfair. Is that correct?

[04:09:23] Okay. Mayfair, also a traffic light at the primary entrance road south of Mayfair Crown Drive. Okay. And then there's also a 30-foot, I want to make sure I get this right, a 30-foot dedicated right-of-way, dedicated to county for improvements, widening of the road.

[04:09:46] That's actually literally Percival Road, correct? I believe that is correct. Okay. All right. I'm out of time. Thank you. Thank you. So, Mike, you guys, no other questions? Oh, I'm sorry. I didn't see you. I'm sorry. Mr. Sainz. I'm just going to skip over me tonight when I'm joking.

[04:10:04] Don't. Just don't. All right. Can you go give us a little bit deeper dive into the updated property you mentioned regarding the well monitoring up to five years? Can you unpack that for us a little bit further and what that all means and how that will play out?

[04:10:20] Okay, just to provide the number with the update in front of you, they would extend well monitoring to five years that would start not at when they began commercial operation of the well,

[04:10:52] but to when they had issued certificates of occupancy for at least 300,000 square feet of non-warehousing uses and up to 493,000 square feet of all permitted uses.

[04:11:09] So at some later date than when they began operating pumping from the well to when they actually were in operation of facilities on the property, but they would be, for those landowners who, off-site landowners who would be permitting monitoring of their wells, the applicant is also proffering that they would begin monitoring those wells before the certificates of occupancy so as to obtain baseline data.

[04:11:47] Okay. So in other words, usually, well, I think the original proffer language stated that they would start the monitoring and whatnot during the first issuance of the occupancy permit. Is that accurate? From commercial operation of the primary well.

[04:12:06] Okay. And now it's going to be further delayed until almost if this was to come to pass and more once they have more tenants in operation. Is that accurate to say? That is accurate. And what was the original amount for the well watering before this update?

[04:12:25] Or how much they would be drawing from? How long was the monitoring? Because it was a shorter period of time than five years. What was the original? Four years. Okay. All right. Okay, thank you. So when I was asking about water, I was actually asking about the discussion that has been had about groundwater.

[04:12:48] Because it is my understanding that it wasn't, that it was trusted sources that the county has that is not questioning the well or the groundwater and knowing that the applicant is going to be testing this water for, testing these wells for some years to come.

[04:13:09] So my question when I talked about, and I wasn't clear, so I apologize, it wasn't about water usage. It was about the groundwater studies and what do those look like? Do we, does any, does staff believe that the groundwater is going to be an issue or the wells are going to be an issue?

[04:13:26] The applicant prepared, in line with the county's facility standards manual, the applicant did prepare a hydrogeological study, which the county sent to a consultant on a contract basis who evaluates such studies, who found that the applicant's hydro study did conform with the FSM, the facility standards manual.

[04:14:01] and stated in the staff reports and action items that there's a reasonable potential that there could be an effect, off-site effect in future years. So let me say that back to you because I'm not sure. I want to make sure I got you right.

[04:14:17] The applicant did the groundwater study and sent it to staff. Staff then sent that to the people to use loose words that we use And the result back from our hydrological study that we used said that there is a reasonable potential that there could be negative effects in future years.

[04:14:42] And is that why then the applicant said he would do a five-year study of the wells to make sure that there are no impacts? Is that the right timeline? Generally. The county did not do its own

hydrogeological study.

[04:15:01] Right, I understand. This was the evaluation of the applicant's study. But the rest of it that I said, and what was sent back to us was there's a reasonable possibility that there could be issues. And so in response to that, the applicant said, I will for the next five years monitor all the wells and then mitigate if there's an issue.

[04:15:24] Is that all correct? That is correct. That is correct. And that would go either to change usage on the applicant's property, use a different well, use less water, or go so far as to drill new wells.

[04:15:42] And this is for landowners who allowed for monitoring during this period. Okay, I understand. Mr. Kirsten, would you like to make a motion, please? Yes, Madam Chair.

[04:15:52] I move the Board of Supervisors to approve Leggie 2023-0080, Valley Commerce Center, ZMAP-2023-0008, and ZMOD-2023-0041, based on the Planning Commission's findings for approval and subject to the proper statement dated May 28, 2026, provided as attachment 1 and 3 to the June 2, 2026 Board of Supervisors Business Meeting supplement action item.

[04:16:22] Motion is made by Supervisor Kershner, seconded by Supervisor Umstead. Discussion on the motion, Mr. Kershner. Thank you, Madam Chair. Three minutes is probably not enough for me. All the things I want to say, but I want to hit the highlights. First of all, I want to thank everybody for coming out, all those who have emailed me. Some of you I've not been able to get back to.

[04:16:39] I will try to do my best. But thank you for coming out. Thank you for all that you've said, both at this hearing, the public hearing, all the hearings we've had, going back even to the hearings of Percival. I will note that I've obviously, I would note to the folks who said, well, our staff is against it.

[04:16:59] Our planning commission is for it. They have to look at things much broader in terms of the county as a whole. That was never brought up tonight, but I really thank everybody for their support. Ultimately, I support this application. And let me give you just the highlights of why. First of all, we've all heard there's a massive shortage of flex industrial.

[04:17:17] And there's a massive shortage in the town. As a matter of fact, one of the things that probably persuaded me to support this is during the Small Business Awards, I visited several businesses, and you know what they all told me? And some of these were in Percival. They're going to move to West Virginia. They're going to move to Clark. They're going to move to Winchester because they don't have this kind of space available.

[04:17:35] And they weren't part of this application at all, but there's a huge shortage in Percival. And Percival will start losing businesses as well as what's provided here. I know there was a lot of talk of traffic. That's been my primary concern. I believe the interchange is 690 and 7 is going to help a lot.

[04:17:54] Yes, this is going to add some additional traffic. But I will also note that the applicant has put forward, as mentioned in my questions, a number of things. Two lights, turn lanes, 30-foot right-of-ways. And also, one-third of this project is going to be used by JK as storage, long-term storage.

[04:18:14] They estimate about 50 vehicles a day for one-third of this project. So I think the numbers that obviously they were required to give because of VDOT and standards are obviously far overblown. So I believe it's going to be much less. The groundwater, I know there was a lot of talk about the groundwater. As you can see from what staff put up here, there is, and I'm going to run out of time, but there is, it could

be \$13,000 all up to \$80,000 if we've got rezoned a jail on Way 1, and nothing is not going to happen on this property.

[04:18:44] And I do believe that it has fairly been mitigated, as mentioned. A lot of people mentioned, well, this is the wrong place. Make it better. And I appreciate all of that. This was previous as JLMA. JLMA is kind of mixed use. Mayfair has commercial literally right next to it.

[04:19:01] And I just want to point out the commercial that's there, and I think there's a lot of fear that's going on, the commercial that literally exists is 0.49 FAR. This is going to be 0.19 FAR. It's much smaller in terms of the total that is going to exist on this property. And finally, and I really want to end with this, Percival has a revenue and a water problem.

[04:19:20] They just got downrated from AAA to AA because, quite frankly, the management and Percival, I wish they would have looked at this and realized, this is going to provide millions of dollars if they are willing to annex it in the future, and I hope they will. Thank you, Madam Chair. Mr. Kirshner, you can have a closing. Don't forget it was your motion, so you could have a closing.

[04:19:38] Ms. Umstead. Thank you, Madam Chair. One of the statements made tonight by a member of the business community who supported this, I thought was especially telling, and that is that it's the board's duty to provide not just for residents but for jobs.

[04:20:02] And I think the business community came out in force in support of that tonight. When I was asked by the applicant if I had any concerns, I said, I need to know that the water situation is going to be monitored and that this will have no worse an impact on water than what could go in if this were to go residential.

[04:20:33] And I think the applicant has taken care of those concerns. I appreciate the applicants' proffers on road improvements as well. So this is the most critical business need in the county, and I think we need to be mindful of that.

[04:20:54] So I will support it. Thank you. Thank you. Mr. Crony. Thank you, Chair Randall. I will not be supporting the application tonight. I hear the community that we need more diversified, more diversified flex space, but this is not the right location.

[04:21:17] One of the primary justifications provided for this project is that shortage of flex space in the eastern part of Loudoun County. But coming up, offering up farmland in the rural western part of the county for industrial use is just not okay.

[04:21:34] Farm to industrial conversions in rural Loudoun cannot be the future of the rural policy area. Approval of this application is precedent-setting. What comes next if this application is approved? It really does impact the rural character of western Loudoun County.

[04:21:54] I want to point out the community does not support this application. Communities of Wright Farm, Mayfair, and Chestnut Overlook that are adjacent to this proposed application have actively opposed the proposal. 93% oppose Valley Commerce Center.

[04:22:13] The town of Percival has twice rejected JK's proposal to allow the BCC development and incorporate the land into the town. The application does not meet the policies of the comprehensive plan. It does not meet the policies. Staff is correct. And we spent years getting our comprehensive plan feedback from the public. It's inconsistent with our comprehensive plan. And it does require—this type of industrial

use requires central utilities, public utilities. There's no public utilities here. There will be an impact to the groundwater.

[04:22:52] There absolutely will be. There are droughts. We are monitoring. The county is monitoring groundwater supply. The state is doing a DEQ study because of our shrinking water supply. And our third-party review of the Valley Commerce Center site, our third-party review said that there would be an impact to off-site supply wells.

[04:23:17] They said that. And that is from our third-party review, and it is ECS Mid-Atlantic LLC. So I believe there will be an impact, even though we're doing off-site well monitoring on 13 properties. I believe there will be a broader impact on groundwater and on the surrounding communities.

[04:23:39] I'm just really surprised that we're supporting this tonight. my colleague in the Catoclin district, and I don't agree on a lot of things, but this one I really feel will have a negative impact on the future of Western Loudoun County. One million square feet of industrial on farmland will have an impact on Western Loudoun County. Thank you.

[04:24:05] Thank you. Ms. Bricksman. Thank you, Madam Chair. I also will not be supporting the motion. I think staff made very clear that this property does not support this type of a use.

[04:24:21] It's not what's envisioned in our general plan. We do have a general plan, and it is not envisioned in that general plan. So I won't be supporting it. I would associate myself with Ms. Ehrman's comments. It looks like she left over.

[04:24:38] Oh, there she is. Yeah, I would associate myself with all of her comments about this project. And I also would say I have to agree with the speakers who said that really the problem is the data centers, because every time a property was rezoned for data center that could have been homes, that could have been flex industrial, that could have helped us diversify our economy,

[04:25:05] Every time we converted land to those uses, we restricted those uses, and now it's getting pushed into these areas of the county, and that's one of the main reasons I've been voting against data centers since 2020, because every inch of land we gave up, every inch of land we rezoned constrains us now, and we can't get it back.

[04:25:29] Like some of the speakers said, we can't get it back. So I think that this application is just a symptom of what some of us foresaw coming down the pike with a lot of those rezonings that have happened over the last 10, 12, 8 years by the board.

[04:25:48] So I won't be supporting it, and I do recognize the need. And I almost always hate it when speakers come and say, I support these uses, but not here. But that's exactly what I'm going to say right now.

[04:26:04] I know we need the use. This is not the right place for the use. I appreciate the applicant's efforts on this, but this just is not the right place, and I'm going to vote no. Thank you, Madam Chair. So it's just not true that we've been rezoning things for data centers. That's just not a true statement.

[04:26:20] Most of the data centers that we have right now are because they've been by right, and they were put by right in 2003. And that is why I'm having a data center in town hall to clean up and clear up misstatements like that. That is absolutely not factually correct. It's just not. What else is not factually correct is that this is farmland.

[04:26:38] This is not farmland, Mr. Crony. It's not. It's actually literally put down there for residential uses. I don't agree with the amount. I would make it much denser. But it's not farmland. So if you're going to talk about the comp plan, you can't talk about the comp plan and then say something that the comp plan doesn't say.

[04:26:56] The comp plan does not say it's farmland. And the third-party review did not say there will be a groundwater impact. It said it's reasonable to believe it could be a groundwater impact. It's really important to state things that are true. I am not supporting this because of a whole different reason.

[04:27:14] One, I was like absolutely slam dunk. This is a clear land use issue. This should not happen. And then I went out there, and with all due respect to all my constituents in Percival, I was shocked when I went out there and drove around. Mayfair was plumped down right inside of an industrial area.

[04:27:34] It's not as if there's not industrial. Mayfair is the use that's not—Mayfair is the odd use out. The area is an industrial area. Literally in the back of Mayfair is an industrial area.

[04:27:50] People can look out their back windows. probably maybe 50 feet away from you. And so I don't quite know what this kind of weird residential neighborhood. No, you're not. You're an industrial area and the residence is in there. I actually, if this were me, I would make absolutely sure and take all the time and effort that we needed to take to make sure that you had all the infrastructure in place to upzone this to dense housing.

[04:28:20] That's what I would do here. This would not be three houses an acre. We do have a need for this product, but we have a huge need for housing also. This would be housing, and it would be attainable housing, and it would be senior housing, and it would be veterans housing, and it would be disability housing.

[04:28:36] I would put housing here. And so let's make real sure, clear, all the statements that are being made here. I would put housing here, and I think that's actually something that we need to have here. So I just want to say that a lot of this stuff that's being said is just not factually correct.

[04:28:58] And if it were to me, I'd put infrastructure in place and then put houses there. Mr. Kirsten, would you like a closing? Thank you, Madam Chair. Just to answer a couple of my colleagues. First of all, this is not rural policy area, unlike what was mentioned as JLMA. As we well know, JLMA is a mixed use, as the Chair mentioned.

[04:29:16] There is commercial all around this, and this was originally zoned for commercial. and then because of the changes of the lawsuit in Mayfair and we have commercial on both sides and we have commercial that's far more FAR, far more for intense for the property and it's also has different builders on it. It's a hodgepodge. If you drive in there, it's all different builders and it's not going to be nearly as attractive. This is going to be highly buffered and is a far better project than most of what we see around the area. I would note that the housing, with all due respect to my friend, the chair with housing, that would actually increase the traffic from this

[04:29:54] application. It would also increase, it would also increase the water use from this application in all likelihood. So those are all things we have to take into consideration and nothing is not going to happen. Listen, there's not a single application on this board that is perfect. Not a single application on this board that is perfect. I want to kind of close as I was trying to close last time. I was running out of time, but thank you for the chair for reminding me that again, I have a little extra time. I think what

struggles, what I struggle with the most is that the town of Percival refused to even take a look at this. They even, they refused to take time to look at it.

[04:30:30] They have just been downgraded from AAA to AA. This is going to provide three to two to four million dollars somewhere in that vicinity of revenue annually once it's provided. And yet the town of Percival also made a resource request of this county of \$16 million. Not only are going to be paying higher interest now for any loans, but they are making resource requests to us and they have a huge water problem and a number of upgrades that need to occur. Now, does that mean they have to put this in per se? No, but what bothers me, and I'm just hoping, I am hoping and an applicant

[04:31:04] has told me he would go back to the town and say, hey, I'd like to be annexed in because I think it could be a big benefit to the town as a whole, to the area as a whole. I know much of the uses, the commercial uses are going to be dedicated to the rural, rural use area. And I appreciate the applicant's willingness to widen or provide the right-of-way to provide the turn lanes.

[04:31:29] I believe there's going to be a separate motion or a friendly at some point. It'll be a separate motion to have our staff look at, and I think this is important for Mayfair. I mean, I've heard what your concerns are and I want to be very sensitive to all of them, but I I have to, it's very difficult to listen to everybody in the county and also, and it was very split here tonight, it was probably a little heavier on those who live in Perceville and want the business than those who are in the community, but as a whole it's been very split.

[04:31:58] So I'm going to support the Chair's motion to look at Mayfair and whether or not we remove the collector road there. I think that's a very strong possibility and we should probably look at it. So thank you, Madam Chair, for a matter of time. Mr. Kirshner made the motion.

[04:32:13] Ms. Umstead second the motion. All in people say aye. Aye. Opposed? Nay. So I think that will pass 6-3 with Supervisors Bricksman, Randall, and DeCrony voting against the motion. Did I get that right? Okay. I have another motion, and it's the motion I sent you all today, and it's on those days right now, and it's the correct motion.

[04:32:34] I move the Board of Supervisors' direct staff to include consideration of removing the Collector Road status of Mayfair Crown Road, Perseville North Collector Road, from the county transportation plan as part of the ongoing comprehensive plan amendment process.

[04:32:51] Second. All right. Thank you, Mr. Kirshner. So this is just Mayfair, okay, this is just Mayfair Crown Road. This is not the full length of the Collector Road. What I've heard from people as we've had this discussion, and I will say that there's a couple of people I have been talking to that's been really very helpful.

[04:33:10] Erin Rayner, I don't know where you're at tonight, but thank you very much because Councilwoman Rayner has talked to me many times about the traffic implications on Mayfair Crown Road. I did call and had a great talk with the president of the HOA of Mayfair.

[04:33:28] We had a very good and kind of blunt talk, and she talked about this road as well. I do know that Ms. Mendez, who talked, and many of the people who have talked, have had the traffic as one of their larger concerns. I don't know if we're looking at an ongoing comprehensive planned amendment for a traffic comprehensive planned amendment.

[04:33:54] We're looking at that right now. And so I don't know if this is going to be appropriate to take off or not Mayfair Crown, but it might be. And so I want this to be looked at as part of our overall road studies as we do our comprehensive plan to find out what is best for traffic mitigation.

[04:34:15] I do understand that no matter what we do there, and somebody said it, I'm not sure who said it, no matter what we did there, something's going to happen to this land. This land is not going to remain as it is, and it's not going to be a home for every three acres. That's just not going to happen.

[04:34:31] But whatever happens or doesn't happen, traffic mitigation has got to be something we look at first. And so traffic mitigation, water, all those things, infrastructure. Infrastructure is something we look at. And so I always say that we should do infrastructure either before or in conjunction with a new development, whether that development is commercial or residential, it's important to get the infrastructure right.

[04:34:58] And so after talking to Ms. Rayner, after talking to the president of the HOA, after talking to Mr. Kirshner, and after going out there not once, not twice, but three times and driving all around the entire area three separate times, I think that having this road looked at, Mayfair Crown, is probably the best thing to do to help decrease traffic mitigation, again, no matter what was going on.

[04:35:27] So regardless of whether it was passed or not, I was going to make this motion because we know that at some point on this piece of land, something's going to happen. Ms. Brooksmen? Thank you, Madam Chair. I just have a couple of questions, and I don't know if they're going to be able to get answered tonight.

[04:35:45] But would this potentially stop Mayfair Crown from going through to Centerville Farm Road, which goes to Woodgrove High School? Is that what we're aiming at here? I don't think it would, but I don't. Somebody else may have to answer that question, because I wouldn't give you the wrong answer.

[04:36:03] Ms. Kirsten, do you know that? It's her time. He's got it. Dan's got his light on. It should not prevent that. I'm changing the designation of the plan. However, I will say that Mayfair Crown Drive, while it's in alignment with the Northern Collector Road, with it being in the town, the countywide transportation plan just refers to the town's plan.

[04:36:21] The CTP does not have its own strict designation for this one segment of the road. Oh, Mayfair Crown is actually in the town? Yes. The former road that's actually rebuilt, yes. Okay, okay. Because I went and drove all around there as well and, you know, visited many places out there.

[04:36:38] And I just think not letting Mayfair Crown go through would be kind of cutting off your nose to spite your face. I mean, it's a ridiculous trip to try and get to Woodgrove High School for all those homes. And I have a couple. I have actually one or two places in my district where that happened.

[04:36:58] And it's ridiculous how people have to get to Dominion High School because communities wanted those roads closed to Augusta Drive. It's just kind of nonsensical to me. And although I didn't vote for the application, I didn't really buy the argument that the trucks were going to go on Mayfair Crown.

[04:37:18] I didn't really buy that argument. I'm sorry. I didn't really buy that the trucks would go on Mayfair Crown. But anyway, I guess I can support it as long as we are fairly certain that Mayfair Crown, because I think it's supposed to go through.

[04:37:35] Like eventually on a plan somewhere, it's supposed to go through, correct? So on our plan, there is a continuous alignment from Hillsborough Road to Berlin Turnpike. But with the road being in the town, the town is what thus far has not wanted to make that connection. They'll make that final decision, so it's not really.

[04:37:52] Okay. Okay, then I guess I'm, wait, I might have had another question. Hang on. nope i i had all my questions answered thank you madam chair i will support the motion thank you mr kirschner thank you madam chair and uh i've not gone out once twice i've gone out 10 times i've driven this a lot in the last month uh or two and because i you know i wanted to get a real feel at different times of the of the day at different traffic patterns etc etc i'm very familiar with this. My boys go to Woodgrove all the time for the wrestling practice. I

[04:38:27] drive up and down that route to go to different things. I go down Hearst Road. Obviously all of - everything going on in this area is -- we're trying to figure it out and make it best and do studies. I will -- I'm in complete support of this. I have always supported looking at -- and I think I've talked to staff about this a number of times -- about removing aspects of the Northern Collector Road or -- I'm looking at how to potentially do it different, if at all.

[04:38:53] And this obviously, I think the town hasn't opened up that 20 feet or 30 feet or 40 feet off the back end of Mayfair because they don't want to cut through traffic. Now, if there was a way to open that up for just Mayfair, that would be great.

[04:39:09] Obviously, this is why we're asking our staff to look at whether or not this should remain on our transportation plan or not. Obviously, given the passage of this application, we don't want any commercial vehicles or cut through traffic going through, but obviously that section on the back end has great access to the new intersection and would provide a lot of relief for Mayfair as well.

[04:39:34] But again, I hope that as part of this process, we'll talk to the leadership of Mayfair and see if we can figure out something that actually works for the community as a whole to make it even better than it currently is under its current situation.

[04:39:50] But I think this is a really wise and good motion, and I've been working on this for a while. I know it was coming to us on the next transportation plan, so we're just advancing it a little. Thank you. Thank you. Ms. Brixman, I do hear you. I do hear you. That's why it actually says consideration.

[04:40:07] So we're not -- I very rarely, if ever, put a motion forth that says do it. It says, like, go look at it, go -- Because consideration also means obviously talking to the town of Percival, residents, and town council. I do want to, if you don't mind, Mr. Kirshner, revisit one thing you said when you said you hope the town annexes it in.

[04:40:29] Well, listen, really? I mean, like, this has been hard and arduous and tough, and we've asked them to annex this twice, and now we say yes, and now they're going to annex it in? I don't think so. No, I don't really care when we're going to mess with you all.

[04:40:45] You've got to annex it in if you want to. But I do think we have to have these discussions with the town. And I will say that discussions with the town happen on two levels. It happens at the staff level, and it happens at the elected official level.

[04:41:07] And I'll say once again, at the elected official level, I have talked to Mr. Stout, and I have talked to Ms. Rayner. about this road, well, about this whole item over and over and over and over and over again.

[04:41:23] And I want to say that I very much appreciate both of their discussions with me and help and, you know, texting or calling whenever I text or call and offering to go out with me and all that stuff. I really do appreciate Ms. Stout and Ms. Rayner.

[04:41:40] And this motion is born out of some of those conversations. So that's why I put this forward, and we'll see how it works. And I do hear the citizens who are concerned about traffic. So we'll see where this goes.

[04:41:55] Ms. Mendez, I absolutely hear you. You are very powerful. I hear you. So we'll see where this goes. All right. I made the motion and seconded by Mr. Kirshner. All the people who say aye. Aye. Any opposed? That motion will pass 9-2-0.

[04:42:11] All right. I think for the VCC applications, for the VCC discussion, that is it for now. Until next meeting. That is it for you. Until next meeting. All right. It's the same motion.

[04:42:29] All right. We're going to take a— Madam Chair, I just have a procedural question. Yep. So, the motion that Supervisor Sains wanted to make is not a standalone item. So, do you want the staff to bring that as an item, as an option for consideration?

[04:42:47] I haven't even been able to read that motion. That's my issue. I don't know what that motion is. I just got it now. So, I have no idea what Mr. Sains' motion is. So, can we do this? Can we take a five-minute break so I can at least find out what it is? because I literally cannot run a meeting and read a new motion at the same time.

[04:43:06] So let's take 10 minutes.

[04:43:09] Do you need me?

[05:03:53] I always like you around, sir, but I'm good right now. Thank you. Oh, my gosh, that was louder than I meant it to be. Okay, we are back, and we are going to do the Aspen to Golden item.

[05:04:08] So would staff please come to the table for item number six? Please. And as soon as we finish this, we'll do board comments and disclosures and all the stuff, huh?

[05:04:25] Oh, yeah. While people are coming to the table, when we were in our first closed session, Mr. Sainz joined us at 4.30 and then stayed until the end of the meeting. And so he has to affirm that all that was discussed in the meeting was what we went into closed session for.

[05:04:41] Mr. Sainz, if you would affirm that, please. I affirm. Thank you, sir. Madam Chair. Yes. Could I just get on the last item that we heard. There was a motion that Mr. Sainz wanted to bring. Would it be okay with the board if the staff and I brought that as a staff item to the next board meeting or the meeting after that?

[05:05:01] And that is actually to go sit down with the town of Percival and work some things out, correct? That's correct. So into a proffer on the last item. Into a proffer. Does anyone have any issues with the staff going to sit down and working with it and talking to the staff at Percival for that? Any issues? Without objection, Mr. Hemstreet?

[05:05:17] Go forth. Madam Chair, point of clarification. Sorry. So that means we don't have to do a reconsideration. That's right. Thank you. Always correct. Hello. Hello. Okay. Do you guys hear feedback? Yes. Okay. What is that? Can we get one target on turn it off? I don't think that's me. Is that me? That's not us. It's not us. Is that you? I don't think it's me. I have nothing. It was Mr. Sains. Yeah. Huh.

[05:05:53] Bingo. Why? It's Mr. Zanes. I'm electric. I think it's more static. Okay. We're ready.

[05:06:08] We're ready when you are. We have a nine slide presentation on this. Is that correct? Yes. We're happy to forego the presentation and provide a quick update if you'd prefer. Supervisors, do you guys just, would the update be sufficient for you?

[05:06:25] Yes, the update would be sufficient. On May 30th, the applicants resubmitted a specs plat, SOJ, and SIM boards depicting the view of the substation from the Washington and Old Dominion Trail looking south, and the proposed vegetated screening provided as attachment four.

[05:06:42] They submitted three potential colors for the screen wall provided as attachment 1A. They additionally have committed to undergrounding distribution lines along the trail, providing 40 additional plant units per 100 linear feet on both sides of the trail where the four substations in the area abut the trail, limiting construction hours and prohibiting the use of Kincaid Boulevard by construction vehicles.

[05:07:06] Staff continue to support board approval and are happy to answer any questions. Thank you very much. Do you have any questions before I go to Mr. Turner for a motion? there questions for staff? Ms. Umstead. Yes, thank you. Can staff answer this question? I know that Mr. Turner's motion would defer this until July 7th. We've got the SEC, though, I believe,

[05:07:41] mandating that the school system make its decision by July 2nd. So can you all answer how deferring this to July 7th would interact with the SEC direction, or would the applicant be able to come to the table and answer that?

[05:08:09] Mr. Ken, do you mind if I go to Mr. Rogers? Mr. Rogers? Supervisor Umstead, the July 2nd deadline is for the Golden to Mars transmission lines. Correct. And it does not pertain to the Aspen substation.

[05:08:28] The Aspen to Golden substation has already been approved by the SEC in terms of the transmission lines. Okay, but Leo, that is not my understanding from a conversation I had with the applicant about 12 minutes ago.

[05:08:45] that their understanding is this project is going to be impacted potentially by what the school system does or doesn't do. And that's why I'd like clarification from the applicant.

[05:09:02] Okay. Hold on a second. So you're just saying you're well aware that they're two different things. I am. You were saying that they are connected. That is my understanding from what the applicant told me. So this is a board meeting versus a public hearing, so we don't normally have the applicant at the table with these.

[05:09:20] But as a board member, I do have a question that staff can't answer. If you need that for clarification, and you were just told that, then I am fine for this time letting the applicant come to the table and speak just very quickly about how these two things are connected, and then you're going to step away from the table, sir.

[05:09:41] Thank you. Yes, ma'am. Greg Matthew with Dominion Energy. Just to clarify, I do understand, I think there's understanding that the Golden to Mars transmission case has an interim order and that the SEC issued an order today around the cadence of that project and entering a final order around July 2nd pending a decision from the school board.

[05:10:07] The way that my understanding of the conversation and listening to the public engagement is that there is somewhat of a call on the conversation of the land use case of Aspen and to relitigate the Aspen to Golden and possibly the Golden to Mars reliability loop before and adjudicated by the SEC and pending SEC for Golden to Mars.

[05:10:33] So my understanding is, as the staff talked about, with the conditions that we've used or agreed to through the public process, that Aspen has met the land use issues discussed last time and that we should be deciding Aspen tonight in regards to not having it sidetracked by whatever happens with the school board.

[05:10:59] I know that was a point of clarification for you. Do you feel like you received clarification? I did. Because I've got to tell you, that just made me confused. But if you feel like you can receive clarification, then we're going to go forth then. Thank you. Okay. We are ready.

[05:11:16] I guess you're finished. We are ready for a motion. Thank you, Madam Chair. I move the Board of Supervisors to Fry Item 6, Legge 20-24-0038, Aspen Substation Specs 20-24-0054, Specs 20-24-0055, and Specs 20-25-0026, Leesburg, to the July 7th, 20-26 board business meeting. I further move that the board direct the county attorneys to schedule two or more meetings of the following groups to discuss electrical infrastructure plans for Loudoun County over the next five to seven years, including the Aspen to Golden substations, function and design of

[05:11:52] future Loudoun substations, and electrical infrastructure build-out. These groups will consist of county staff, senior Dominion energy representatives familiar with Loudoun's electrical infrastructure plans, up to two members of the board of supervisors, a slight change here from what you have printed based on a legal input, representatives of the data center industry, and community representatives.

[05:12:14] I further move that the county staff regularly apprised the Board of Supervisors, Planning Commission, and the community on the progress of the planned electrical build-out of the county. Second. Motions made and seconded by Mr. Kershler. Mr. Turner, would you like an opening?

[05:12:30] Thank you, Madam Chair. So, this is threading a needle. It's pretty complex. I've been in multiple conversations over the last week and a half. To set the stage, we had representatives of this stakeholder makeup meet last Thursday, and it was the most comprehensive and deep dive and holistic view of infrastructure in Loudoun County to include Aspen, Golden, all other substations, and the five- to seven-year plans for the build-out for the county.

[05:13:02] And if you'll remember, my vote to reconsider was based on the fact we need to have a serious conversation of what's going on in Loudoun County. And I felt we had at the table, we had two or three key staff members, myself, a full team from Dominion and representative from the data center industry.

[05:13:20] And it was a very substantive, meaningful conversation. Now, we heard a lot of this tonight and we've carried around a lot of this. How we got here, frankly, is not important. There's a lot of emotional baggage from all the stakeholders that got us to this point.

[05:13:37] What I'm asking for is some openness to forget how we got here. I understand that's how we got here. Let's go from this point forward. What I'm proposing is, with a one-month deferral, at least two of these stakeholder meetings with key representatives from each of the stakeholder groups, and then I believe—don't quote me on this, but I believe Dominion is already scheduling a golden community meeting.

[05:14:03] I believe they are amenable to folding in a discussion about Aspen substation with the community as well in that same meeting. The object here, and we heard a lot of comments tonight, we want to defer but not deny the Aspen substation. It is a fact that the reliability loop Aspen, golden Mars wishing star was initially proposed, I believe, in January or February of 2023.

[05:14:31] It is directly supportive of grid resiliency for all of Loudoun County. Let me be clear here. We could have stopped building data centers five years ago, and we would still need this reliability loop because of the increased demand for energy with the evolution inside our existing data center industry. Yes, new by right data center have been approved, but this square loop here is a reliability loop that affects resiliency for all of the county. And the comments from the community that said defer but don't deny are a reflection of that understanding that it's a reliability loop.

[05:15:05] I completely grasp the community's desire to say let's start having a holistic conversation about where we're going and keep all the stakeholders in that discussion. I fully embrace that. That's what this is trying to do. And there was some discussion, do we have enough time in a month and a week, which we have right now? I think we do, if we get the right players to the table and we have serious conversations. Worst case, if we don't, we can still defer to a later meeting in July. But right now, I think we can do this.

[05:15:34] I want a clarification. By right, beta centers don't have to be approved. By right, beta centers may have been built, but they don't have to be approved. All right. Mr. Mr. Turner, I—can you, before I go into the next person, there was a part of that motion that said community representatives.

[05:15:53] Is that correct? That's right. I'm not—why can't it just be the community, whomever wants to come? Because we want this to be a fairly small decision-making body that represents the stakeholders.

[05:16:09] I understand that, but it could easily devolve into a 50- or 100-person community meeting, And I don't think that's going to get the kind of substantive decision making that we want to get done at these smaller meetings. That was fine. That was fine. That was just a point of clarification. I'm sorry, Madam Chair. Let me finish.

[05:16:24] No, no. Your time was up. And that was just a point of clarification. And you've answered it. No, I haven't. But go ahead. Well, your time was up. So I'm going to go to Ms. Elmstad. Thank you, Madam Chair. I appreciate Supervisor Turner's focus on reliability.

[05:16:41] I appreciate my community coming out in force, speaking for deferral, not denial. This is one of the discussions I've had with a number of my community members on the importance of the reliability of the entire system.

[05:17:03] And even though demand is being driven largely by data centers, we are all part of this same grid and we are all going to suffer if that grid becomes less reliable so it may be driven by data centers but we're all on the same wires I know Dominion has concerns about the timing of this and I wish we could get these and I hope we could get these meetings at least a couple of them before the July 7th

[05:17:39] meeting but I think if we delay past July 7th every month we delay decreases the likelihood that we're going to have essential infrastructure in place to make sure the grid is still healthy so I will support this tonight it is what largely what the community asked for and I appreciate their requesting that and I think that's a very reasonable approach but we are under something of a

[05:18:16] time crunch for whatever reason whether it could have been handled differently by any particular entity is another question but we are facing the potential for disruption to the grid next summer if we don't get this substation built Thank you.

[05:18:36] Thank you. Mr. Crony, I think, has a— you have a friendly? I do, too. You have a friendly also. There's friendlies all around. Friendlies, yeah. You have a friendly? Yeah, thank you. And I spoke to Vice Chair Turner. So my friendly would be that I further move that Dominion host one community meeting with residents from neighboring communities like Kincaid Forest, Tuscarora Crossing, and others in close proximity to the proposed Aspen substation site.

[05:19:05] So this would guarantee that there's at least one community meeting focused on Aspen. I heard you say that they might fold it in, but I'm a little worried, you know, there's not as much time for Aspen. There's more time for Golden. So I think this will guarantee that these residents have a voice because there hasn't been any community meetings.

[05:19:26] Are you fine with that friendly? I can accept that. Mr. Kirshner, are you fine with that friendly? Okay. You want to go, do you want to finish because you have more time on the clock? Yeah, yeah. We heard from residents tonight that they want to voice, you know, we heard that they were concerned about construction, overnight construction, noise, and that they like the improvements that Dominion's made so far with the buffering, but they need to really be a part of the conversation.

[05:19:56] And so this allows the community to have an opportunity to look over the plans and the updated materials to review them and to ask questions because they haven't had a chance to do that yet.

[05:20:13] I do want to make a point that back in February of 2024, I did make a motion that passed to add utility substations to the project plan for data center standards and locations, and that is to really look at additional design and performance guidelines for utility substations.

[05:20:36] So I'm hoping that, you know, that the community will really get engaged when phase two comes to us because it will include the design of utility substations. And I heard the community tonight that other jurisdictions are doing it better, and I think we should step up and really learn from what others are doing so that we can provide a really good product that isn't, you know, unsightly for the community.

[05:21:11] because especially when it's near residential and near our schools and near our parks and near our environmental and historic resources. So I would just say make sure you keep engaged. I really appreciated all of you coming out tonight. And when phase two comes to us, it should include additional design and performance guidelines for utility substations.

[05:21:35] Thank you, Chair Randall. Thank you. And you have a friendly as well, Mr. Letourneau? I do. my friendly amendment is that the two community representatives be selected by the loud and coalition of homeowners and condominium associations mr mr mr mr mr i can accept that mr kirschner yes okay and you have more time on your clock yeah and that's because i don't want to leave staff in a position of trying to figure out who to pick yeah that was going to actually answer um and i don't know if we need to do the

same for the data center industry that might be a little easier to sort out, perhaps just talking to stakeholder groups.

[05:22:15] But I just, I think there's going to be a lot of community representatives who will want to do this. We did hear from Ben Keithler tonight from the Loudoun Coalition. They've been very engaged in this issue. They have a data center group. So I think that would be a good way to ensure that there's a broad representation.

[05:22:33] All right, so I voted for this in the past and I still support the underlying substation because it does need to be built. I think this is the path forward to that happening, having this group and talking about, you know, kind of the big picture and giving people some understanding.

[05:22:51] I do have a little frustrations. I think, as the chair has said, there are some things that are being said that are not accurate. One of them is I actually think we do know what Dominion's plan is for the next seven years. They haven't been hiding the ball. It's been very obvious. I think it hasn't necessarily been presented in a way that the public can easily understand it and digest it.

[05:23:08] And so I hope that this will help with that. But I also don't think that there's been, you know, some sort of effort to try to keep this a secret. Beyond 2032, as we discussed at the last meeting, is a little bit different. The other thing is I'm all for GIS substations when we can have them, but the utility is not paying for those.

[05:23:26] The circumstances in which we have those, including the ones that have been pointed to in Fairfax County, Arlington, are when data centers are paying for those. We know that it's a \$50 million upgrade. The ratepayers would have to pay that if we made the utility do that. It's not going to happen. like the SEC is not going to do that. So that isn't a fair criticism in this case. But what is a fair criticism is the discussion around, you know, what these actually look like, the walls and all those kind of things. This motion only is talking about future Loudon substations. I will say, and Dominion is going to hate me, but I would, especially if we can get somewhere here,

[05:24:02] I would like to have a discussion about some of the existing high-profile substations that are in the county right now that were built in previous standards and previous times and that have virtually no buffering whatsoever that I pass every day and others pass every day. Again, I don't want to dwell on the past, but you wonder how we got to these points. It's because we didn't require X, Y, and Z, and we weren't difficult way back when in this process. And we probably should have been because now things were built that people see and now that's it.

[05:24:35] And that's what's kind of sired in their mind. So I think we need a conversation about how to upgrade some of those from an aesthetic standpoint as well. Thank you, sir. Mr. Kirshner. Yeah, just very briefly, Madam Chair. First of all, I'm on the same camp that Supervisor Letourneau is.

[05:24:53] I completely associate my comments with his. I did support this initially. Obviously, it's a reliability issue. But I really appreciate what Supervisor Turner has done here in working on drawing in the community and the stakeholders that should play a very significant role.

[05:25:10] I love the idea of looking at some of these more high-profile ones from the past to see what can be done to improve that for the community, and I greatly appreciate Supervisor Letourneau for bringing it up. So I just thought I'd put my two cents in. Mr. Sainz. Thank you, Madam Chair. By any chance do we know for sure who's paying for this GIS station?

[05:25:28] Is it Dominion, or do they have a—oh, excuse me. But anyway, who's paying for this substation? Do we, could we ask the applicants to come and answer that question? Who's paying for a non-GIS substation? Yeah, you can ask.

[05:25:45] Yes, you'd like to. We're getting your steps in the night. Please don't get used to this. Transmission substations are paid by all ratepayers, including data centers, residential, our co-ops, and across BJM.

[05:26:03] So Aspen is? A reliability project. Okay, and Golden? Same thing. all right thank you um i actually didn't support this and when it first came up and and i want to support this motion but i am skeptical that we can do all this in five weeks because truthfully as i was trying to plan a date for my data center town hall i was trying to get it later i mean in june but june has proms and graduations and all this stuff and so it's hard to find a date in june which is why we ended up in early July.

[05:26:41] And we're also going to have all these competing meetings now. I do appreciate your friendly, Mr. Crony, and I appreciate both of you accepting the friendly because it's hard when the community comes to us and says this is what we want, and then we say, and three people can be in that room.

[05:26:59] That just frustrates people. So I do think there needs to be a larger community meeting. I will say, you know, I know individual members people who work for Dominion, they are good, fine, wonderful people. They are. But I don't believe that overall Dominion has been a good partner and good neighbor.

[05:27:19] And I believe that the scratching and fighting with nails every single step of the way just doesn't have to happen. When Mr. Crony asked about a green wall and the answer is we don't want you to climb it, well, obviously we're not asking you to build a rope course around the substation.

[05:27:38] You know, there's ways to do things, and I think that some of the million's answers have been a little flippant, and I think some of the million's answers have been, you know, kind of non-serious. And I think some of what's happening, the surprise right now is that, you know, I don't think we're asking for, I know we're not asking for more than other places I've asked for, so I don't know why we're getting such pushback.

[05:28:04] And with respect, I appreciate them being here, but I particularly think they have been a good neighbor, to be honest. And I will take some responsibility for that, but I also think that's over now. I will go back to something Woody Turner said to me on a call one time, and it changed everything.

[05:28:24] He said, you know, no one's saying to stop, obviously. You're never going to stop progress, and we shouldn't. We shouldn't stop progress. We shouldn't try. We're not going to stop progress. But it's okay if we ask for the data centers for more. It's okay if we ask Dominion for more. And it's fine for them to have more skin in this game.

[05:28:45] And so, you know, I will support this mostly out of respect for my colleague because if it was me, I would put this off more than just for six weeks because I think we need more time than that. But if we think we can have three meetings and a community meeting with everybody, in five weeks? Okay. Okay. So, Mr. Turner, would you like a closing?

[05:29:10] Well, thank you, Madam Chair. I'm trying to answer the question before I was a little abrupt with you, so I really apologize for that. This is an opportunity, I think, for us to reset the narrative. It's what I asked for when I asked for the reconsideration at the last meeting. I think all the stakeholders that I've

talked to in the last 10 days have been serious about the conversation. The tenor of the conversation has been far more substantive than I've heard in the past and I think that's a really good sign. Proof's in the pudding. Everybody sitting around the table is going to

[05:29:46] know in a second if we're just getting words or if we're getting substantive commitment to a different way of doing things. One of the things I've said for the last two years and all the work I've been doing on data centers is we Everybody drives into their individual silo in the face of tectonic changes in the marketplace in terms of demand for power and responses and community responses.

[05:30:11] And the default position is, oh, we've got to do what we've been doing for the last 50 years, just faster and more. No, we've got to change that paradigm. We need to start talking to each other. We need to start having substantive conversations with all the stakeholders, the data centers, the utilities, the consumers, the board, county staff.

[05:30:30] We have to have regular meetings. We will get to meetings, I believe, in the next 30 days of the stakeholder process. I would hope that it would become a template for a more formalized and permanent dialogue between the stakeholders. And that's what I'm trying to start here is at least a pilot program to figure out how we can do this.

[05:30:48] I fully take on the chair's concern that we could have slipped it to the second meeting in July. Yeah, we could have. Let's try for the first meeting and see how we do. We can always audible down the road, but let's try. Let's challenge ourselves to try and do it in time for the July 7th meeting.

[05:31:05] I think we can do it. Based on the quality of the discussions that we had last Thursday, I think we can do it. So I appreciate everybody's support, and I think this is a breath of fresh air. the way we've approached this up until now. Thank you.

[05:31:21] Okay, motion was made by Mr. Vice Chair Turner and seconded by Mr. Kirshner. All of the people who say aye. Aye. Opposed? That motion will pass 9 to 0. All right, supervisors, let's do this. Let's do nominations first, and then we'll go into board comments.

[05:31:42] If you have a nomination, please put your... I know, I know. We have more than one more item. If you have a nomination, we'll get Mr. Sainz fixed up over here, too. If you have a nomination, please put your light on. Mr. Crony?

[05:31:58] I nominate Shree Kenneth Uramasetti to the Economic Development Advisory Commission. Thank you, ma'am. Mr. Turner? I nominate James Paravecchio to the Community Service Board to fill the at-large representative seat. His term expired, and I'm re-nominating him.

[05:32:14] Okay. Any other nominations? All right. Let's go into board comments. I will go first to Mr. Crony. Oh, thank you. Sorry. I know you're picking on me. I'm not picking on you. Okay, so disclosures.

[05:32:33] On May 27th, I met with Anna Ritter, Aaron Swisshelm, regarding the Happy Paws application. And on May 28th, I met with Kathleen Leonard regarding the Aspen substation application. Okay, my board comments are going to be to read a portion of a letter from the Red Cedar HOA Board of Directors.

[05:32:55] And I'm going to shorten it, but they asked me to read it. I had a really good community meeting with the Board of Directors, and they asked me to read their letter. So in 2019, Red Cedar Neighborhood faced a serious threat when a data center application was submitted immediately adjacent to Red Cedar.

[05:33:13] What followed was a powerful demonstration of community engagement. Residents united in opposition, working alongside board members and local leaders to educate decision makers on the tangible consequences of placing heavy industrial uses near residential communities.

[05:33:31] Consequences then included persistent generator noise with documented physical and mental health impacts, light pollution, environmental strain, and the erosion of neighborhood character. the county made the right call the application was rejected and the board took the additional step of strengthening the 2019 comp plan with policies explicitly designated to protect residential communities from incompatible uses such as data centers that was the right precedent it remains the right standard today we are now in 2026 and the concerns many of us raised are no

[05:34:07] longer hypothetical. They are visible across our region and the entire county. Communities are confronting the real cost of unchecked data center expansion, rising energy prices, persistent noise disruption, mounting infrastructure strain, and negligible benefits to nearby residents, including no meaningful property tax relief, which I would counter, but do in part to Loudoun County's budget expansion increased property assessments. Every approval generates durable grid and infrastructure obligations that shift long-term costs onto residents, consequentially

[05:34:47] lasting commitments made without explicit voter consent. Public opposition has grown substantially as more communities experience these effects firsthand. So they are writing to express their strong opposition to Spoonville Energy Park and the Farkas Data Center rezoning, which are heavy industrial near Red Cedar. We respectfully urge the board to honor its prior commitments by continuing to enforce the intent of the 2019 Com Plan. These uses belong in existing appropriately

[05:35:20] designated zones. So we appreciate your time and service and taking care of the well-being of communities lastly i want to say i went on a kayak trip on the goose creek and they were asking that chair randall join next year on the kayak trip down the goose creek so they were and i said i would ask chair randall that and you've done thank you and you've kept your word and you have kept your word good for you you kept you kept your word you did that's that's wonderful that's

[05:35:53] wonderful. Yep. Mr. Letourneau. Thank you Madam Chair. I really have no comments other than just to wish our Lavin County Public Schools graduates, senior class, a exciting graduation season, a fun graduation season. Freedom High School is June 16th and John Champ is June 15th in the Dulles District and so we won't quite have our next meeting by then so I wanted to make sure I got that in but otherwise um in recognition of the hour i will cut stop there thank you sir miss

[05:36:31] umstead uh thank you madam chair no disclosures and um just had a really nice juneteenth event uh the chair was there supervisor briskman supervisor turner supervisor tacrony um were all there and very good job by Gladys Burke uh organizing it so it it went off very well there were students from all over the county there um thanks to Gladys Burke's uh organizational

[05:37:10] skills so it was uh it was a full house uh at that event and um they did a really nice job Thank you. Ms. Brooksman. Thank you, Madam Chair. First of all, I want to say a very happy birthday to my senior legislative aide, Amon Ardalan. His birthday is on Saturday. He is a critical part of the success of the Algonquian office and everything we've been able to accomplish over the last several years. So happy birthday to Amon.

[05:37:44] By way of disclosures, on May 18th, my staff met with Dominion on the Aspen Golden Substations. On May 28th, I had a meeting with Brian Turner and Woody Turner on Aspen Substation. On June 1st, I had a meeting with Anna Ritter and Aaron Swishelm at the Happy Paws K9 business.

[05:38:09] Loudon Pride is this Saturday from 12 to 6. I hope to see everybody there. I will be joining, hopefully, some other colleagues to present the proclamation that we had tonight. In advance of Pollinators Week, the public is invited to join Loudoun Parks and Recreation at the Pollinators Festival at Banshee Reeks between 10 and 2.

[05:38:29] That's always a really fun event, if you can make it. I have been really enjoying the Sorenson Institute Political Leaders Program. Excuse me. Last weekend was our third weekend, and we went to Roanoke. And it was really fascinating to learn how Roanoke has transformed from a train town to a brain town, they are calling it.

[05:38:51] And they have gotten great investments from Virginia Tech, which now has a campus there. They have a higher education learning campus there now, a major hospital, a lot of bio research, health behavioral research going on.

[05:39:09] Really fascinating what they've done there. And also, what really spoke to me is they have leaned way into the outdoors as far as tourism. They have a program called Regional Roanoke Partnership and the Roanoke Outside.

[05:39:25] They have a Roanoke Outside Foundation. They have become the East Coast capital of mountain biking. So I am coming back with lots and lots of ideas. We also learned about the Gainsborough area and Henry Street in particular, which was lost.

[05:39:42] to urban renewal, um, just outside of Roanoke. Um, and that term is controversial at best. Um, I, I would call it code, um, uh, because it was used often as a tool to displace black communities under the name of urban renewal. And Gainesboro, um, as remembered by a prolific artist named David Ramey, there's now murals of his work, and it's in the museum there now, who worked from his photographic memory to draw the scenes of Gainesboro with their theaters and their banks and their businesses and their 30 churches, which were all wiped out under urban

[05:40:21] renewal. National gun violence awareness, we've lost 5,295 lives to gun violence this year. Our nation has had 166 mass shootings, including one yesterday in Iowa. 346 of those deaths were ages 12 to 17, 94 were children under 11.

[05:40:37] Thank you, Madam Chair. Thank you. Ms. Glass. Thank you, Madam Chair. I have one disclosure. On Thursday, May 28th, my staff met with representatives to discuss the Happy Pause K-9 application.

[05:40:59] On May 27th, I went to the NVTa Planning Coordination and advisory committee and we had a discussion regarding the fiscal year 2026 through 2031 six-year program there recently was a public engagement phase where the community members provided feedback regarding the listed projects there were five comments regarding the

[05:41:31] Route 50 North Collector Road for Loudoun County, and so we are continuing with that. The next one is NVRC. This meeting was a strategic planning work session.

[05:41:47] The goal for this meeting was to create a guiding mission and vision statement to define the strategic priorities for the next five to ten years and determine an action plan for next steps informed by work sessions, interviews, and survey results.

[05:42:03] Last Saturday, I went to the Cloud Run 5K, and the first part, they had a 1K for the younger folks, kids that were running.

[05:42:19] And it was amazing to me because the first person looked like he was like a six, he might have been seven years old. He just smoked everybody. It was just amazing how fast he was. And after that, I passed out medals to all of the young people that participated.

[05:42:40] Also, on Sunday, I went to the first Peterson Young Naturalist Awards at Cardinal Ridge Elementary on Sunday. And it was an event to recognize student and teacher participants of the Peterson Young Naturalist Program and to present awards to K-12 students.

[05:43:04] Cardinal Ridge's principal, her name is Dr. I hope I say it correctly, Dr. Mojisola Adejumo. She was the keynote speaker, and she gave some statistics about screen time.

[05:43:20] And one of them was that our youth spend seven minutes a day outside without structure and seven hours a day on a screen. Dr. Adejumo also noted that, according to NIH, being outdoors lowers stress.

[05:43:40] She believed that there's a call to action to do something to help our students. So all of the students at Cardinal Ridge go outside to engage in learning. So it was amazing to see all the students there. They had on display the journals that they had written about nature.

[05:44:01] The time's up. Yeah, it was absolutely amazing. Thank you. I'm sorry. That's okay. That's okay. That's the teacher in you. You just do the teacher thing. I understand. Mr. Kirshner? Thank you, Madam Chair. First of all, I did had a, my staff had a meeting with some of our county staff and the applicant of Beacon Hill golf course today, I think it was, or maybe it was yesterday.

[05:44:26] I can't remember, but don't hold me to that. And I also had a call with a said Charles Yudd on the Valley Commerce Center today, and a text. Also, I want to follow up with Supervisor Letourneau. I had it in my notes as well. Congratulations to all of our graduates.

[05:44:42] I'm looking forward to hopefully making a couple of those graduations for the high schools in my district. But that is always kind of one of those first big accomplishments that young folks get to. I'm 50 years old now. It's been a long time since I was there. But it was one of those first big mile marks, so to speak, in becoming an adult.

[05:45:01] Just a couple things coming up in Western Loudoun. The 19th annual Western Loudoun Art and Studio Tour is on June 5th through 7th. It's a free, self-guided tour through Western Loudoun. Stops on the tour include more than 40 local studios, along with art hubs at the Franklin Park Arts Center and the Round Hill Arts Center.

[05:45:21] And on June 6th, Percival and their Tree Environmental Sustainability Committee are having volunteer day, and they will be removing invasive plant and check on the trees in their mini forest project. So if you'd like to join those, please feel free. On a personal note, my boys, although I was unable to make it, my wife was keeping me updated, play for Upper Loudoun Little League, and they won their first playoff game tonight in a big fashion.

[05:45:45] They didn't have a great winning record this year, so this is a very big deal for them, so I'm very proud of them. My boys do spend about seven hours outside and about seven hours on their iPads. Or seven minutes, excuse me, on their iPads. But that's because they're my kids and I don't let them get on it. But anyway, that's what it is.

[05:46:00] So thank you, Madam Chair. Heard that. Mr. Sainz. Thank you, Madam Chair. Thank you to all the folks that sign up and speak today. As always, you chose to be anywhere else, but you chose to be with us. We really appreciate you coming out and speaking your piece. During the week of May 18th, I spoke with Rich Brittenham of Dewberry about the Barrister and Aspen substation.

[05:46:21] On May 28th, my staff spoke with representatives of Dominion Energy about the Aspen and Golden substation applications. On May 28th, my staff spoke with Charles Yudd of J.K. Land Holdings and Mike Romy of Wascolucci regarding the Valley Commerce Center application.

[05:46:39] And just a quick notification, a couple of things that are going on that I think are very beneficial. to the community on June 10th, Wednesday from 10 a.m. to 2 o'clock p.m. There's going to be a Loudoun Job Fair at the Dulles South Recreation and Community Center. This is free, so please go to the county website and learn more about it.

[05:46:58] And if you're searching for a job looking for a career change, this would definitely be the right place to go. We are in June, and June actually starts the kickoff for the fireworks season in Loudoun County.

[05:47:13] The first fireworks will be going off on Friday, June 26th at the Sterling Middle School field area, Star-Sprinkled Sterling. It's always the last Friday in June for Sterling fireworks. And then from that, it just snowballs into many more fireworks and activities going on.

[05:47:32] On Saturday, July 4th, the fourth fest, which will be held at Cloudmore Park during the day. And on June 7th at 3 o'clock p.m. at Stonebridge High School, our great Loudoun Symphony Orchestra will be doing the Star Wars at the Symphony Night.

[05:47:57] Well, day, excuse me, so I encourage everybody to come out. There will be people, we'll have some folks dressed up in costume as Star Wars characters, so we encourage you to come out in your Star Wars characters or wear your favorite Star Wars t-shirt. This is a great event for family of all ages and sizes and definitely those who are, if you love the Star Wars theme music as I do when you're watching the movies are like the Mandalorian and things of that nature.

[05:48:19] There will be performing some of those, some of those songs, her performance, some of the music during this night. So I encourage everybody to come out. And we will have a windmill jam fundraiser on Sunday, June 7th as well at the Sterling Golf Club. This is to help raise funds for a windmill that is in Sterling Park that is in need of repair.

[05:48:40] The event is a charge because, again, it's a fundraiser, but a good event. And then also on June 13th, Saturday, at the All Dulles Area Muslim Society in Sterling, they will be having their annual open house.

[05:48:56] They'll invite anybody to come out. It's a good meet-your-neighbor type event. There's food, vendors, and activities for young and old. And thank you. Good timing, sir. Mr. Turner. Thank you, Chair.

On May 13th, my staff and I spoke with Jonathan Freeman and Catherine Bonds from Novak to discuss the Deimos substation.

[05:49:17] On May 28th, my staff and I spoke with Joe Woomer, Greg Mathie, and Kathleen Leonard from Dominion to discuss the Aspen substation. And on May 29th, my staff and I spoke with Denise Harover from Van Meter to discuss the application for Broadlands 104. Thank you. Thank you. This past two weeks, my staff and I have spoke to Chuck Kuhn and Charles Judd about the VCC site and Woody and Brian Turner about the Aspen-The-Golden-Substation.

[05:49:49] I do want to thank everyone who helped and or attended the State of the County Address. This year we joined the Celebration for America's 250. The name of the speech was Telling, well, I'm sorry, it was Loudon's American Story.

[05:50:08] I will be sending the link out for the whole event if you'd like to see it. I do want to take just a moment and wish Tom Schweitzer from A Place to Be a happy birthday. He's an amazing member of our community, and he takes care of people who, he does music therapy, and he believes that music will change your life and change your world.

[05:50:28] And he works for people who have disabilities, all types of disabilities. And if you've ever been to a show at a place to be, it is one of the most uplifting, amazing things to do. So happy birthday, Tom.

[05:50:44] You are such an addition to our community. I do want to say that this is Pride Month, and this is also two other things. It's Men's Mental Health Month, and it's PTSD Awareness Month. So both of those things are really important. I want to say that as far as PTSD, about one out of 20 Americans will suffer from PTSD in their lifetime.

[05:51:06] About 7% of veterans will suffer from PTSD, which is slightly higher than the average in the population overall. 18 veterans a day die from suicide. 18 veterans a day die from suicide.

[05:51:24] PTSD can look different in different people. even if you have the same experience, how you are impacted can look different. Trauma-informed therapy, which is the treatment for PTSD, it may involve medication. It often just involves talk therapy.

[05:51:40] We have to, we have to, have to, have to end the stigma on all mental health, including PTSD. This is where you have this crossroads between PTSD and people who are in the LGBT plus community because some of those community members have had such traumatic things happen to them.

[05:52:04] They've had violence inflicted upon them. And so the people who are in the LGBT plus community have higher levels of PTSD. As I said before, 35% of people in that community have considered suicide. 10 to 15% have attempted suicide.

[05:52:22] And so let's be just so aware. This is one of these times where sometimes you just do not know people are going through and a little bit of kindness and honesty can go a long way. Thank you. And let's go on, I think, Supervisors, we can go on and do our other items before we go back into our last closed session, which actually could take a while.

[05:52:46] So let's go in and go to item number 1A, the Algonquian Parkway Multimodal Feasibility Study. Would staff please come to the table? Okay, Supervisors, we've seen this quite a few times.

[05:53:08] I will ask Ms. Bricksman first, do you need the presentation? No, thank you, Madam Chair. Does anyone else need the presentation? I will need, when we get to the discussion, I will need slide

number three in the staff presentation to be brought up when we start having discussions.

[05:53:26] But I don't need the whole presentation. Does anyone else need the whole presentation? All right. Is there anything new that you want to tell us or add us that we haven't heard already about this? No, ma'am, Madam Chair. Okay, thank you. Ms. Bricksman, I know that you have a motion on the dais in addition.

[05:53:43] I think I further move to the motion in the package. Is that correct? Yes, Madam Chair. Would you like to make that motion now? I was thinking I'd make the motion and I further move together. Yes. Okay. I move that the Board of Supervisors direct staff to not pursue further evaluation of long-term improvements associated with Concept C of the Algonquian Multimodal Feasibility Study and implement the Concept C elements that exist in the Sidewalk and Trail Program and Intersection Improvement Program under those programs using the current prioritization process.

[05:54:20] I further move that the remaining elements of Concept C long-term improvements not included in the Sidewalk and Trail Program and Intersection Improvement Program be included in the projects identified for the future development section of the Capital Improvement Program.

[05:54:37] Motion is made. Is there a second? Motion is made and seconded. Separate them out. You want to separate them out? Really? Because, well, the second one is kind of against the first one. That was my fault. That was my fault. She asked and I said yes, so I'll take that.

[05:54:54] Let's talk about the first part of the motion first. And Ms. Umstead, do you still want to second the first part of the motion? Yes. Okay, we'll just do the first part, and Ms. Tichroni has asked to divide the motion, which is the term for that, and we will do that, and we'll do the first part first.

[05:55:10] Ms. Bricksman. Thank you, Madam Chair. I won't belabor the point. We've been over this. It went to TLUC. The first part of the motion is basically separating out the existing parts of the proposal per supervisor to Crony's concerns that we have things in their proper prioritization, which I get and I can concur.

[05:55:39] Okay. Anybody else? Mr. Crony? Yeah, so we had this at TLUC, and TLUC only supported the first motion because there were a lot of improvements in the whole corridor study that were, some of them were outside of the county, some of them, you know, in Fairfax County.

[05:56:09] And then also, um, some of the projects, um, would require funding improvements to privately owned and maintained facilities, and the cost was really high, so TLUC agreed to do, um, the, just to do the improvements that are included in the sidewalk and trail program and intersection improvement program and not add the rest to the projects identified for future development.

[05:56:39] So I think your motion kind of goes against what T-Lock had agreed to, the second part. We're only discussing the first part right now. Yeah, only the first. Yeah. Okay. So I do support the first part because that's what we did in T-Lock. Okay. Okay. All right.

[05:56:55] Anybody else on the first part of the motion? All the people who say aye. Aye. Any opposed? All right. The second part of the motion, Ms. Bricksman, and you can make it, and if Ms. Umstead wants to still second it, that's fine. Do you want me to read it again, or I think it was just separated?

[05:57:13] No, I just want to make sure Ms. Amstead has two seconds to the second part of the motion. Do I further move? You want to read it again? Go on and read it again. Can Supervisor Brisbane read it again?

Go on and read it again. Sure. I further move that the remaining elements of Concept C, long-term improvements not included in the sidewalk and trail program and intersection improvement program, be included in the projects identified for future development, in the projects identified for future development section of the capital improvement program.

[05:57:45] Spiritfully, I will not second. Okay. Is there a second on that part of this motion? Ms. Glass, a second for discussion. Ms. Bricksman? Thank you, Madam Chair. I know that this is sort of a last gasp effort, but I will say that to Supervisor Tocroni's point, while the corridor does have 0.8 miles that are in Fairfax, that does not mean that the county would be agreeing to pay for improvements in Fairfax.

[05:58:18] I'm sure that as this goes down the line, there will be conversations with Fairfax to get that 0.8 miles of trail connected. There have been an average of 65 crashes per year from 2008 to 2022 on Algonquian Parkway.

[05:58:36] I see cyclists in large groups every single weekend on Algonquian Parkway trying to get to Fairfax, trying to get over to the W&OD. This does not commit the county to doing anything, actually. I'm just asking that it get put into the future years list so that when staff is looking for grants, by the way, grants that are across county often get higher priority.

[05:59:04] So if we are looking to apply for grants, we would be able to do that because it is in our CIP. Not funded, not funded anytime soon, probably maybe in my lifetime it happens. But also, as I work on, well, hopefully, over the years, work on projects in Algonquian District, when I am negotiating with a developer for proffers and those sorts of things, they can get credits by putting money toward this bigger project.

[05:59:33] It is a big project. That's why I understand, you know, some reservation about it. But again, I'm just asking it to be in future years so that perhaps we could start, I don't know squirreling away money for for it to get done it's just a really high priority for me to have this corridor be a multimodal corridor and to separate those with dogs and trikes and strollers and walkers and runners from the cyclists eventually maybe in my lifetime thank you madam

[06:00:03] chair would love your support guys um i can just say something yes yeah so in tuck um you know we We were trying to take care of the, you know, the safety, supporting the short and mentored safety enhancements that can be implemented along the corridor, which I think Supervisor Bristman just mentioned, and, you know, and putting the sidewalk and trail and intersection improvement program projects into the prioritization.

[06:00:41] But the broader full concept, see corridor improvements, that was something I can't support. I mean, it's \$105 million for a 6.7-mile corridor. And, you know, I don't know, I can't say with certainty that we wouldn't be including Fairfax County in some of it and paying for some of it for them because that wasn't really decided when we spoke about that at TLOC.

[06:01:10] And the CIP, we usually don't fund improvements to privately owned and maintained facilities. So a lot of the corridor did have some privately owned HOA facilities. But I'm happy, you know, I hear you about the safety and the issues with some of the corridor that needed to be looked at.

[06:01:33] And I think they are addressed with the first motion. Thank you. Thank you. Mr. Turner? Thank you, Madam Chair. can I ask staff a couple of questions? Sure, of course. Staff, so if we put the portions of this option not covered in the sidewalks and trails and the intersection improvement program

into the future years of the CIP, Supervisor Bristman created a possibility whereby a project was being considered by the developer and they could get credit for completing portions of this project

[06:02:11] in the future years of the CIP as part of their proffers. Do I have that right? Okay. It's a much better way to say it. Here's my question. In that circumstance, if a developer proffers completion of a portion of that program, does that come at the expense of projects otherwise in the CIP that that developer could complete?

[06:02:35] In other words, are we denying the possibility of higher priority CIP projects from that developer's proffers if the developer decides to grab this out of the future years and fund those for credit? Supervisor Turner, I'm not sure if I have the exact answer on that, so I'd like to maybe just jot that down and maybe get back to it if possible.

[06:02:58] Okay, that's fine. The bottom line here is, theoretically, it sounds right to put this into future years so we grab pieces out of it as we have applications come forward. And I'm theoretically okay with that, unless there's a scenario whereby higher-priority CIP projects would suffer because that developer grabbed something out of the future years.

[06:03:19] That's the crux of it. I don't want to rob Peter to pay Paul. Mr. Hemstreet's light is on. I see it. Thank you. Are we finished? Mr. Hemstreet? Yeah, so generally speaking, if I understand the question, when a developer's coming in with a proffer, what they're trying to do is, if there's a CIP project available, say offered to do the project or often it comes up through a discussion with a district supervisor that they will go ahead and prosecute the work on the project that's in the CIP for a credit

[06:03:57] against their capital facilities payments, the cash that they're supposed to provide as part of capital facilities contribution. I don't know how that plays into other projects in the CIP because it's typically a proffer discussion that's occurring between the district board member for a project that's occurring in that district, but the credit is going against their capital facilities contribution.

[06:04:27] So I don't believe there's a direct tie back to the actual capital budget. Okay, thank you. I'm uncomfortable not having an answer, but go ahead. I'm not doing that because Mr. Turner already asked a question.

[06:04:53] This is an incredible amount of money, even if it's like play money in years from now. These things turn out to be real money later on. When I think about the money that we need to use for, I mean, Hamilton and what they're asking for just for their safety of actual streets is not anywhere near this amount of money.

[06:05:23] And that's where kids are not getting hit in the street. And so, you know, even for out years, and I'm sorry, but I've been saying this all along, even in out years, even no matter where, I'm not giving money to Fairfax County. not doing it not portrayal and and I know that the the example was when we put money in for a roundabout that was that was a lot different situation at that at that point that was I mean that was a very different situation um but that with you know I I'm not new this is not new I

[06:05:56] I cannot I won't I will not be supporting this so um Mr. I'm sorry Mr. Parks would you like a closing i i would thank you madam chair um i i just want to maybe i could ease some concerns um i i believe and and uh mr hemstreet can correct me if i'm wrong i believe that when you're working on a development in the district the um credits the the fees have to pretty much stay in the district even if they go into the general pot instead of being something

[06:06:34] that the developer completes correct am i wrong about that in other words i don't i guess it's an argument against the idea that it would take money from other parts of the county or other parts of the cip yeah the proffers generally and i'll defer to mr galindo if he disagrees with me but the proffers are generally collected in the planning sub area right so they're not necessarily consistent with the election district but the planning sub area right exactly so um and i think i've even had conversations like that that thing you're trying to get a proper for is way too far away from this project so it would have to be something fairly close in the algonkian district

[06:07:13] to supervisor to crony's point even the short and midterm improvements that were already approved by the board will require us to do some work on hoa paths and potentially private properties and that will be part of you know what staff often does when we're trying to get you know infrastructure completed in the county. Lastly I have no aspirations that you know we wouldn't be able to cooperate with Fairfax on it but I guess for me this is a great

[06:07:48] example of investing potentially later in in some true multimodal forms of transportation and it's a nearly seven mile long corridor that provides a lot connectivity to you know north and south across the county and into Fairfax where they have built a path that goes all the way to Tyson's so so that's my argument would love your support thank you I will give you a point of information and say again this is perfect for mvta's 30% money perfect is what they do is with the can we get it if it's not in our future years though can we get yes If it's not in our future years, we can ask for it?

[06:08:28] Yes, yes, you can ask for it. Yep, yep, yep. It has to be in their program, not in our program. Yes, so, I've said, yeah. All right, Ms. Briggs will make the motion. Ms. Glass, second. They'll unfail to say aye. Aye.

[06:08:43] Opposed? No. That motion will fail. Eight to one. Let's go on to the, I think we have one more item, the Walrus item. I'm just trying to switch it up. The walrus item it does this is a this is a this is a this is a BMI This is a this it was not even a BMI. This is not a BMI. That's not true This is a this is for the walrus item. So yeah staff if you if you want to come to the table come to the table

[06:09:16] I'm sorry. Good evening. Good evening so It might be it might be easiest if Maybe, Mr. Crony, if you—I'm just going to—well, okay, I'm going to make the motion.

[06:09:43] Let's do that. I move that the Board of Supervisors amend the project plan for the Western Loudoun Rural Uses, Walrus, and Standards Zoning Ordinance Amendment and Comprehensive Plan Amendment by replacing the Zoning Ordinance Committee ZOC's review with review by an ad hoc committee consisting of five ZOC members and four planning commissioners who have knowledge and experience with walrus appointed by the chairs of zoc and the planning commission i further move that this ad hoc committee determine whether the draft language provided by staff is consistent with board direction and forward any other opinions it deems relevant to the full planning

[06:10:23] commission no later than september 30th 2026 at which time the committee will be dissolved motions made to second motions made second by ms brixman discussion on the motion okay so i i am just, um, attempting to, um, get this item earlier to the Board of Supervisors so it's not at the end of our term. Um, the current project plan had ZOC having it from June to December and then going to

[06:10:57] the Planning Commission in, um, in March for a public hearing, um, and then not to the Board until September. So I'm trying to create a process where, um, it would go to the planning commission

sooner and where we have kind of an ad hoc committee consisting of ZOC members and planning commissioners who can look at the draft, um, not change the direction, the board direction or policies, but look at the draft for consistencies and any kind of, um, errors or any

[06:11:33] kind of, um, you know, uh, I don't know, just, just, um, changes that need to be made to make it, uh, flow, um, and just, you know, make sense. But, uh, this, this gives them that opportunity without having it come to the board at the end of our term. So it, it shortens up the process.

[06:11:55] I worked with staff on this. Um, I think, uh, Mr. Coboth and Mr. Galindo, um, you recommended, putting together this ad hoc committee. A lot of the ZOC members don't really have any kind of background with Walrus. So there will be, you know, at least five that have kind of that experience and really want to be involved. And then, of course, there are some planning commissioners that represent, you know, Western Loudoun and the chair that would want to be involved. So this just shortens up the process so that we're not getting it in September.

[06:12:30] Mr., I feel like I should give some more clarification around what's going on here because I don't, with respect, feel like that you, well, I don't think I gave any, to be honest. But Mr. Letourneau?

[06:12:46] I'm not going to give Supervisor DeCrony a hard time, but to be clear, staff recommended this as a request to what Supervisor DeCrony was trying to accomplish. Is it staff's recommendation that the board do this, or is staff neutral on that matter?

[06:13:03] We're neutral on whether or not to do this, but we do think if the board's desire is to speed things up, that this seems like the easiest way to do so. Yeah, okay. I just wanted to clarify that. Is there a possibility, though, to ask for the ZOC and Planning Commission to move faster than what's in the current guideline?

[06:13:22] Because I do agree with Sylvester Crony that that's a long... Can I just... Can we stop Mr. Letourneau's time? So two weeks ago, we had our leadership team meeting. In the leadership team meeting, everyone agreed that this needs to be moved faster, actually last month. I was asked and said that I would go sit down with the ZOC chair, Mr. Capretti, and say this needs to be moved faster.

[06:13:45] I did that, and we all agreed. And then what was next asked was the staff sat down with the ZOC chair and with the Planning Commissioner chair to find a timeline that would get this back to us by about July. That's all been done. So I don't quite know what's going on here because all of those discussions, so I'll say that.

[06:14:09] Okay. Reclaiming my time then. Thank you, Madam Chair. Yeah, so we can't ask volunteers to be on something called the Zoning Ordinance Committee and then not let them actually work on something when there's a zoning ordinance. It will really create a high degree of demoralization for that group who will wonder why they exist if we're not going to actually let them work on a significant zoning ordinance that's coming in the county.

[06:14:36] I understand this is a Western Loudon one, but it does affect the whole county. I mean, there's a reason why all nine of us are voting on it. You know, we're not mayors of our own little fiefdom. So, you know, you have to look at things. A lot of businesses operate in ballpark parts of the county, all kinds of things there.

[06:14:53] So I do appreciate the intent. I'm glad there's progress being made on moving this up. I also think it's kind of weird to give certain planning commissioners essentially two bites at this. It's a little bit odd also. So from a process standpoint, this is a no for me.

[06:15:09] Mr. Kirshner. Thank you, Madam Chair. So I'm going to definitely oppose this. No surprise, I wasn't consulted about it. I think 80% of the businesses that we are seeking to do are in my district, and being not consulted on it, it's a little bit irritating, but I'll give you my reasons why I'm opposing it.

[06:15:33] It really deviates from the project plan, what everybody expected, we voted on it. It also drastically reduces the depth and diversity. As Supervisor Letourneau said, we have a ZOC committee for a reason. It would also narrow and, I think, risk the diversity of the review that we have if we were to all of a sudden, and we're trying to speed something up, and I get it, And it sounds like we have successfully accomplished moving it a little further along.

[06:16:07] But why have a ZOC committee if they're not going to the committee itself? And I think it's helpful, as Supervisor LeTourneau said, is, yeah, maybe some of them don't have expertise on this in some of these areas. But they do frequent these businesses.

[06:16:25] They do frequent Western Loudoun. And they live in the county as a whole. And some of them have some really excellent business experience that I think could weigh in on some of these things. which perhaps those who even are going to be more interested in Western Loudoun things don't have.

[06:16:40] So I think that's something to also consider. I think the proposed dissolution date asks this ad hoc committee, so to speak, to work through August and our staff. That's our break period. So, I mean, I just don't think that's really practical, quite frankly.

[06:16:58] And it is outside what everyone anticipated. It comes at the 11th hour. And quite frankly, I think this probably sets a really dangerous precedent. I mean, if we're going to go through, if we're going to take all, I mean, I remember when Supervisor Turner came up with the idea of ZOC and how we were going to put it all together.

[06:17:15] That was a lot of work. We had these different stakeholders. And if we're going to say something, certainly I would say is important to me and how it actually ends up getting crafted and considered and all the details should go through the normal process.

[06:17:31] Yes, we can ask them to speed it up. But just to come up with this ad hoc process, I mean, it's a little bit insulting to the process that we normally have. We didn't do this with anything else. Why are we doing with this? I understand we want to get it done by next summer. We want to get it done before the elections, in part. But I honestly think that it doesn't serve what we're really trying to do here on the board in a good manner.

[06:17:55] So I'm just, for those reasons and many others, I don't really have time because I'm out of it, I would oppose. Mr. Sainz? Thank you, Madam Chair. Not to belabor the point. But yeah, I agree with the effort to try to speed up the process and the review and all that stuff. But we have these organizations set up, so let them do the work. But is there a way, you know, direct us to staff, is there a way we could work with Supervisor Giaconi and Supervisor Kushner to possibly come up with a expedited timeline for ZOC and Planning Commission to get this?

[06:18:33] So we'll obviously consult with the chairs of ZOC, and then once we get to the Planning Commission, the same, to try to make it as quickly as possible. I think what we considered doing for this ad hoc idea was to try to have the smaller group meet potentially twice a month.

[06:18:49] I don't know that it'll be easy to get ZOC to meet more often, frankly. Well, have you asked them? But it's something that we can look into. Have we asked them? We've only spoken to the chair. Okay. Well, let's not assume until we ask those questions.

[06:19:06] And then, you know, Madam Chair, you kind of gave the summary, but none of everybody was aware of these conversations taking place. I don't know if the Supervisor— I didn't know this motion was going to be coming. Well, okay. Well, yeah. So I'm not going to support it, but I would—whoever is having conversations with the ZOC and Planning Commissioner, the leadership meetings, if we can figure out, try to get a timeline expedited, that would be greatly appreciated.

[06:19:28] Thank you. Mr. Turner. Well, thank you, Madam Chair. I told Supervisor Truroni when she came up with this idea that I totally agree with trying to shorten this process. I think it makes a whole lot of sense. I told her I'd support this. What I didn't know is what the chair just shared, which is that we're already having those conversations.

[06:19:46] The process is already trying to be shortened. The key players are in discussions about shortening the process. Based on that, I'm inclined to agree with the other, my colleagues here on the board, that I don't think there's any substance of addition of quality or speed by virtue of this motion if we've already got the process going on with the key players to try and shorten the process.

[06:20:09] So I'm afraid I can't support it, and I apologize. So I want to be real clear, Mr. Craig. I think everyone agrees with you that this process cannot take the original timeline. We all know that. We said that at the leadership team meeting. The staff agreed.

[06:20:25] I then said I had lunch with or breakfast or whatever with Mike Capretti, the Zoc chair, that next Monday, and then we did. And then I said that to him, and he agreed. And so, just so everyone knows, the discussion of an ad hoc committee was already in discussion, and then staff was talking to the ZOC chair and the Planning Commission chair.

[06:20:50] I completely agree that an ad hoc committee is appropriate to do, because I don't think that, and according to the ZOC chair, not every one of the ZOC cares about the wrong response, and they just don't. And so, it makes sense to do it, because it will go quicker.

[06:21:07] people who really kind of want to lean into Western Loudoun County will. And Mr. Capretti can choose his people, and Mr. Kearse can choose his people. The problem that I'm having issues with here is this timeline of September 30th, because I think that's almost impossible.

[06:21:26] That literally gives them no kidding two months, because August break is August break. Zoc doesn't meet in August. And I don't know what the staff does in August. I have no idea if you guys are hanging around here or just trying to not be here because I have no idea.

[06:21:42] But I know ZOC doesn't meet in August. So that would literally give them June and then give them July and September. So I think that what we could do is say to them, and what we are doing is saying to them, this is our end date.

[06:22:03] We want to see this back to us by this date. We want to get this back by next June, like, you know, versus saying you get it, because that's not really realistic. And so all the other things that you're saying is stuff we've talked about and what makes sense and what Mr. Capretti said it makes sense and what Mr. Kerr said it makes sense.

[06:22:25] But the timeline of September 30th is the part that it just, it's not enough time, I don't believe. I also believe that, you know, ZOC, you know, does have, we told people as far as the stakeholder groups, if they were on ZOC, they couldn't be in stakeholder groups because they would have a bite at this apple in ZOC.

[06:22:51] If we now kind of say to them, you don't get the bite of the apple, then we've, you know, that's not okay for us to do that. So the first part of this motion makes sense, and we've discussed it. It's the date that I'm having some heartache with, and I had told you that already, that the date didn't seem.

[06:23:11] How about October 31st? I think we should say when we want it back versus put a date on it would make more sense. And so if we want to come back next meeting with the, like, so we want it back versus this is the date you do it, I think that would be more helpful.

[06:23:27] Okay, so you're saying not have a date. So you can go in and close. It's your close, ma'am. Yeah, it is my close. Yeah. Yeah, I mean, I did bring this up at, I think, the May 4th special meeting. I brought up I had concerns with the timeline.

[06:23:44] I know I brought it up at least once. so people should have heard that I was concerned. And then I know staff brought it up, Chair Randall's correct, at the BOSPC leadership meeting, and we saw the timeline. This is—I'm glad to hear that, you know, Chair Capretti and Chair Kearsse think this is a good idea.

[06:24:11] I would agree the majority of ZOC, you know, they're not as engaged, you know, in Walrus. And so this gives an opportunity for a small group to get together that really, you know, has knowledge and experience with Walrus to move it along.

[06:24:29] I'm happy to change this or to get rid of the second part if you want to, Randall, to make a change on that. If that was gone, I would vote for this. but I think that if the second paragraph was gone, you would have my vote on this.

[06:24:45] But I don't know, that's just me. So I'm happy to remove the second part. And that way they can figure out what the ad hoc committee looks like and then come back to us with the timeline. That makes sense.

[06:25:00] So I'm willing to do that. But yeah, this is just an attempt so that, I mean, the way it is now, we wouldn't get it till September, the way the schedule is now. And I did bring it up. That's not quite. September of 2027. Yeah, it is. All right.

[06:25:19] Okay. So what we're having this, what we're voting on now is the, is the motion without the second paragraph. Is that correct? Yes. All right. Wonderful. All in people, please say aye. Point of clarification. Yes, sir. I'm sorry. I'm sorry. Ms. Brickson actually seconded that, So she'd have to agree to that.

[06:25:35] Get rid of the second part, the second paragraph. Okay. Yes. So what we're voting on now is whether or not to form an ad hoc committee of select members of ZOC and the Planning Commission. Chosen by the chairs of the Planning Commission and ZOC.

[06:25:58] With no timeline attached? Well, we can come back with the timeline. And we have said, what we've said is that we want to have this back to us by a certain date.

[06:26:14] But I don't know that I could say or anyone can say, Zoc, this is the date you have. But we've all said that we want to get this back to us in a year. So June of next year. We don't want to go to September of next year. That has been said. That was said to Mr. Capretti. That was said to Mr. Kurz.

[06:26:30] That was said in the leadership team meeting. It was just we didn't want to wait until September to get it back. Okay, so the motion is to create the ad hoc committee and let the lead of the respective committees choose the members? Yes. Madam Chair. That's their bylaws.

[06:26:45] I'd be okay with that. I have a point of clarification. Yes. So would ZOC and Planning Commission still have their regular meetings? I have no idea. That would be up to their chair. That's their bylaws. I'm asking staff. Yes, that would be the intention.

[06:27:01] Right. The smaller group would meet separately, devoted to Walrus. Both bodies would carry on their other normal work. And the smaller group would also have to have county staff. Yes. Yeah, I'm not going to support this. All right.

[06:27:17] All right. But you still are cool with the second. All right. So you made the motion. Madam. Yes, I'm sorry. Yes, sir. So what I'm hearing, can I point a clarification? Sure.

[06:27:33] Because what I'm hearing, the motion is very different than what was read. I don't think it was. Well. What are you hearing? It's just who's choosing. I mean, I just want to make sure we have clarity. Currently, we're removing the dates, and then the respective chairs of the two committees will create a smaller ad hoc, correct?

[06:27:51] It says it. It literally says it, by the chairs of Zoc and the planning committee. Okay. All right. I missed the scene in an older version when I saw it. Yeah, yeah. No, it says it. This is it. All right. Well, actually, to be fair, this wasn't here before. She added this later. So it must have been. Yeah, and I was going off in memory of the old version.

[06:28:07] No, no, you're right. You're correct. So, okay. All right, I'm good. I'm good. Okay. So, motion was made by Mr. Crony. I'm sorry, Madam Chair, appoint a clarification. I don't see anything on the first part of this motion that says to be selected by the Chairs of the Planning Commission. Appointed by the Chairs of Zock and the Planning Commission is the bottom first line.

[06:28:24] Right here? Right there. I mean, literally, here, it's right here. I just have a different version. Listen, it's appointed by the, right there. Oh, you are correct. I'm sorry, I apologize. I didn't see it either. I'm stupid. You're not stupid.

[06:28:40] You're right. Okay. Okay. I'm good with it. Okay. That'll help. For the 18th time, this motion was made by Supervisor LeCrony, taken by Supervisor Briggsman. Is your light still on? Oh. Okay. All in favor, please say aye.

[06:28:58] Aye. Opposed? No. This motion will pass, 6-3, with Supervisor No. Okay, you said no? He said no. 5-4. No, I said no. You said no. I said yes. Okay, then it's still 6-3. Then it's still 6-3, with Supervisor Letourneau, Bricksman, and Umstead saying no.

[06:29:17] Okay? Okay. Are you good? Y'all good? Yes, ma'am. Dan's like, whatever. Dan is so whatever. Do we need to do the next closed session? We do.

[06:29:33] It's like the bucket. We do. If you don't want to do it, go to the same.

[06:29:45] You guys need to, you know what? How about this? Executive decision. You all take a 10-minute picture before closed session. Everybody shake it up. Well, then everybody stop complaining.

[06:30:01] We just don't want to do it. What? There it is. Grab a drink on your way there or something. Okay, we're going to go into this closed session. Number one. Number one, we're going to go into this closed session happily. That's the order.

[06:30:18] All right, happily, happily, Mr. Turner, would you happily read us into this closed session, please? I move that the Board of Supervisors recessed this public meeting and enter into closed session pursuant to sections 2. 23711AA and 829 of the Code of Virginia to consult with legal counsel pertaining to the negotiation of a collective bargaining agreement where public funds are being expended and where negotiations in open session would adversely affect the bargaining position of the county.

[06:30:47] Second. Discussion on the motion? All in favor, please say aye. Aye. Any opposed? Any opposed? That motion will pass 9-0.

[06:55:53] We are back, and we're going to read out of closed session.

[07:12:34] Mr. Turner, please read us out of closed session. I move the closed session be adjourned, that the Board of Supervisors reconvenes its public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the closed session. Further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting.

[07:12:51] Seconded. Thank you. Motion made and seconded by Mr. Letourneau. Discussion on the motion? I'll be able to say aye. Aye. Any opposed? That motion will pass 9-0. Everybody please affirm. Ms. Bricksman? Affirm.

[07:13:10] And I affirm as well. I do believe that is everything. We are adjourned.



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